

THE PAGEANT OF PARLIAMENT

BY

MICHAEL MacDONAGH

VOL. I

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VOL. I

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VOL. I

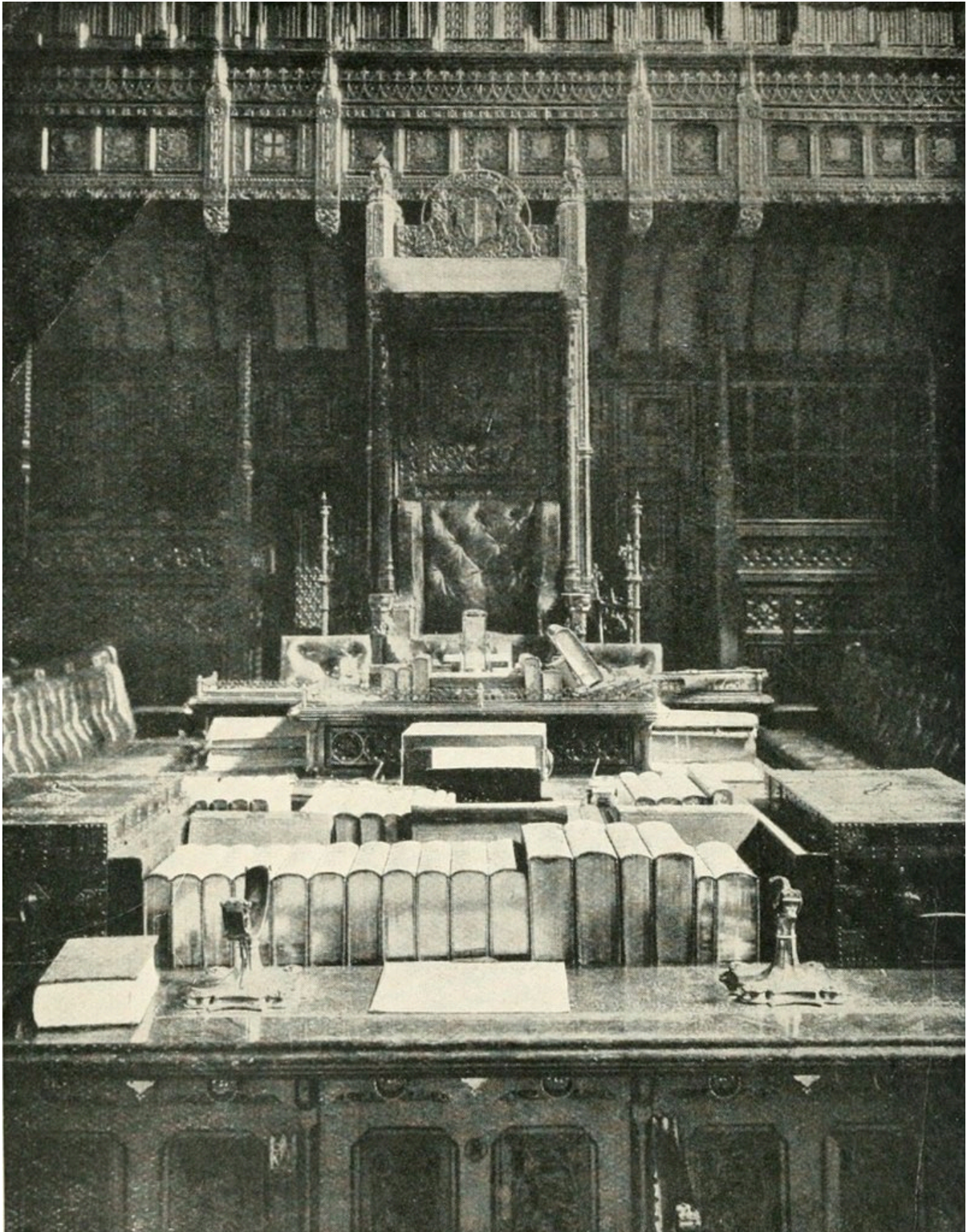
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T. FISHER UNWIN LTD. LONDON



SPEAKER'S CHAIR AND CLERKS' TABLE IN HOUSE OF COMMONS.

(From Sir Benjamin Stone's pictures, British Museum.)

THE PAGEANT OF PARLIAMENT

BY

MICHAEL MacDONAGH

AUTHOR OF "THE SPEAKER OF THE HOUSE"
AND "THE REPORTERS' GALLERY"

VOL. I

T. FISHER UNWIN LTD
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PREFACE

The purpose of this book, briefly stated, is to describe Parliament doing its work, as a living organization, in the framing of laws, in the levying of taxes and in their spending, and in the consideration of the discontents, anxieties and necessities of the Commonwealth, with a view to their removal or amelioration. I have embodied in my book—if I may say so without sounding the loud timbrel too vain-gloriously—considerable experience as a journalist of General Elections and by-elections in all parts of Great Britain and Ireland, and of thirty-five years' observation of the two Houses of Parliament from the Reporters' Gallery, supplemented by a study of their history and traditions, laws and procedure, the careers of leading statesmen, and the political principles by which they guided their management of public affairs.

There are many valuable text-books on the Constitution by learned lawyers and philosophical writers. My book does not aspire to be classed with these grave and profound treatises. They are of high documentary value, but I think it is doubtful whether one can really get to know Parliament from a study of them alone. They ignore the human side of Parliament. Often they seem to present Parliament as a mere abstraction—a thing of rules, principles and theories unrelated to the human personalities who compose its membership. Parliament cannot be divorced from life any more than Literature. Rightly to appreciate Parliament in its strength and in its weakness you must have an acquaintance with it in being, and an understanding of the politicians who, whether in office or out of office, whether in Government or Opposition, bend it, or try to bend it, to their will. Mr. Speaker Lowther, presiding at a lecture on the House of Commons, told a story which serves to illustrate the difference between theory and experience. When Sir William Anson, the author, as Mr. Lowther

truly said, of “a very grave and almost classical work” on the British Constitution, was being escorted up the floor of the House of Commons to take the oath and his seat for the first time, an old and witty Radical member who happened to be sitting beside Mr. Lowther said to him: “Is this the gentleman who has written a great work on the House of Commons?” “Yes, that is the very man,” replied Mr. Lowther. “Well,” the other remarked, “he will find it a very different place from what he thought it was.” It is idle for historical writers to try to depreciate the importance of personality in affairs. Certainly in Parliament it is personality that, even more than opinion, is the determining factor in every great political crisis.

I trace the progress of a Parliament, its unfolding and development, from the General Election, when it is constituted by the votes of the people, until the day the Sovereign, on the advice of the Cabinet, pronounces the sentence of its dissolution. I describe its framework and machinery, its chief officers, its ceremonies, usages and customs, its contrasts of solemnity and gaiety; the Party forces which move it and direct its course; how Administrations are made; the duties of Ministers; the pleasures and woes of the M.P.; how Public and Private Bills are passed; how Supplies are voted; the mode in which the proceedings of both Houses are reported for the newspapers; and the varied elements, aspects and usages of Parliament, whether it be regarded as the historic temple of British liberties, equally ancient and venerable with Westminster Abbey over the way; the scene of great achievements in oratory and statesmanship; the institution by which, as the incarnation of the current political thought of the day, questions affecting the well-being of the community are determined by legislators and administrators, or the field upon which the continuous and exciting duel between Parties is fought at close quarters, with all the whims, oddities, weaknesses of human nature as well as with its noble qualities. I have made some excursions into the domain of history. That, of course, was inevitable in writing about Parliament, whose roots lie so deep in the past. But I have avoided as much as possible the broad beaten tracks, and have turned down unfrequented or little-trodden by-ways in search of fresh and apt anecdotes to enliven my descriptions, in fact and in experience, of the Pageant of Parliament.

There is one general observation which I should like to make, and it may not be out of place to make it here. My studies have led to the discovery

that there has hardly ever been a time when it has not been asserted by someone or other, in writing or in speech, that the authority of Parliament and the esteem in which it is held have sadly declined. There is nothing surprising in that. Cynics and wits of all ages have tried their hand at making great institutions, as well as great men, butts at which to shoot their ridicule and contempt. Parliament has not escaped the common fate of the mighty and the sublime. It has been described as inefficient and corrupt. Its downfall has often been prophesied. Yet its foundations were never deeper or better laid than they are to-day, broad-based as they are on electoral comprehensiveness and the people's will. Parliament as I have presented it—even with all reverence and admiration—may not be perfect. It has its faults. After all, its legislators and administrators are but human. But it is, perhaps, as fine and perfect an instrument of democratic government as can humanly be devised. Ancient and renowned as it is, it stands not remote and apart. On the contrary, it is of the fabric of the life of the people. It makes a living reality of the great principle—"Government of the people, by the people, for the people." It is the country's chief political instrument of progressive civilization. It is idle, in the light of experience, to talk of its being clumsy, inefficient, slow. More than ever does it make possible the closest and quickest impact of the country's mind upon government and administration. In the World War it signally proved its practical and speedy utility. Statesmen obtained quickly and surely all the measures they deemed necessary for the national safety and the enemy's defeat. Whenever Parliament seems to have lost caste the cause may be traced, not to the institution itself but to its membership, the confusion of its Parties, the weakness of its Ministry. The remedy is not to destroy it, and put in its place some untried mode of government and administration; but, by changing its composition, to restore it to the proper service of the Nation. Parliament is fully capable of accomplishing whatever may be asked of it, in the changing thoughts of men, probably, till the end of all time, and of doing so soberly and slowly by process of evolution, or with revolutionary rapidity and completeness, as the situation demands.

MICHAEL MACDONAGH.

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THE PAGEANT OF PARLIAMENT

CHAPTER I

THE MEMBER AND THE CONSTITUENCY

1

At the General Election the Party in office throws down its superb challenge to the Party in Opposition. “We appeal,” they say, “to the solemn judgment of the Nation on the political issues in contention between us.” This invoking of the electors’ decision at once raises a question of political morality as well as of constitutional practice—the relation in which a Member of Parliament rightly stands to his constituency. Is the M.P. a representative or a delegate? As these capacities may be said to be in a sense identical, it is well to put the question in a fuller and more definite form. Is the M.P. an agent sent to the House of Commons by the electors of a certain geographical district to state their opinions solely and act in accordance with them, or may he exercise his own independent judgment, even against the will of those to whom he owes his seat in the Assembly? Edmund Burke dealt with this question on the hustings at Bristol, during the General Election of 1774, in a speech that is memorable in political literature as a classic statement of the constitutional position of an M.P., in the opinion of the representative, at least, and also, it must be said, in the opinion of a large body of the electors. Burke said it ought to be the happiness and glory of a representative to live in the strictest union, the closest correspondence, and the most unreserved communication with his constituents. Their wishes ought to have great weight with him, their opinions high respect, their business unremitted attention. “But,” Burke goes on, “his unbiased opinion, his mature judgment, his enlightened conscience, he ought not to sacrifice to you, to any man, or to any set of men living. These he does not derive from your pleasure; no, nor from the Law and the Constitution. They are a trust from Providence, for the abuse of which he is deeply answerable. Your representative owes you not his industry only, but his judgment, and he betrays instead of serves you if he sacrifices it to your opinions.” Nevertheless, Burke was returned to the

House of Commons as Member for Bristol in 1774, for no more exalted reason than that his political views were in accord with those of the majority of the constituency in regard to the matters that then divided Tories and Whigs.

In 1778 Burke supported two Bills that were presented to the House of Commons, one relaxing some of the restrictions on Irish trade, the other removing some of the civil disabilities of the Roman Catholics. These votes were in conformity with Burke's mature judgment as a statesman as well as with his Irish prepossessions. But they were also directly in opposition to the material interests and the religious tenets of the people of Bristol. That being so, Burke fell into disfavour, and, however honourably his unpopularity was earned, it was inevitable that he should be brought to account by his constituents on the first opportunity. This was afforded by the General Election of 1780. In a noble speech from the hustings in defence of his action, he exclaimed: "I did not obey your instructions. No; I conformed to the instructions of truth and Nature, and maintained your interests against your opinions with a constancy that became me." He went on, in passages of moving power and earnestness, to declare that he did not stand before them accused of any venality or neglect of duty. "No," he cried, "the charges against me are all of one kind: that I have pushed the principles of general justice and benevolence too far, further than a cautious policy would warrant, and further than the opinions of many would go along with me. In every accident which may happen through life—in pain, in sorrow, in depression, and distress, I will call to mind this accusation and be comforted." But the popular prejudice against Burke—a prejudice aroused solely by the expression of his liberality and broad-mindedness in action—was too strong to be overcome. The great statesman and philosopher was compelled to retire early from the contest, badly beaten.

The electors of Bristol have been put in the pillory for intolerance and selfishness, while Burke stands, for all time, a shining example of self-sacrificing devotion to independence of mind. Many years have passed since then—years of steady advance in political enlightenment, and in public duty on the part of electors as well as of representatives—and questions, more vital and fundamental, arise constantly for settlement. Yet where to-day is the constituency ready to elect a man who is opposed to its political views, however great a genius he may be, and however stainless

his honour? There is nothing more certain than that Bristol would expel Burke in the twentieth century as it expelled him in the eighteenth, if his political opinions were distasteful to the majority of the electors, or if his parliamentary actions were opposed to what they conceived to be their interests. A hundred years hence the Nation may have reason to bewail our obtuseness, and, in resentment of the trouble we have caused them, bitterly to cry out—"Fools, fools, fools!" The thought does not disturb our political equanimity. We are resolved to yield our opinions, prepossessions, prejudices to no man who would tell us to think and act differently—aye, though he be our M.P.!

In no constituency will the plea be accepted that the Member must be allowed to decide what is best ultimately for it against its opinions, or even against its prejudices—if, indeed, the one can be distinguished from the other in politics. It is not only that in this conflict of one mind against many the wrong-headedness is just as much likely to exist in the representative as in the constituents. What is more, the representative system is a check, not on the people, but for the people. The chief function of the House of Commons is to protect the people's rights and extend their social well-being; and as under our democratic system the people are free to vote as they please and for whom they please, it is inevitable that they should constitute themselves, in each constituency, the supreme judge as to the man best fitted faithfully to discharge a trust that means so much to them. That is not to say that a Member of Parliament is expected to outrage his honour and conscience by supporting measures which he secretly abhors, or believes in his heart to be detrimental in the long run to the true interests of the Nation, because they find favour with a majority of his constituents, and to oppose them would entail the loss of his seat. He votes, of course, according to his convictions. Nor is it necessary for him to comport himself in an attitude of servility towards the electorate. Once he is returned he may, if he so pleases, entirely change his politics, and cross the floor of the House of Commons without having beforehand to go back to his constituency, as a delegate in a like situation would be bound to refer to the body or society of which he was the chosen spokesman. The constituency has no immediate control over the representative. They cannot forthwith deprive him of his authority and position, as a society or other body can recall and supersede a delegate. But the representative who votes according to personal convictions which are out of harmony with the political

principles of the majority of his constituency must be ready to pay the penalty of this conflict between his opinion and their judgment—the penalty of being summarily dismissed, like Burke, at the earliest opportunity. In a word, such a representative is rejected by the constituency for the very same reason that the country frequently discharges a Government at the General Election—incompatibility of political temper. The feeling of most electors is that they would be false to themselves—false, at any rate, to their opinions—were they to vote for a candidate with whom they were in disagreement on political issues, no matter how great he might be as a man.

2

Goldsmith, in well-known lines, gently reproves Burke as one—

Who, born for the universe, narrowed his mind,
And to Party gave up what was meant for mankind.

On the contrary, it would be truer to say that Burke was politically undone because he gave his grand talents to what he regarded as the service of mankind rather than to Party, particularly in relation to the French Revolution, when the action of his Party was, in his view, opposed to the real interests of humanity. Moreover, Goldsmith uses the word “Party” in a disparaging sense. His idea of Party politics seems to have been that it was a game unscrupulously played for the stakes of mere power and influence, greater wealth and station; and there are people even to-day who agree with him. It is a strange notion, and one that appears to me to be entirely without foundation. Undoubtedly the inspiring force of Party is a sincere regard for the good of the Commonwealth. It is true there are politicians, with little principle and less scruple, who become Party men for the advancement of personal ambitions which are mean and unworthy in the circumstances. But all the Party movements—Conservative, Unionist, Liberal, Radical, Labour, Irish Nationalist, Free Trade, Protection—are each, in the main, an honest effort, however you or I may think it mistaken, to effect the greatest good of the greatest number. As to the ultimate object, all Parties are agreed. It is the methods by which this common end had best be attained that creates the fundamental differences between Parties and excites political antagonisms.

“Party,” says Burke, “is a body of men united for promoting by their joint endeavour the national interest upon some particular principle upon which they are all agreed.” No one else has written more powerfully in support of the view that Party discipline is essential to strong and stable parliamentary government. Yet Burke himself was a most indifferent Party man. He had that stern independence of judgment which, refusing to yield even in details, is fatal to the unity of purpose and action without which efficient Party organization is impossible. From the Party point of view, Burke, with all his political philosophy, was just what Fox described him—“a damned wrong-headed fellow!” The theory advanced by Burke that a Member of Parliament ought to be returned unfettered by political pledges because it is his bounden duty to exercise his free and independent judgment, irrespective of the constituency’s opinions and desires, on the public questions that arise for decision, is an exalted counsel of perfection. Perhaps it makes a demand too stern and unbending for human nature under any form of Constitution, however Utopian or perfect. In a Parliament based on the Party system it is impossible of acceptance. The power of the House of Commons is exercised not according to any fixed rule of law, but according to certain broad general principles—Justice, Equity, Reason—and the current interpretation of these principles is guided by the dominant political opinions of the day.

Members of Parliament are, in practice if not in form, Party delegates. To them the majority of the electorate have relegated their authority to support or oppose in the House of Commons the controversial political questions of the time in the light of certain Party principles. Whatever local character the M.P. possesses may be said to disappear as soon as he presents the return of the writ to the Clerk at the Table of the House of Commons, shakes hands with the Speaker, and then, amid Party cheers, makes his way to the Liberal, or Unionist, or Labour benches, according to the Party views he was really chosen to support. By that action he stands revealed as a Party delegate. And yet he is a representative, in a sense deeper and wider than that which prevailed of old, before the uprise of the powerful Party organization. He is a representative not solely of the local views of his constituency, but of one section of the paramount and possibly abiding opinions of the Nation as a whole.

The country being, in the main, divided politically into three chief groups of thought—Conservative, Liberal and Labour—the machinery for the promotion of political principles and Party interests is principally supplied by three great rival organizations. These are the National Union of Conservative and Constitutional Associations, controlled by the Conservative Central Office; the National Liberal Federation, controlled by the Liberal Central Association; and the Labour Party, controlled by the National Executive. Each of these organizations is aided by several subsidiary but independent bodies, which are formed for the promotion of sectional political interests within the main movement to which they are attached.

The systems of the National Union, the Liberal Federation and the Labour Party are much alike in methods. Those of the two ancient political Parties may be taken for the purposes of illustration. In most constituencies there is a branch of each organization. These local bodies elect the council for the county or for the borough. These councils send delegates to the annual conferences of the Conservative Union, or the Liberal Federation, by which the programme of each Party is considered, revised and confirmed, and a central executive is appointed with supreme authority. The branches look after Party interests locally. The Federation, or the Union, speak for the Liberalism or Conservatism of the country as a whole.

But in reality Party organization is controlled, for the Conservatives by the Conservative Central Office, and for the Liberals by the Liberal Central Association. Both the Union and the Federation are founded upon a popular and representative basis, and their annual meetings, at least, are open to the Press. They each fulfil the double functions of educating political thought in the country, and of enabling the Party leaders in Parliament to gauge the drift of opinion within the Party on current questions of the day. But of the working of the Conservative Central Office and the Liberal Central Association little or nothing is made public—nothing, at any rate, that is really important. What is known is that each consists of a staff of officials directed by a Chief Agent, who is appointed by the parliamentary leaders of the Party. The Chief Party Whip in the House of Commons is also a leading director of the affairs of each of these central bodies. In each is vested the expenditure of the Party fund, subscribed by wealthy supporters, and

popularly supposed to be immense. Each has a voice in the selection of candidates. The favour of headquarters is often the best passport to selection by the local association. Each body has an agent permanently residing in constituencies where political opinion is pretty evenly divided. "Give the men a smoking concert," these Party agents are advised in a little book called *How to Win an Election*, "where they can obtain a reasonable quantity of good, pure, wholesome beer, rather than a tea opened with a touch of the religious element." Each body also has gentlemen continually on the road—rival political travellers, as it were, bringing round to the electors the newest and most attractive samples of principles, Liberal or Conservative.

Such is the British variant of the American Caucus. It was imported from the country of its origin, in 1873, by Mr. Joseph Chamberlain—a man who has profoundly influenced Party tactics and strategy, as well as political opinion, in Great Britain—and was first set up in Birmingham under the direction of Mr. Francis Schnadhorst. The Caucus was at once attacked as a most mischievous element in public life. It was contended by old-fashioned Liberals and Tories alike that it would make impossible the free expression of the will of the constituency. The electors would become an unthinking, passive mass under the dominion of headquarters, and the destiny of the Nation—controlled as it is by the exercise of the franchise—would pass into the hands, perhaps, of unprincipled and artful demagogues. But the Caucus had come to stay. It was adopted by the Conservatives as well as by the Liberals. In fact, the idea of forming a Party organization in this country first originated with Disraeli.

In the General Election of 1868 the Conservative Government, of which Disraeli was Prime Minister, was hopelessly beaten at the polls. There was practically no organization of the Conservatives at the time, and the work of bringing it into existence was entrusted by Disraeli to a young barrister who had been in the House of Commons for a year or two—John Eldon Gorst. Gorst began by establishing the "Central Conservative Office." He then proceeded to create a permanent system of local bodies throughout the country for the registration of voters, linked them up in the National Union, and kept at headquarters a register of approved candidates from which the local bodies could make their own selection. The dissolution of the Liberal Parliament in 1874, unexpected though it was, found the Conservatives

accordingly quite prepared, and they returned from the polls victorious. The Liberals then set earnestly to work on the same lines, and, improving upon the Conservative example, produced an even more perfect electoral machine. In 1877 Schnadhorst founded the National Liberal Federation, and, becoming the chief organizer and electoral adviser of the Liberal Party, it was to his exertions that the immense Gladstonian victory of 1880 was mainly due. Schnadhorst, on his retirement in 1887, was presented with 10,000 guineas by the Liberal Party as a slight recognition of his great services to their cause.

In truth, the rise of the highly developed and powerful Central Party organization was a destined stage of political development in Great Britain as well as in the United States. An essential adjunct of a constitutional system like the British—the two fundamental principles of which are democracy and Party government—is the Party organization for the education of public opinion in its tenets, and for having its forces ready to take the field at the General Election, the outcome of which is the supremacy of one Party or the other in the House of Commons for a term of years, and, consequently, the paramount influence of one set of political principles or the other in the government of the Nation. Moreover, the effect of Party organization has, on the whole, been beneficent. It is hardly too much to say that to it is due the healthy political vitality of Great Britain. It has aroused an interest in public affairs and government, and by the propagation of ideas it has given to the democracy coherent political convictions. If public opinion were unorganized, its aimless ebbing and flowing—knowing not what it really desired—its tendency to separate into numerous factions, some of them, possibly, with wild and visionary aims, would have led in time to the instability of the Constitution. The Party system, on the other hand, has undoubtedly contributed to the strength and security of the State by bringing about the convergence of the various streams of political thought into three main channels, each with settled principles, Conservative, Liberal and Labour in tendency, and pursuing ends that are on the whole national as well as rational.

CHAPTER II
WOOING OF THE ELECTORS

1

Party organization reached its highest point of perfection and influence before the outbreak of the World War in 1914. Yet even at that period it was remarkable how small both the Conservative Union and the Liberal Association were in actual membership. It was unusual to find among one's acquaintances, however wide the circle, anyone who belonged to either organization. Their power lay in propaganda and direction. And if millions of voters acknowledged their sway, there were other millions, though not quite so many, perhaps, over whom they had no influence. At many General Elections before the War not more than 50 or 60 per cent. of the electors went to the polls. The absentees were equally numerous in electoral contests immediately after the War.

Who are they, these silent voters, who constitute so unknown a quantity, so sore a puzzle, to the Party managers, and sometimes confound their nicest calculations? A man's politics depends upon his individual temperament and point of view, but, like his religion, it is largely the accident of his birth and home environment or early education. I have seen an election address in which the candidate said: "I was born a Conservative on August 29, 1848." Another man is a Liberal because of the chance that it was Liberalism and not Conservatism which he unconsciously imbibed at his father's knee. In fact, the sentry in Gilbert and Sullivan's comic opera was not far wrong in singing that every little boy or girl who's born into the world alive—

Is either a little Liberal,
Or else a little Conservative.

But the silent voter seems to have disdained to adopt fixed and settled political opinions—like the generality of mankind—either by inheritance or by an effort of thought. It may be that he is ignorant of the object of politics,

in the general sense of the word; it may be that he knows what it implies, but thinks it unimportant. At any rate, the cries of Party make no appeal to him. He owes allegiance to none of the three great political organizations, nor to any of the many smaller groups formed for the advancement of particular purposes. He is scornful of the mere Party man. "Hack," indeed, is the word he contemptuously uses. In his opinion ordinary politicians are but gramophones which mechanically grind out echoes of the catch cries that emanate from the Party headquarters or the Party newspapers. Indeed, the Party system appears to him a thing eminently absurd. He sees nothing in it but three scolding political organizations condemning each other's methods and belittling each other's achievements, bent solely on the possession of office with its attendant prestige and benefits. In his self-righteousness he accounts himself the ideal elector who, animated by a high sense of public duty, refuses to espouse any side in the Party struggle, and, taking the welfare of the Nation as his guiding light, brings free and reasoned judgment to bear upon the rival political policies at issue in the General Election. On the other hand, the staunch Party adherent calls him a "wobbler"—a sort of backboneless creature who cannot stand steadily upon his legs, much less four square to all the winds that blow, and who, when he votes, is influenced by some petty mood of the moment.

But whatever he may be—whether the idealistic free and enlightened elector, or a creature of unstable mind, whether he represents a low standard of political intelligence, or the highest form of integrity applied to politics—undoubtedly he it is who swings the electoral pendulum. He is the human instrument for the working out of that curious law of electioneering by which, before the World War, with but little irregularity, one Party succeeded the other in office, since the first really democratic extension of the franchise by Disraeli's Reform Act of 1867, when the principle of household suffrage was established. The "wobblers" are not organized. They have no newspapers. No common consciousness of similar aims unifies or unites them. They do not appear upon platforms nor in audiences, nor do they feel impelled to write to the Press. They keep their own counsel, and rarely talk politics even in their own circles. They are, in fact, ignorant of each other's existence. Yet their political influence is immense. It is not that they succeed in having themselves largely represented in Parliament. A peer who sits on the "cross benches" in the House of Lords—right in the middle of the floor, unattached, between the Government and the

Opposition—is the closest analogue of the “wobbler” to be found in Parliament. Nor are they successful in having their political views considered in legislation and administration. Indeed, it is likely that they are a very varied lot in ideas, sentiments, and tastes. Almost invariably non-politicians are dead against change. So long as things go on pretty much as usual they are content to stand aside. But if it were possible to hold a convention of “wobblers,” and they drew up a political programme, we should have, no doubt, a fearful mixture of Toryism, Liberalism, Socialism, of the principles of free trade and tariff reform, of open doors and closed ports, of loaves big and little, of nationalization and private enterprise, of the whole hog or none.

The power which is wielded by this silent reserve of voters, as opposed to the crowd who belong to organizations, or who go to meetings and make their opinions known, is this—that in many constituencies where the steadfast Liberal, Conservative, and Labour supporters are evenly balanced, they exercise, as it were, the casting vote. In them may be said to lie the decision of the fateful question of the General Election—Shall the Government of the British Empire be Conservative or Liberal or Labour for a term of years? In the mass they may be moved by opposing sentiments and motives, they may be pursuing widely different ends. Many of them, no doubt, are of the kind who can only support a cause so long as it is favoured by fortune. But, as a rule, they are friendly disposed towards the “outs.” “Let the ‘outs’ have a turn of office,” they say, as they place their cross on the ballot paper in the polling booth. Thus swings the electoral pendulum to and fro.

Occasionally there is a wave of national feeling—whether it be enthusiasm for the new cause, or absolute weariness of the old, which, as in the extraordinary General Election of 1906 that brought the Liberals back to power after many years in the wilderness, sweeps over the country like a tidal wave overthrowing the barriers set up by the Party organizations and obliterating the lines of orthodox Party politics. Then it is that the non-political electors who do not trouble to vote on ordinary occasions flock to the polls in their hundreds of thousands, that numbers of voters who held their opinions weakly go over to the other side, and that the candidates of the Party in power are made to feel the full weight of their combined wrath. But this rarely happens. In the periods of calm which more often mark the

public life of England, when there are no really fundamental or vital differences between parties, and interest in politics is, therefore, at a low ebb, when the General Election means no more than a struggle to get one set of Ministers out and another set of Ministers in, victory for Liberalism, Conservatism, or Labour depends on organization and persistent urging during the actual contest, each on their own particular supporters, to fail not, on their Party allegiance, to go to the polling booths.

2

The contrast between elections in the nineteenth and in the twentieth centuries is very striking and interesting. We see the good effects of Party in sweeping away electoral corruption, and also its drawbacks in limiting the scope of independent opinion and character. One of the most remarkable elections ever held was that which led to the return of John Stuart Mill for Westminster, as an independent Member, in 1865. Mill's views were uncommon at the time. He held that a Member of Parliament should not have to incur one farthing of cost for undertaking a public duty. The expenses of an election ought, in his opinion, to be borne as a public charge, either by the State or by the locality. Mill also contended that the M.P. should not be expected to give any of his time or labour to the local interests. He declared that he himself had no desire to enter Parliament. He thought he could do more as a writer in the way of propagating his opinions. He declined to conduct a personal canvass of the constituency. Mill thus set at defiance all the accepted notions of right electioneering. A well-known literary man, he relates, was heard to say that the Almighty Himself would have no chance of being elected on such a programme. Yet Mill was returned by a majority of some hundreds over his "Conservative competitor," as he calls his opponent. And all his expenses were paid by the constituency. It was impossible in the state of Party feeling even then existing that so independent a Member as Mill could be allowed to remain very long in Parliament. So Mill was thrown out at the General Election of 1868. "That I should not have been elected at all would not have required any explanation," he writes in his *Autobiography*. "What excites curiosity is that I should have been elected the first time, or, having been elected then, should have been defeated afterwards." The explanation was that his writings gave as much confidence to Conservatives as they did to the

Liberals that he would be a supporter of their cause. The reason he was rejected was that in Parliament he pleased neither the one nor the other.

Macaulay, like Mill, was opposed to canvassing. He declared that an elector who surrendered his vote to supplication, or to the caresses of his baby, forgot his duty as much as if he sold it for a banknote. In his contest for the representation of Leeds, in 1832, he refrained from asking a single elector personally for his vote. He wrote:

The suffrage of an elector ought not to be asked or to be given as a personal favour. It is as much for the interest of the constituents to choose well, as it can be for the interest of the candidate to be chosen. To request an honest man to vote against his conscience is an insult. The practice of canvassing is quite reasonable under a system in which men are sent to Parliament to serve themselves. It is the height of absurdity under a system in which men are sent to Parliament to serve the public.

Gladstone, on the other hand, not only recognized that canvassing was essential to successful electioneering, but also positively enjoyed it. He, too, was a candidate in that General Election which followed the passing of the great Reform Bill of 1832. He once said, towards the end of his long life, that in all the stirring and momentous political scenes in which he had been an actor—fighting for a seat in the House of Commons, making Cabinets, taking part in historic decisions on peace and war—there was nothing to compare for excitement with his first contest for Newark in 1832, out of which he came victorious. There were 2,000 houses in the borough. It was then the custom for the candidates in all elections personally to visit every house, whether occupied by a voter or not, to solicit the elector for his vote and the non-electors for his or her influence. Gladstone went five times to every house in Newark, thus making 10,000 calls in all. In the twentieth century most candidates are disposed to dispense with canvassing altogether. It must be repugnant to sensitive souls, or to those with a quick response to the ridiculous, to have to go from house to house following the traditionally seductive ways of the aspirant to a seat in the House of Commons. Perhaps the prettiest compliments that have ever been paid, outside those of the lover to his mistress, have been paid by candidates canvassing electors. Kissing even played a leading part in the art in the gallant days of old. The custom had its drawbacks. Did not the eloquent auctioneer who offered for sale the notorious borough of Gatton, in Surrey, with its estate and mansion as well as the power of electing two M.P.'s, set

out, among its advantages: “No claims of insolent electors to evade; no impossible promises to make; no tinkers’ wives to kiss”! So kissing by candidates has fallen into disfavour, and the most candidates are expected to do is to pinch the cheeks of babies or chuck them under the chin, in the hope of inducing the parents to recognize the merits of the Unionist or Liberal or Labour cause. Perhaps canvassing ought to be included in the practices which are declared by statute to be illegal at elections. But its effect on the issue of the contest, especially in constituencies where the Parties are rather evenly divided, is sometimes decisive. The feeling of many electors is that in their votes they possess a favour to bestow. They like to be asked for it, and the candidate who comes to their houses, hat in hand, soliciting their support, usually gets it, at least from the non-party electors or the “wobblers.”

In days gone by, even candidates with the highest sense of virtue and honour, public and private, had to woo the electors by a lavish expenditure of money. Lord Cochrane stood as a Whig for Honiton at a by-election in the spring of 1806 against Augustus Cavendish Bradshaw, who sought “a renewal of the confidence of the constituency” on accepting a place in the Tory Government. Bradshaw had paid five guineas a vote at the former election, and on this occasion expected to get returned unopposed at the reduced rate of two guineas; but on the appearance of Cochrane in the field he was compelled to raise his bounty to the old figure. “You need not ask me, my lord, who I vote for,” said a burgess to Cochrane; “I always vote for Mister Most.” The gallant seaman, however, refused to bribe at all, and got well beaten in consequence. How he turned his defeat to account makes an amusing story. After the election he sent the bellman round the town, directing those who had voted for him to go to his agent, Mr. Townsend, and receive ten guineas. The novelty of a defeated candidate paying double the current price of a vote—or, indeed, paying anything at all—made a great sensation. Cochrane states in his *Autobiography of a Seaman* that his agent assured him he could have secured his return for less money. As the popular voice was in his favour a trifling judicious expenditure would have turned the scale. “I told Mr. Townsend,” he writes, “that such payment would have been bribery, which would not have accorded with my character as a reformer of abuses—a declaration which seemed highly to amuse him. Notwithstanding the explanation that the ten guineas was paid as a reward for having withstood the influence of bribery, the impression produced on

the electoral mind by such unlooked-for liberality was simply this—that if I gave ten guineas for being beaten, my opponent had not paid half enough for being elected: a conclusion which, by a similar process of reasoning, was magnified into the conviction that each of his voters had been cheated out of five pounds five.” In the October following there was a General Election. Cochrane was again a candidate for Honiton, and, although he had said nothing about paying for his votes, was returned at the head of the poll. The burgesses were convinced that on this occasion he was “Mister Most.” Surely it was impossible to conceive any limits to the bounty of a successful candidate who in defeat was so generous as voluntarily to pay ten guineas a vote! They got—not a penny! Cochrane told them that bribery was against his principles. What the trustful electors said about their representative would not bear repetition here. But there was another dissolution a few months afterwards, and Cochrane did not dare to face outraged Honiton.

3

It was not often, however, that burgesses were outwitted by a candidate. A story that is told of the Irish borough of Cashel shows how the voters usually scored. The electors, locally known as “Commoners,” fourteen in number, were notoriously corrupt, and always sold their votes to the highest bidder. It was for this constituency, by the way, that that very prim and straight-laced man, Sir Robert Peel, was first returned to Parliament in 1809. The usual price of a vote in Cashel was £20. The popular candidate at one election, anxious to win the seat honestly and not to spend a penny in corruption, got the parish priest to preach a sermon at Mass, on the Sunday before the polling, against the immorality of trafficking in the franchise. The good man, indeed, went so far in the course of his impressive sermon as to declare that those who betrayed a public trust by selling their votes would go to hell. Next day the candidate met one of the electors and asked what was the effect of Sunday’s sermon. “Your honour,” said he, “votes have risen. We always got £20 for a vote before we knew it was a sin to sell it; but as his reverence tells us that we will be damned for selling our votes, we can’t for the future afford to take less than £40.” The borough was ultimately disfranchised for corruption.

Bribery did not always mean the direct purchase of votes for money down. Many whimsical dodges were adopted to influence voters without

running any great risk from the law. Cheap articles were bought from the voters at fancy prices, or a valuable commodity was sold to them at a fraction of its value. At an election at Sudbury in 1826 a candidate purchased from a greengrocer two cabbages for £10 and a plate of gooseberries for £25. He paid the butcher, the grocer, the baker, the tailor, the printer, the billsticker, at equally extravagant rates. At Great Marlow an elector got a sow and a litter of nine for a penny. Candidates also suddenly developed hobbies for buying birds, animals, and articles of various kinds which caught their eye during the house-to-house canvass. Some were enthusiastic collectors of old almanacs; others were passionately fond of children's white mice. "Name your price," said the candidate. "Is a pound too much?" replied the voter. "Nonsense, man," said the candidate; "here are two guineas." Rivers of beer were also set flowing in the constituencies. The experience of the Earl of Shaftesbury (the philanthropist and friend of the working classes) was common. As Lord Ashley he contested Dorset in the anti-Reform interest at the General Election of 1831, which followed the rejection of the first Reform Bill, and was defeated. His expenses amounted to £15,600, of which £12,525 was paid to the owners of inns and public-houses for refreshments—"free drinks" to the people. In those days some of the most respectable as well as renowned of parliamentarians got their chance by means of a judicious distribution of five-pound notes among the electors.

When bribery was thus avowed and flagrant, no limit could be placed to the possible cost of a seat in the House of Commons. Success was won, or defeat sustained, in many an election at the price of bankruptcy and ruin. The most expensive contest in the annals of electioneering was the fight in 1807 for the representation of Yorkshire. The candidates were Lord Milton, son of Earl Fitzwilliam (Whig); the Hon. Henry Lascelles, son of Lord Harewood (Tory); and William Wilberforce, the famous advocate of the abolition of slavery (Independent). The poll was taken in the Castle yard at York in thirteen booths, which, in accordance with the existing law, were kept open from 9 a.m. to 5 p.m. for fifteen days. Wilberforce and Milton were returned. The total number of electors polled was 23,007, and the three candidates spent between them £300,000, or about £13 for each vote polled. Wilberforce's bill ran into £58,000, which had to be defrayed by public subscription. A good deal of this money went into the pockets of the electors. Therefore it is hardly surprising to read in the debates on the

Reform Bill of 1832 the contention advanced that a seat in the House was private property, that the possession of a vote was a source of income, and consequently that to take one or the other from a man without compensation, by the abolition of small boroughs and fancy franchises, was as much robbery as to deprive a fundholder of his dividends, or a landlord of his rents.

4

All this but emphasizes the purity of the wooing of the electors to-day. The various stringent Acts against bribery and corruption carried in the latter half of the nineteenth century have not been passed in vain. In 1854 bribery was made a criminal offence by the Corrupt Practices Prevention Act. Election petitions by defeated candidates claiming seats on the ground that there had been corrupt practices were formerly tried by committees of the House of Commons. Often the decisions were partisan, and directly in the teeth of the evidence. Yet the House of Commons for centuries so jealously guarded its own jurisdiction over all matters relating to the election of its members that it rejected proposals of a judicial tribunal. At length in 1868 the Parliamentary Elections Act was passed, and since then two Judges of the King's Bench Division try petitions, and report the result to the Speaker. After the General Election of 1880 there were no fewer than ninety-five petitions impugning returns on various grounds, including bribery, intimidation, personation of dead or absent voters, and most of them were sustained. After the General Election of 1885 there was not a single petition. Between these electoral contests a statute was passed—the Corrupt and Illegal Practices Prevention Act of 1883—which has done much to make parliamentary elections pure. Its main purpose was the fixing of a maximum scale of electioneering expenditure, varying in amount according to the character and extent of the constituency, and each candidate was required to make a statement of his expenses to the returning officer within thirty-five days after the contest. The expenditure of an election—other than the personal expenses of the candidate and the returning officers' charges—was limited by this Act in England and Scotland to £350 for the first 2,000 electors in boroughs, and £650 for the first 2,000 electors in counties, with accretions of £30 in the case of boroughs, and £60 in the case of counties, for every additional 1,000

electors. The personal expenses of a candidate were confined to £100. The General Election of 1880—the last election in which expenditure within the law was practically unlimited, and, as the disclosures in the hearing of the petitions showed, was most excessive—cost the candidates over £2,000,000, or about 15s. for each vote polled. The General Election of 1885, the first held under the Corrupt Practices Act of 1883, cost only £1,026,646, or 4s. 5d. per vote. The tendency of the expenditure is still downwards. Under the Representation of the People Act, 1918, the expenses of a candidate must not exceed an amount equal to 7d. for each elector on the register, in the case of counties, and 5d. in the case of boroughs, exclusive of personal expenses. The fee paid to the election agent must not exceed £75 in counties and £50 in boroughs.

Still, the question is sometimes asked in all seriousness: Is electioneering really any purer now than it was in the days before the first Reform Act? It is admitted that seats in the House of Commons are no longer openly purchased, that individual voters are no longer directly bribed. But it is said that the old blunt and barefaced forms of corruption have simply given place to newer and subtler methods of bribery, which are just as dishonourable to those who give and those who take. A candidate does not now buy a constituency; he “nurses” it. In other words, he tries to secure the good will and support of the electors by subscriptions and donations for various local objects. Against this practice, with its many by-ways of expenditure, there is no law. The objects for which money is thus spent divide themselves into two classes—religion and philanthropy, sport and amusements. Is a peal of bells required for the parish church? Does the chapel aspire to a steeple? Is a billiard-table wanted by the young men’s society? Are coal and blankets needed by the poor during the winter? The open-handed candidate is only waiting for a hint in order to supply the necessary cheque. Then there are football and cricket clubs to which the candidate is expected to give financial assistance. And give it he does gladly, for, as he says, it is the duty of public men to encourage national sports and pastimes. If the stories one hears be true, it would seem, indeed, as if the old tradition that a vote is a saleable commodity, and that parliamentary elections are held, not so much that the country may be governed in accordance with the wishes of the people as that the constituency may profit financially in one way or another by the return of a representative, still to some extent survives. It is even said that impudent

individual demands are made on the purse of the candidate. They range from five shillings for getting a voter's clothes or tools out of pawn to a five-pound note for sending an invalid supporter to the seaside.

But these attempts to blackmail the candidate are, when all is said and done, exceedingly rare. According as the franchise has been broadened, as the property qualification for the vote has been reduced, the purer have elections become. This is due to some extent partly to the fear of the law against corrupt and illegal practices, and partly to the size of the constituencies, which are now so large that the purchase of a sufficient number of votes to decide the issue is beyond the capacity of most purses. But I think it is more due to the sturdy pride and self-respect of the new electors, the working classes generally, as well as their sense of public duty, which have put an end to the old petitional extension of hands for doles in return for votes. Happily, there is no gainsaying the seriousness and responsibility with which, on the whole, the franchise is now exercised. Taking them all in all, the voters go to the polling booths animated by a fine public spirit—respect for the Constitution, devotion to the State—which it is not too much to say is aroused and kept purely aflame by their different political convictions, anti without a thought of individual gain.

Moreover, Party organization makes a representative largely independent, not only of the local whims and caprices of his constituency, but of any section of the electors who may look for favours in return for their support. The representative may occasionally be hard pressed by local interests, but as a rule these are regarded as subsidiary to Party considerations, to the supreme purpose of each Party to obtain control of the machinery of Government. Therefore the secret of success in the wooing of the electors to-day is not the distribution of blankets or billiard-tables. It might perhaps be said that it is not even wit, wisdom and eloquence in the candidate—though, of course, these possessions greatly count—much less complete independence of Party in public affairs. It is adherence to one Party ticket or the other; it is agreement with the Party opinions of the majority of the constituency. The victorious candidate does not always owe his election to his personal success in turning the majority of the voters round to his side. As a rule, his election means simply that he has had the good fortune to present himself to a constituency which, in the main, was already in

agreement with his political opinions. And instead of five-pound notes, he is expected to distribute only Party promises and pledges.

CHAPTER III

A NEW PARLIAMENT IN THE MAKING

1

“Register, register, register!” Such was the emphasized advice which Sir Robert Peel gave to his Tory followers so long ago as 1837. At that time Party organization as we now understand it was unknown, and each elector had to see for himself that he got on the register. The motto of all political Parties in these days of thorough organization is more than ever, “Register, register, register!” For when the General Election comes the fate of Parties is decided beforehand by the extent to which their respective adherents have got on the register of voters. The Party complexion of the successful candidate in any constituency is always a reflection of the predominant political colour of the register of voters.

The preparation of the register of voters, which was first provided for by the Reform Act of 1832, is the duty of the local authorities, and is discharged, under the Representation of the People Act, 1918, at the public expense, one-half being paid out of the local rates and the other out of the National Exchequer. The registration officers are the town clerk in borough divisions, and the clerk of the county council in county divisions. The qualifications for a vote are, for men, twenty-one years of age and six months’ residence as a householder or lodger, or occupation of business premises; and for women, thirty years of age, possessing herself the local government franchise by reason of six months’ ownership or tenancy of land or premises in her own right, or being the wife of a local government elector. Voters’ lists are first compiled by the registration officers from the rate-books, supplemented by a house-to-house inquiry to get the names of householders whose rates are paid through the landlord and of persons qualified as wives or lodgers. Printed copies of these provisional or draft lists are exhibited for public reference in the town or county halls, post offices, public libraries, and at the doors of churches and chapels in each

constituency. This is done to afford all concerned an opportunity of seeing whether they are on the lists, and, if necessary, of giving notice to the returning officer of claims to make corrections or additions.

It is curious what little attention is given to these huge and unwieldy bundles of printed matter. Few voters are moved to examine them. Small boys take a real interest in them, and that is usually of an impish and destructive kind. Otherwise the lists are too often left neglected. The average man apparently never troubles himself about his vote until a contest arises in his constituency or the General Election approaches. There seems to be in his mind the supposition that it is the duty of some person or some body—he frequently knows not who or what—to see that he shall be in the position to vote when the time comes for the exercise of this privilege of his citizenship. And in a sense the average man is right. There is a person keenly anxious that he should get the vote to which he is entitled—the local agent of the Conservative, Liberal, or Labour Party.

To this most important branch of political work the central offices of the great political organizations give the closest attention. At one time large sums of money were spent in registration, provided partly from the funds of the central offices, and partly by the sitting Members, to maintain their interest, as it was called, or by prospective candidates of other politics who were “nursing” constituencies. No sooner did a stranger come to reside in a constituency—especially where Parties are somewhat evenly balanced, and where, in consequence, the rival Party organizations were highly active—than he was waited upon by the Party canvassers to ascertain his political opinions. The local organization of the Party to which he gave adhesion saw that his name duly appeared on the register of voters. That is so to some extent yet, though it is not carried to the same degree of Party competition as formerly. The Representation of the People Act, 1918, lifted registration above being a mere wrangle between rival political agents over the body of the claimant to a vote, by establishing the principle that it was the business of the State to see that every qualified person was put on the register of voters, despite the disfranchising activity of the Party agents and the ignorance or apathy of the individual citizen. Each Party now confines its operations to seeing that qualified voters of its own political colour are put on the register and kept there. And it must be said that as the result of their

competing watchfulness a register as complete and accurate as possible is usually obtained.

The Representation of the People Act, 1918, also reformed the procedure of the courts for correcting and amending the voters' lists and passing them finally as the register of voters. Formerly these courts were presided over by revising barristers who were lawyers of not less than seven years' standing appointed by the senior Judge of the summer assizes for the constituencies within his circuit, and were paid 200 guineas each for deciding claims and objections. The political Parties used to be represented in the revision courts by their agents, who left nothing undone to put on the register as many as possible of their own supporters, and to put off as many as possible of their opponents. Since 1918 the revision of the lists has been done by the town clerks, or the clerks of the county councils, as registration officers. I saw some of the reformed revision courts at work in London for the first time in 1918. The procedure was quite simple. The town clerk sat at the head of the table with the voters' lists before him, and the overseer by his side to help him in his duties. At the table also were the agents of the local Party organizations. The lists were gone through. Errors in the spelling of names or the numbering of residences were corrected; duplicate entries were struck out. It was all done smoothly and rapidly. There was none of the old contention between the Party agents for the insertion of this name or the omission of that which I frequently had to listen to in the old revision courts. Claims were numerous, and the disposition was to allow them. On the other hand, the objections were few, and were mostly formal. When the full register of voters for each division is printed a copy is to be seen and consulted at the office of the registration officer of the division—the town hall or the county council hall. The part of the register relating to each unit of the division, ward, or district is hung in local post offices, the public libraries and church porches.

Everything is now in readiness for the dissolution of Parliament. The two Houses of Lords and Commons are dissolved by Royal Proclamation issued by the King "by and with the advice of Our Privy Council" (which means the Ministers) and under the Great Seal of the United Kingdom. In order to keep the existence of Parliament as nearly continuous as possible, a new

Parliament is summoned at the same moment that the old is dissolved. Hence in the Royal Proclamation the Sovereign declares his desire to meet as soon as may be his people, and to have their advice in Parliament, and accordingly requires the Lord Chancellors of Great Britain and Ireland to issue forthwith the writs for causing the Lords spiritual and temporal and Commons who are to serve in the said Parliament to be duly returned and give their attendance. Thereupon the machinery of a General Election is put into motion by the Clerk of the Crown in Chancery (an officer of the Crown in attendance upon the Lord Chancellor in Parliament, with offices in the precincts of the House of Lords), and does not cease working until the two Houses are again constituted and in session.

Various kinds of writs are issued from the Crown Office. There are the writs of summons to attend in Parliament, which are sent to the temporal and spiritual peers. There are three classes of peerages which carry an hereditary right to a seat in the House of Lords—peerages of England created before 1707; peerages of Great Britain, created between the Union with Scotland in 1707 and the Union with Ireland in 1801; and peerages of the United Kingdom created since 1801. The twenty-six Bishops who hold peerages by right of office and the twenty-eight Irish representative peers who are elected for life by the peerage of Ireland also receive writs, but sixteen Scottish representative peers elected for each Parliament by the peerage of Scotland assembled at Holyrood House, Edinburgh, do not. However, the writs with which we are now more particularly concerned are those for the election of the Commons of Great Britain. They are sent by the Clerk of the Crown to the returning officers of the constituencies—in county areas the sheriffs, in urban areas the mayor or chairman of the borough council—commanding them, in the name of the King, to “cause election to be made according to law” of Members to serve in the new Parliament; and “to cause the names of such Members, when so elected, whether they be present or absent, to be certified to us in Our Chancery without delay.” The writs for a General Election are, in fact, always prepared in the Crown Office and ready to be issued in case there might be any sudden dissolution of Parliament before it has run its prescribed term of five years. They are printed on parchment in imitation copper-plate handwriting, with blanks for names and dates to be filled in by a penman, and are oblong in shape, about 15 inches across by 12 inches in length.

Years ago the transmission of the writs was a dignified and onerous and also a profitable duty. Messengers of the Great Seal, as they were called, were despatched through the country post-haste with the writs for personal delivery to the returning officers, and they collected five guineas for a writ for a borough and ten guineas for a writ for a city or a county. Under this system grave irregularities prevailed. Candidates schemed to get early possession of the writs in order to forestall, by hastening the election, any threatened opposition; and the Messengers of the Great Seal, it was said, were disposed to give a writ to the candidate who would pay most for it. But an Act passed in 1813 provided for the conveyance and delivery of the writs through the prosaic but purer agency of the Post Office. Precautions are taken to avoid any chance of their going astray. They are placed in envelopes of strong cartridge paper with a lining of glazed calico, each addressed to the respective returning officer, and are conveyed to the General Post Office, London, by one of the clerks of the Crown Office, designated for this occasion, "Messenger of the Great Seal," who receives from an official appointed by the Postmaster-General a written acknowledgment of the delivery of his precious charge. The writs are then despatched through the first available post as registered letters. With each there is sent an injunction to the postmaster of the place where the returning officer resides to have the writ safely and speedily delivered, and to get a receipt from the returning officer. This receipt the local postmaster transmits to the Postmaster-General, who in turn has the particulars entered in a book which is available for inspection by any person interested. In what is known as the London Metropolitan area, extending into four counties—Middlesex, Surrey, Kent and Essex—personal service of the writs to the returning officers of the divisions by the Messenger of the Great Seal is still in vogue, the messenger travelling in a motor-car instead of on horseback, and demanding no fees for his services.

Nomination day is the same in all constituencies, as provided by the Representation of the People Act, 1918. On the day appointed, the eighth day after the date of the Royal Proclamation, the returning officer attends at the municipal buildings, or the courthouse, within certain fixed hours—usually from 10 a.m. till noon—to receive nominations of candidates. The nomination paper sets out the name, abode, profession or calling of the candidate, and the names and addresses of two registered electors, who propose and second him, and of eight other assenting burgesses. Each

candidate provides himself with several nomination papers, filled up by electors from various classes or sections of the constituency, with a view to show the representative character of his supporters, and also to secure himself from the risk of the nomination being declared null and void by the returning officer owing to some irregularity in the original nomination paper. The Ballot Act requires that the nomination paper must be handed in to the returning officer by the candidate personally, or by his proposer or seconder. At one election the nomination paper was given in by the agent of the candidate, and this was held to be fatal to the nomination. It was a small technical point, and since then it has come to be understood generally by agents of all Parties that no advantage is to be taken of such slips or oversights.

3

Membership of the House of Commons is remarkably free and unrestricted. Under the American Constitution it is necessary for a Member of Congress—whether he sits in the House of Representatives or in the Senate—to reside in the state by which he is returned. There is no such rule in the case of Members of Parliament. It was provided by a statute of Henry V that “knights of the shires and citizens and burgesses should be dwelling and resident” within the constituencies they represented. But this residential qualification had been evaded or fallen into disuse long before 1620, when a committee of the House of Commons recommended its abolition. It was not formally repealed, however, until 1774. The Act (14 Geo. III, C. 58) declared that the laws as to residence, passed in the fifteenth century, “have been found by long usage to be unnecessary and have become obsolete”; and in order to “obviate all doubt that may arise upon the same” it was ordered that the statute book should be cleared of all enactments relating “to the residence of persons to be elected to serve in Parliament.”

In view of the common interests of the country and its complete coherence in social and economic life, it would be idle to limit the electors in their choice of representatives to local residents. Moreover, such a restriction would tend to the exclusion from Parliament of able and distinguished men whose reputation is national rather than local. But one regrettable result of this freedom of selection is that the varying idiosyncrasies of the different parts of the country are no longer reflected,

distinctly and sharply, in the House of Commons. The representatives are not, in many cases, racy of the soil of their constituencies. Each of them is not permeated with the spirit of the place for which he sits—thinking its local thought, speaking its dialect, having its accent on his tongue. A man with an Irish brogue may sit for a London constituency. A South of England man may represent the northernmost constituency in Scotland. This typical Yorkshireman finds a seat in the West of England; that unmistakable Devon man speaks for a place in Lancashire. The manufacturer is returned by an agricultural county; the country squire by an industrial borough. It is true that in the main the representatives of Wales and Scotland are essentially Welsh and Scottish, though less so with respect to Scotland than with respect to the other Celtic fringe. The English membership, which constitutes the vast bulk of the House, is also strong in English characteristics; but the views, feelings and interests of a particular locality are seldom expressed in its voice and with its manner by its representative. Though a local man is still supposed to be, more or less, a strong candidate, in truth local representation in Parliament is fast losing its local character and ceasing to have any local purpose at all under the operation of the Caucus, or the system of rigidly organized political Parties. Members of Parliament are no longer chosen specially to safeguard the local interests of their constituencies. Their chief purpose is to have the country governed and administered by the light of their political principles. This Member is said to sit for Hodgeshire, that other for Cottonopolis. What they really represent, generally speaking, is the Conservative Central Office, or the Liberal Central Office, or the Labour Executive. But while membership of the House of Commons is now thoroughly political, it is, for that very reason, also thoroughly national. “Every Member, though chosen by one particular district, when elected and returned serves for the whole Realm.” So wrote Blackstone, in his *Commentaries on the Laws of England*, about the middle of the eighteenth century. It was, then, perhaps, but a pious aspiration. It is now undoubtedly an accomplished fact, at least in the sense that the representative serves for the whole Realm according to the political principles which he is returned to uphold.

The property qualifications which formerly made a seat in the House of Commons the privilege of the rich were abolished in 1858. At no time was it possible for any man but a man of substantial means to gain access to the House. But it was not till 1711, in the reign of Queen Anne, that an Act was

passed providing that all Members—except the eldest sons of peers and the representatives of the Universities and of Scottish constituencies—must possess an income from land to the extent of £600 a year in the case of a knight of the shire, and of £300 a year in the case of a citizen of a city and a burgess of a borough—the three classes into which Members of the House of Commons were then divided. The enactment was designed to perpetuate the ascendancy in the House of Commons of the country or Tory Party, which they themselves feared was being threatened by the rich manufacturers and traders who were being returned by the cities and towns. Swift described it in the *Examiner* as “the greatest security that was ever contrived for preserving the Constitution, which otherwise might in a little time be wholly at the mercy of the monied interest.”

The law, however, was evaded frequently by fictitious conveyances of property. Any candidate could be required to make a declaration before the returning officer that he possessed the necessary amount of income from land on the application of his rival or of any two electors; and, in order to be ready for this emergency, should it arise, it was the custom for landless men to have transferred to them by relatives or friends on the eve of the election sufficient landed property to qualify, which they returned again to the donors as soon as the election was over. To put a stop to this practice an Act was passed in 1760, during the reign of George II, by which a Member, when he came to the Table of the House of Commons to take the oath of allegiance and sign the roll, had not only to swear that he possessed £600 a year or £300 a year from land—according as he was a knight of the shire or a citizen or burgess—but to provide the Clerk with a schedule setting out in detail the situation and extent of the qualifying property. Even so, membership of the House of Commons was not restricted to the genuine possessors of landed estate. Temporary transfers of property in land notoriously went on all the same. The only difference was that the transfer was now not for the election only but for the life of the Parliament. Landed relatives or friends were still accommodating. The rich but landless man could obtain from his bank a rent-charge on some of the landed property which it possessed in the way of business; and for the man with no great balance at his bankers there were attorneys ready to provide him with the qualification for a fee of 100 guineas. It was well known that those brilliant parliamentarians, Burke, Pitt, Fox and Sheridan, were thus fictitiously qualified one way or another.

But why should the property qualification be restricted to incomes from real estate? Why should not incomes from personal property also qualify? It was inevitable that these questions should be asked insistently and urgently with the increasing rise of wealthy merchants and manufacturers ambitious of taking part in public life. Nevertheless, it was not until 1838—six years after the great Reform Act, which really opened the doors of the House of Commons to the middle classes—that it was provided by a statute passed by the Whig Parliament that general property or professional incomes should also serve to qualify. In all other respects the law remained unchanged. The county Member had still to have an income of £600 a year, the borough Member had still to have an income of £300 a year, and both were still required to swear to their qualifications at the Table of the House and supply particulars to the Clerk.

Twenty years elapsed before the property test for the House of Commons was finally abolished. The year before—that is to say, in 1857—there was a painful parliamentary scandal in connection with the property qualification. The return of Edward Auchmuty Glover for Beverley was petitioned against, and as the result of the trial the election was declared void on the ground that he was not possessed of the qualifying income. Glover was, by order of the House, tried at the Old Bailey for having made a false declaration at the Table that he was qualified. The jury convicted, but recommended the prisoner to mercy, as this was the first prosecution for such an offence, and as it was notorious that declarations as to the possession of the property qualification were loosely made by Members of Parliament. A sentence of three-months' imprisonment as a first-class misdemeanant was, however, imposed. In the following year Locke King—a private Member who cleared the statute book of many obsolete measures—introduced a Bill for the abolition of the property qualification, which, though it encountered considerable opposition in both Houses, went through; and since June, 1858, the penniless man, as well as the landless man, has been eligible for membership of the House of Commons.

From this arises a constitutional anomaly which appears strange indeed. A pauper without a penny in the world, homeless and voteless, may be elected a Member of Parliament, while only a man of property and position, to the extent at least of being a householder or a lodger of six months' standing, and a payer of poor rate, directly or indirectly, is qualified to vote

for a Member of Parliament. Mr. Joseph Chamberlain, in a speech on the franchise laws which I heard him make in the House of Commons in 1895, gave a striking illustration of the absurdity to which the law in practice led. He said that his son, Austen Chamberlain, who gave him the pleasure of his society by residing with him, being neither a householder nor a lodger, was not entitled to the vote; and yet the law not only allowed his disfranchised son to sit in the House of Commons but to become a Member of the Government, he being at the time Civil Lord of the Admiralty. Mr. Austin Chamberlain was subsequently appointed Chancellor of the Exchequer, the greatest and most responsible post in the Government next to that of the Prime Minister; and in the years he was the head of the Department controlling the raising and expenditure of the national taxation—being still unmarried and residing with his father—his name was not to be found on the burgess rolls of the Kingdom in respect of any rating qualification. I find that in the General Election of 1906 Mr. Austen Chamberlain voted in the City of London as a liveryman of the Cordwainers' Company.

4

There are, however, certain disqualifications for Membership of the House of Commons. Aliens cannot compete for a seat. The candidate must either be a natural born British subject or a naturalized foreigner. Colonials and native Indians are, of course, eligible. But any British subject may not be nominated. The candidate must be of the age of twenty-one years. Yet the production of a birth certificate is not required by the returning officer. There are at least two notable instances of "infants" having sat in the House of Commons. Charles James Fox was returned for Midhurst before he was twenty, and Lord John Russell for Tavistock before he was twenty-one. Mental imbecility is a disqualification. It would, perhaps, be too much to say that the candidate is required to be of sound mind and understanding, but he must not obviously be a lunatic or idiot. If he should lose his senses after election his case is provided for by "An Act to amend the law in regard to the vacating of seats in the House of Commons," which was passed in 1886. It enacts that if a Member is committed as a lunatic to any asylum it is the duty of the medical doctor who made the committal and the superintendent of the asylum to report the case without delay to the Speaker. The Speaker then directs the Commissioners of Lunacy to examine

the Member, and if they report that the Member is of unsound mind six months are allowed to elapse, when they again examine and report, and if they still find the Member insane the two reports are laid on the Table of the House, and the seat thereby becomes vacant. Blindness is not a disqualification—not even for the Treasury Bench. There is the remarkable case of Mr. Henry Fawcett, who, in spite of this great physical disability, sat for Hackney, was Postmaster-General in the Gladstone Administration of 1880, and was the originator of the postal order, parcel post, and Post Office annuities. Are deaf and dumb persons disqualified by reason of their physical defects? They are said to be, but as there is no case in point, the matter is somewhat in doubt.

English peers and peers of Great Britain and the United Kingdom are ineligible for election to the House of Commons, being, of course, hereditary Members of the House of Lords. The second Lord Selborne sat as Lord Wolmer in the House of Commons for West Edinburgh, when, on the death of his father in 1895, he succeeded to the peerage. As he desired to remain in the House of Commons, he raised the point that a peer, as such, was not debarred from sitting in that House until he received his writ of summons to the other House as a Lord of Parliament, and declared his intention to be not to make the necessary application for such writ of summons. The House of Commons appointed a Select Committee to inquire into the matter, and on their report that Lord Wolmer had succeeded to a peerage of the United Kingdom the constituency of West Edinburgh was declared to be vacant, and a new writ was at once issued for the election of a Member for the seat. It is the succession to a peerage, and not the receipt of the writ of summons to the House of Lords, which is held to disqualify for membership of the House of Commons. Scottish peers are also precluded. Even those outside the sixteen representative peers of Scotland—elected by the general body of the Scottish peerage to sit for each Parliament in the House of Lords—are ineligible for election to the House of Commons. The Irish peerage is not under this political disability. By the Act of Union between Great Britain and Ireland an Irish peer—providing he is not one of the twenty-eight Irish representative peers elected by the general body of the Irish peerage to sit for life in the House of Lords—may be returned by any constituency in England or Scotland. But he is disqualified for an Irish seat. The most famous instance was that of Lord

Palmerston, who was an Irish peer and sat in the House of Commons for an English constituency for close on sixty years.

Clergymen of the Church of England, of the Church of Scotland, and Roman Catholic priests are disqualified. The statutory exclusion of clergymen from the House of Commons dates from the beginning of the nineteenth century. Until then the question was involved in doubt and uncertainty. It was first raised in a concrete form by the return of the famous Radical parson, Horne Tooke, in 1801 for the nomination borough of Old Sarum. He held no benefice in the Church, but as in law he was still a clerk in Holy Orders it was contended that he was ineligible. A Select Committee appointed to inquire into the precedents reported that they were not sufficiently clear to warrant the exclusion of Tooke; but though he was, accordingly, allowed to retain his seat, an Act was immediately passed which closed the doors of the House of Commons to clergymen of the Established Church and ministers of the Church of Scotland. Church of England parsons who, under the provisions of the Clerical Disabilities Act of 1870, divest themselves of their Orders become thereby eligible for election, and several ex-clergymen have sat in the House of Commons. Roman Catholic priests are expressly incapacitated by a clause of the Emancipation Act of 1829, which admitted Roman Catholic laymen to Parliament. The Act of 1801 does not apply to ministers of dissenting Churches, and they therefore are qualified to sit in the House of Commons.

Office of various kinds is a disqualification. Judges of the High Court and county court judges are ineligible. In the time of the Stuarts a resolution of the House of Commons precluded Judges of the High Court from sitting in Parliament. During the Commonwealth, when the House of Lords was abolished, Sir Matthew Hale and other distinguished Judges sat in the House of Commons. It was not until the passing of the Judicature Act, 1875, that Judges of the High Court came under a statutory disability to sit in the House of Commons. County court judges had already been precluded by an Act passed in 1847. A Recorder may sit in the House of Commons, but not for the city or borough in which he exercises his jurisdiction in criminal matters. The civil servants on the permanent staff of the various Departments of Government are debarred from sitting in the House of Commons. Yet commissioned officers of the Army and Navy are qualified. But Army officers become M.P.'s at the sacrifice of half their pay, though

they remain on the active list. Government contractors for work to be done or goods to be supplied in the public service are ineligible. No returning officer may stand for the place where he is commanded by writ from the Crown Office to hold an election. A bankrupt is disqualified. He may be nominated, but if elected he cannot sit.

But though all property qualifications have been abolished, the aspirant for a seat in Parliament must have money in his purse, or raise it from some other source. The expenses of the returning officer for the provision of polling stations and the fee for his official services were formerly paid by the candidates. If there was no contest, the candidate on nomination paid £25. In the event of a contest the charges were considerably higher. They ran in boroughs from £100 up to £700, and in counties from £150 to £1,000, according to the number of electors on the register, and were apportioned equally between the candidates. As provided by the Representation of the People Act, 1918, the returning officer's expenses are now paid by the Treasury. But each candidate must deposit with his nomination paper a sum of £150, which is returned to him if he wins as soon as he has taken the oath as a Member of Parliament, and even if he loses, provided he obtains more than one-eighth of the votes polled. In all other cases the deposit is, as the Act says, "forfeited to His Majesty," save in University elections, where it is retained by the University. This provision was designed to discourage "freak" candidatures. It costs more to lose than to win an election.

5

Polling at a General Election is held on the one day. It is the ninth day after nomination day, as provided by the Representation of the People Act, 1918. Before the day of polling a group of men wait upon the returning officer of the constituency. They are usually rate-collectors or other officials of the local municipal bodies. Vested by the returning officer with his authority and responsibilities, they are to represent him in the polling booths. Each booth is in charge of a presiding officer, and he is allowed a poll clerk for every 500, or part of 500, electors on his section of the register of voters. The presiding officer and their clerks must not have been employed in any capacity by any of the candidates during a contest.

Each presiding officer and poll clerk signs a declaration in which he undertakes to maintain and to aid in maintaining the secrecy of the voting. They are also told that for any breach of faith in this respect they are liable to six months' imprisonment with hard labour. More than that, another section of the Ballot Act is read by the returning officer which states that if they supply a ballot paper to any unauthorized person, or fraudulently put into the ballot box any paper but the official ballot paper, or destroy any ballot paper, or open, or in any way tamper with the ballot box, they are liable to imprisonment for any term not exceeding two years. "I hope none of you gentlemen will get it," adds the returning officer, indulging in the time-honoured joke of the occasion.

The returning officer may use as a polling booth, free of charge, the rooms of any school which is in receipt of a parliamentary grant, or any building maintained out of the local rates. Failing these, he may hire any other place, with some important exceptions, such as an inn or beerhouse—unless by consent of all the candidates given in writing—or a church, chapel, or other place of public worship. The polling booth must be opened at eight o'clock in the morning on the day of the election. It is the duty of the presiding officer and his clerks to be there at least a quarter of an hour earlier. The ballot box—made of steel, enamelled in black, with a slot in the lid—is already in the booth. The presiding officer finds inside the box the ballot papers, also pencils, pens, blotting-paper, drawing pins, red tape and sealing-wax, and copies of the Old and New Testament for administering the oath should occasion for it arise. There are also copies of so much of the register of voters as applies to the district for which the polling booth is intended. He also finds in the box that which is guarded with the most jealous care—the official mark for the stamping of the ballot papers. The returning officer is bound to keep the form of this stamp absolutely secret until the morning of the poll. It must not be a stamp that has been used at elections for the same constituency during the preceding seven years. This official mark may consist of any device—a letter of the alphabet, a cross, or a circle—which can be stamped upon the ballot paper. No ballot paper without this identification is counted. Owing to these precautions it is absolutely impossible for ballot papers to be surreptitiously printed, marked in favour of one of the candidates, and slipped into the ballot box as genuine votes. Then the presiding officer shows the empty ballot box to those present in the station in an official capacity, so that they can testify

that when the polling began there was nothing in it, and proceeds to lock it and seal it in such a manner that it cannot again be opened without breaking the seal. The slit of the ballot box must be so constructed that the voting papers dropped through it cannot be withdrawn.

All is now ready for the polling. In the booth are those only who are authorized to be present. Each candidate is represented by a polling agent to look after his interest. But the complete control of the booth lies in the presiding officer, and there are constables present to carry out his commands. He can have removed from the booth any person who misconducts himself or who disputes his lawful orders. He may in certain circumstances give a disorderly person into custody. But he must be careful that any action he may take does not prevent a person entitled to vote from voting.

At eight o'clock sharp the doors of the polling station are opened. Usually a number of electors are waiting outside, some to compete for the empty distinction of recording the first vote, and some anxious to discharge the task or duty before going about the day's business. The official register sets forth the name, address, number, and qualification of every man and woman in the district entitled to vote. When the poll clerk is satisfied with the identity of the applicant, the white ballot paper is stamped with the official mark, back and front, and handed to the elector, and a short horizontal line or tick is drawn against his name on the register to show that he has voted. The ballot papers are made up like cheque-books, each paper having a counterfoil, and are numbered consecutively on the back. As the poll clerk gives a ballot paper to an elector he writes on the counterfoil the elector's number on the register. Thus the vote of every elector can be traced should any circumstances arise to make this necessary.

The voter, provided with the ballot paper, retires to a compartment where, alone and aloof and screened from observation, he or she places his or her two pencil strokes, the simple "X," and that only, in the space to the right of the name of the candidate by whom he or she wishes to be represented in Parliament. Then, folding up the ballot paper so as to conceal the mark, but leaving the official stamp exposed in order to satisfy the presiding officer or the poll clerk, by a cursory glance, that it is the genuine paper, the voter drops it into the ballot box through the slit in the lid, and with a pleasant sense of self-importance immediately quits the polling station.

But the polling does not always proceed with this easy and monotonous regularity. Not infrequently a boisterous elector enters to whom the solemnity of the booth or the secrecy of the ballot makes no appeal. "Your name and address, please," says the poll clerk. "My name's Ted Lillywhite, and no mistake, and I live at 70 Carpenter Street, and don't you forget it," answers the elector stiffly. He gets the ballot paper, and without any attempt at concealment makes a big sprawling cross opposite the name of Smith, and, as he drops the paper with a flourish into the ballot box, cries: "There! I've voted for Smith, good man and true, and I'd like all the world to know it." Another man comes in only to find that despite the vigilance of the candidates' polling agents—or, it may be, with the connivance of one or other of them—someone has already voted in his name. The man is asked on oath by the presiding officer if he is the person he claims to be, and if he swears that he is, a pink ballot paper officially known as a "tendered vote" is given him. The vote, however, is not put into the ballot box, but is given to the presiding officer, who places it in an envelope specially provided for the purpose. All particulars of the voter—name, number on the register, and any remarks the presiding officer may have to make—are entered on what is termed the tendered votes list, which is delivered at the close of the poll to the returning officer. There is also the clumsy voter who spoils his ballot paper. The presiding officer may, if it be proved to his satisfaction that the paper was inadvertently spoiled, cancel it and supply the voter with another. There is the elector who is blind, or has no hands, or is incapacitated by any physical cause from marking the ballot paper himself. There is the elector who declares his inability to read. There is also the elector who, being a Jew, is precluded by his religious belief from marking his vote himself should the polling be on a Saturday, which is his Sabbath. These are dealt with alike. The presiding officer, in the presence of the candidates' agents, marks the ballot paper in accordance with the wishes of the voter and places it in the ballot box. The greatest problem of all that confronts the presiding officer is the recording of the vote of a deaf and dumb elector who can neither read nor write. A list of the votes so marked, and the reasons for so marking them, must be kept by the presiding officer and supplied to the returning officer. The presiding officer may also put questions to ascertain whether a person who asks for a ballot paper has already voted in other constituencies in which he is entitled to vote. A man may vote by reason of a residence qualification in one constituency and give one more vote in

another constituency where he is registered for a business premises qualification, or as a University elector. A woman can vote in only one constituency where she is registered by virtue of her own or her husband's local government qualification, but she can vote also at a University, if she is on its register.

The poll closes at eight or nine o'clock. Ballot papers cannot be given out after that time. But any voters who have received papers before the hour has struck may put their votes into the ballot box. The presiding officer, in the presence of the agents of the candidates, then stops up the slot of the ballot box and seals it, so as to prevent the insertion of any more voting papers. The ballot box, securely locked, bound in red tape and sealed, is then brought by the presiding officer to the place appointed for the counting of the votes, which is usually the town hall or county hall, and is delivered up to the returning officer, together with a statement in writing of the number of ballot papers supplied to the polling station, and accounting for them under the heads of "used," "unused," and "spoilt," and also the counterfoils of the used ballot papers, the unused ballot papers, the marked copies of the register of voters, and the list of tendered votes, all of which had been carefully made up in separate parcels and sealed before leaving the polling station.

CHAPTER IV

THE COUNTRY'S VERDICT

1

How simple and decorous is a parliamentary election nowadays compared with the tumultuous polling when voting was open, before the Ballot Act of 1872! In remote times an election was decided by a show of hands at a public meeting of the electors. The right of a candidate to challenge the decision on a show of hands and demand a poll was established in the reign of James I. However, it continued to be the practice for the sheriff or returning officer on the day of nomination still to ask for a show of hands on behalf of each of the candidates, and to declare for the one in whose support the larger number of hands had been uplifted. But as the majority of the crowd were usually non-voters, the demand for a poll by the other candidate followed as a matter of course. Formerly the election might last for a month, and the voting stations might be kept open until late into the night. Early in the nineteenth century a limit of fifteen days was fixed for the polling. The Reform Act of 1832 further reduced the period to two days, and provided also that the voting should take place between the hours of nine and four o'clock, with the option of opening an hour earlier on the second day, if the candidates agreed.

But on the polling days—whether forty, fifteen, or two—disorder and violence were common throughout the country at the General Election. Indeed, one of the first acts of a candidate was to have organized a mob of bludgeon men to protect himself and his adherents during the campaign, and also, of course, to intimidate the supporters of his opponent. Between the rival mobs the constituency was kept in a state of excitement and uproar during the polling. The most trying part of the contest was the ordeal of the hustings. These were temporary platforms erected in the square, at the market cross, or in some other open place of the borough or chief county town, where the candidates were proposed and seconded. The speeches

were usually little better than mere dumb show. Each of the rival politicians made determined but usually vain efforts to convince the shrieking mob, amid showers of stones, mud, rotten eggs and dead cats, of the sublime virtue of his opinions, or of the utter depravity of the views of his opponent. The sort of item that was common in a candidate's election bill before the Ballot Act was this: "To the employment of 200 men to obtain a hearing, 460s." These men believed that the best way "to obtain a hearing" for their employer was to prevent his rival being heard; and as the hired mob on the other side was likewise animated by the same conviction, both candidates were equally shouted down. There is, for instance, the evidence of Bernal Osborne, a famous wit and Member of the House of Commons. "The honourable gentleman talked about the voice of the electors," he said in a debate on old open-voting ways. "As if the individual voice of an elector was ever heard at a nomination, and as if there was not a general agreement to roar, to hiss, and become debased with drink! The true-born Englishman is said to delight in that day. Now, who are the true-born Englishmen?" he asked; and answered, "Why, the representatives of muscular Christianity—prize-fighters and people of that sort. I have spent as much money in retaining the services of those gentlemen as anybody in this House. One of my most efficient supporters in Nottingham was a man who was always clothed as a clergyman of the Church of England, but who was really an ex-champion of England, Bendigo by name."

As an illustration of the treatment a candidate had to expect at the hustings, and of the style of speaking which was thought appropriate to the occasion, listen to Disraeli addressing the Buckinghamshire electors at Aylesbury. Received with a cry of "You look rather white," he thus retorted: "I can tell you that it is at least not the white feather I show. [Laughter and cheers, mixed with howling.] If any member of the melodious company of owls [loud laughter] wishes to address you after me, I hope that you will give him a fair hearing. [Interruption.] I can tell the honourable gentleman who makes this interruption that if it were possible for him to express the slightest common sense in decent language, I should be ready to hear him. In the meantime I must say, from the symptoms of intelligence which he has presented to us to-day, I hope he is not one whom I number amongst my supporters." (Cheers and laughter.) Disraeli, still directing his attention to his opponents, further said: "Your most brilliant argument is a groan, and your happiest repartee a hiss." A voice then exclaimed: "Speak quick, speak

quick!" for he was a slow speaker, and he retorted: "It is very easy for you to speak quick, when you only utter a stupid monosyllable; but when I speak I must measure my words. [Loud cheers and laughter]. I have to open your great thick head. [Laughter]. What I speak is to enlighten you. If I bawl like you, you will leave this place as ignorant as you entered it." (Cheers and laughter.)

Another picture of a scene at the hustings which I call up from my reading on the subject is of a painful kind. It was in the year 1865, when there was a contest for Westminster, and from the hustings erected in Covent Garden, at the base of St. Paul's Church, John Stuart Mill, the Radical candidate, addressed the crowd. In his pamphlet, *Thoughts on Parliamentary Reform*, Mill bluntly said that the working classes, though ashamed of lying, were yet generally liars. This statement was printed on a placard by Mill's opponent and aroused against Mill the animosity of the working men of the division. At one meeting he was asked whether he had really written such a thing. He at once answered, "I did," and scarcely were the words out of his mouth when, as he states in his *Autobiography*, vehement applause burst forth. The working men present were, according to Mill, so used to equivocation and evasion, that this direct avowal took their fancy, and instead of being affronted, they concluded at once that Mill was a person whom they could trust. But Mill does not mention the hostile reception he got when he appeared on the hustings. Before the speaking commenced a member of the crowd asked an enthusiastic supporter of Mill which of the gentlemen on the hustings was the candidate. "There," exclaimed the admirer, as he pointed at the author of the treatise *On Liberty*, "there is the great man." "Then," said the other, taking a dead cat from under his coat and flinging it at Mill, "let him take that." When Mill afterwards spoke he was pelted by the porters of Covent Garden with the garbage of the market.

The mob influence exercised at elections—often the determining influence—might be intimidatory, but it was not always venal. These unsavoury arguments, dead cats and rotten apples, were at times the expression of sincere political convictions on the part of people without votes. As it was only by the use of violence in some form or another that non-voters could have weight in public affairs, the Chartists were opposed to the introduction of secret voting so long as the franchise was restricted to

the comparatively few. They admitted that the ballot would be an excellent thing if universal suffrage were established under it. Until then they avowed their determination to see to it that the unfranchised part of public opinion should not be deprived of the chance of influencing the electors, under a system of open voting, by the methods of blacking eyes and smashing windows.

2

To convince Parliament of the beneficence of secret voting at elections took forty years of unremitting advocacy, though meanwhile the franchise had been enlarged. Grote, the historian of Greece, who sat as a Radical for the City of London from 1832 to 1841, annually moved a resolution in favour of the ballot. It was always rejected. On the retirement of Grote into private life in 1841 Henry Berkeley continued to move the motion every year, with the same want of success until 1851, when, despite the opposition of the then Whig Government, headed by Lord John Russell, he carried it by a majority of thirty-seven. Nevertheless, twenty-one years were yet to elapse before the ballot was finally established by Act of Parliament. A Select Committee of the House of Commons, which sat in 1868 to inquire into corrupt practices at elections, reported in favour of the ballot as a measure likely to conduce to the tranquillity, purity, and freedom of contests. The undue influence which was exercised in various forms at open elections is strikingly set forth in the evidence taken by that committee. Its most common shape was the direct physical terrorism exercised by hired mobs. There was also the more subtle intimidation of tenants by landlords, of workmen by employers, of servants by masters, of tradesmen and shopkeepers by customers, and, more reprehensible still, the undue spiritual influence of ministers of religion, who, in the guidance of their flocks as to the way they should vote, did not scruple to invoke the terrors of the world to come.

The report of the Select Committee, which appeared in 1869, greatly helped to turn public opinion in favour of the ballot. In the following year W. E. Forster, a Member of the then Liberal Government, with Gladstone as Prime Minister, introduced a Bill abolishing nominations at the hustings and introducing vote by ballot. It passed through the House of Commons, only to be rejected by the House of Lords by 97 votes to 48, on the motion

of the Earl of Shaftesbury. The arguments against the measure had been set forth long before by John Stuart Mill, one of the ablest and most distinguished opponents of secret voting. As the franchise was a public trust, confided to a limited number of the community, the general public, for whose benefit it was exercised, were entitled to see how it was used, openly and in the light of day. The ballot, therefore, meant power without responsibility. It was also cowardly and skulking. Under its shelter the elector was likely to fall into the temptation of casting a mean and dishonest vote for his own benefit as an individual, or for that of the class to which he belonged. The Bill was reintroduced in the following session of 1872. It passed again through the Commons, was sent up to the Lords, and, despite the renewed opposition of Lord Shaftesbury, was carried to the Statute Book. Since then the elector has been free to vote as he pleased, according to the dictates of his conscience, his political convictions, his foolish whims and his wayward fancies without anyone knowing a bit about it. The Ballot Act was not, however, made the permanent law of the land. In the House of Lords an amendment limiting the operation of the Bill to eight years was accepted by the Government. Therefore, from 1880 the Ballot Act had to be renewed every year by being included in the Expiring Laws Continuance Act—otherwise the measure would have had to be reintroduced and carried through all its stages in both Houses—until 1918, when a clause of the Representation of the People Act transformed it from an annual into a permanent statute. Yet there is one election to which the Ballot Act does not apply—an election for the representation of a University. During the time allowed for the polling—about five days—electors can vote either personally or by proxy papers, which, having been signed before a justice of the peace, are sent by post to the University, and in either case the votes are openly declared before the presiding officer.

In the *Life of Grote* there is recorded an interesting conversation between him and his wife on the subject of secret voting after the Ballot Act had been passed. “You will feel great satisfaction at seeing your once favourite measure triumph over all obstacles,” said Mrs. Grote to her husband one morning at breakfast. “Since the wide expansion of the voting element, I confess that the value of the ballot has sunk in my estimation,” the historian replied. “I don’t, in fact, think the electors will be affected by it one way or another, so far as Party interests are concerned.” “Still,” said the wife, “you will at all events get at the genuine preference of the constituency.” “No

doubt,” said Grote; “but then, again, I have come to perceive that the choice between one man and another among the English people signifies less than I used formerly to think it did. The English mind is much of one pattern, take whatsoever class you will. The same favourite prejudices, amiable and otherwise; the same antipathies, coupled with ill-regulated though benevolent efforts to eradicate human evils, are wellnigh universal. A House of Commons cannot afford to be above its own constituents in intelligence, knowledge, or patriotism.” But this must be said—thanks to the ballot, all parties are united in eliminating from the stock of political arguments rotten eggs, stale fish, dead cats, over-ripe fruit and decaying vegetables, and, in agreeing that in electioneering it is better to count heads than to break them.

3

One of the most memorable of General Elections under the Ballot Act surely was that held in December, 1918, following the passing of the Representation of the People Act and the close of the World War, when women voted for the first time. The scenes I saw in London on the polling day, that historic Saturday, made a profound impression on me. Women in thousands flocked to the booths as well as men. Many wives and mothers of the working class brought their babies in perambulators. What did they think of it all? They were not subdued in demeanour and thoughtful, in keeping with the greatness and gravity of the occasion. On the contrary, they were joking and laughing, as if quite elated at the notion that they should be voting for a Member of Parliament—and a Parliament in which, as it turned out, a representative of their own sex was to sit for the first time in the person of Lady Astor, of the Sutton Division of Plymouth.

Even so, was not this the last word in ordered and organized democracy? Could there be, I asked myself, a more advanced and striking manifestation of the free citizenship in the most perfectly planned Republic? Then I wondered what the Barons of Magna Charta—whose statues I have so often looked upon in the House of Lords—would have thought of it, those feudal lords who, over 600 years before, extracted from an absolute King the first great enunciation of constitutional liberty? Nay, why go back so far and remotely? What would the working men who, as a protest against the denial of electoral reform in July, 1866, tore down the railings of Hyde Park, have thought of it? What they wanted was the extension of the franchise to male

householders. They could never have imagined that their grand-daughters would have that which they themselves did not then possess—the vote for a Parliament the least fettered in the world by a written Constitution and the most omnipotent in the exercise of its legislative powers.

4

The counting of the votes takes place on the night of the polling day, or the next day as the returning officer may appoint. In county constituencies, where the polling stations are many miles apart, it is impossible to commence counting the votes until the next morning; but in boroughs, where all the ballot boxes are delivered up to the returning officer within a quarter, or at most half an hour, of the close of the poll at 8 or 9 p.m., the counting is got through as a rule by eleven o'clock. No person may be present at the counting of the votes besides the returning officer and his counting clerks, the candidates and their agents, except by the authority of the returning officer, and everyone present is placed under an obligation to maintain, and aid in maintaining, the secrecy of the voting.

The first thing that is done is to check the number of votes in each ballot box with the return furnished by the presiding officer of the number of ballot papers issued at the polling booth, in order to see if they tally. All the ballot papers from all the boxes are then mixed up together in one great heap, so as to make it impossible to find out how the voting went in any particular polling district. The ballot papers are next placed on the table faces upward, so that the number printed in each case on the back—the only thing which might give a clue to the identification of a voter—shall not be seen. Any person who attempts to obtain the number of a voting paper in violation of the secrecy of the ballot is liable to six months' imprisonment. The ballot papers are then distributed among the large staff of counting clerks seated at scattered tables in the room, and the counting of the votes recorded for the several candidates begins. There are two ways of counting in vogue. In one—the London way—the clerks are divided into pairs. One clerk is provided with a sheet of foolscap containing the names of the candidates with a number of squares under each, and the other clerk goes through the ballot papers calling out the name of the candidate opposite to which the voter has placed his cross. If the vote is given for "Robinson," a stroke is inserted in one of the squares under Robinson's name; if it is given

for "Smith," a stroke is put in one of the squares under the name of Smith. Provision is made on each sheet for 250 votes to be thus counted, and when either of the candidates has received that number the figures for each are put at the foot—"Robinson, 250," "Smith, 76"—and the sheet is passed on to the returning officer. Under the other system of counting, each clerk places on the table in front of him the ballot papers for each candidate in separate piles, makes them up into packets of fifty, placing an elastic band round each, and hands them over to the returning officer.

The work of the counting clerks is closely watched by an agent representing each of the candidates. All votes about which there is any doubt are referred to the returning officer. Any paper which has on it any writing or mark by which the voter could be identified is rejected. Some electors are so vehemently partisan that, not content with making the simple "X," they add personal remarks about the candidates or comments on the political issues as the strong feelings of the moment prompt them. I remember at one election where only Liberal and Socialist candidates stood many angry Conservatives wrote across their ballot papers such phrases as "Betwixt the devil and the deep sea," and "God help England!" Every voting paper so defaced is cast aside. Any paper which contains votes for more candidates than the elector is entitled to vote for is also void. There are also voting papers about which hang the element of uncertainty. On some the "X" is made on the candidate's name; on others it commences in one square and ends in another. Other electors, again, impishly desirous no doubt of puzzling everybody concerned, make their "X" meet exactly on the line which separates the names of the candidates. Each paper thus irregularly marked is judged on its own merits, but the guiding rule is that the vote is given to the candidate whose name appears within that section of the voting paper where the lines of the voter's cross touch each other.

The candidates are also present in the room with some of their leading and more intimate supporters, and often with their wives, awaiting with such composure as they can command the result which is to realize or disappoint their hopes and ambitions. Sometimes the candidates never get into personal touch with one another until they meet in the counting-room. And though Party feeling usually runs high, those contests are not without their charming amenities. It was on such an occasion that Thackeray was paid what he thought was the greatest compliment of his life. He contested

Oxford in the Liberal interest in 1857, and, meeting his opponent, Edward Cardwell, he remarked: "Well, I hope the best man will win." "I hope not," replied the Tory candidate. Notwithstanding all the care of the officials, aided by the vigilance of the candidates' agents, mistakes are occasionally made, and, what is more annoying and perplexing, are not discovered until after the result of the count is supposed to have been ascertained, though not officially declared in the room. A bundle of counted ballot papers may fall unnoticed under the table, or may be erroneously placed in the batch of the wrong candidate. Surely no disappointment more bitter can befall a man than that of the candidate who within five or ten minutes of his feeling certain of being duly returned to Parliament finds there has been an error in the counting, and that he has really been beaten after all.

The returning officer cannot vote at the election; but should there be a tie between the candidates he may, if a registered elector, give a casting vote. At a by-election for South Northumberland in April, 1878, the candidates, Albert Grey (afterwards Earl Grey) and Edward Ridley (subsequently a Judge of the High Court), polled the same number of votes—2,912—a thing unprecedented in the case of a big county constituency. The sheriff declined to give a casting vote as returning officer, although himself an elector, preferring to make a double return by declaring both candidates elected. A few days later Mr. Grey and Mr. Ridley presented themselves at the Table of the House of Commons, the oaths were administered to them, both signed the roll, and both duly took their seats. They were not, however, allowed to vote. In the scrutiny which followed it was found that a few of the voting papers were spoiled, and Mr. Ridley, having a majority of the correct votes, was awarded the seat.

So, too, in 1886, Mr. Addison, Q.C., was returned in the Conservative interest for Ashton-under-Lyne by the casting vote of the returning officer, who was also chief magistrate of the town. Mr. Addison sat in the House of Commons for six years, according to the jocular description of his opponents, as "the Hon. Member for the Mayor of Ashton-under-Lyne." In the event of a tie, the casting vote of the returning officer is only operative if exercised on the declaration of the poll. In October, 1892, at a by-election for the Cirencester division of Gloucester, Colonel Chesters Master, the Conservative candidate, was declared Member, having defeated Mr. Harry Lawson (afterwards Lord Burnham), the Liberal candidate, by a majority of

three. A scrutiny of votes was demanded by Mr. Lawson, and this showed that both candidates had polled the same number of votes. The sheriff, having ceased to be returning officer on the declaration of the poll, could not give a casting vote, and accordingly there had to be a new election, when Mr. Lawson was elected by a majority of upwards of 100.

Such awkward incidents, however, are very uncommon. The returning officer, at the conclusion of the count, has usually no other duty to discharge than publicly to declare the candidate to whom the majority of votes was given duly elected to Parliament, and he sends forthwith the return to the writ of election, bearing the name of the successful candidate, to the Clerk of the Crown at Westminster. The voting papers, the counterfoils, the marked copies of the register of voters, and all other official documents relating to the election, are also made up in a bag and sealed by the returning officer and forwarded to the Crown Office. To give an idea of the enormous amount of official papers used at a General Election, I have been told at the Crown Office that they weigh from 22 to 25 tons. In case there might be a demand for a scrutiny and recount of the voting papers in any constituency, or a petition presented to declare the return null and void under the Corrupt Practices Act, all these documents are stored in the cellars of the Crown Office for a year and a day before they are destroyed. The writs are kept by the Clerk of the Crown until the Parliament is dissolved, when they are sent to the Public Record Office, where they are preserved.

5

A candidate declared elected by the returning officer, but whose return is questioned by petition, takes the oath and his seat in the House of Commons and serves in the usual course until the report of the two Judges who tried the petition is delivered to the Speaker and is by him communicated to the House. Jesse Collings, in January, 1886, as Member for Ipswich, while a petition against his return was pending, which resulted in his being unseated for reasons for which he was personally blameless, moved and carried the small holdings resolution, the famous “three acres and a cow,” which defeated Lord Salisbury’s Government and brought back to power again the Liberals under Gladstone. I remember a petition arising out of a contest at Exeter in the General Election of 1910 which had a

curious result. The Liberal candidate was declared returned by a majority of four. The Judges who tried the petition disallowed five votes for the Liberal given by five men who were held to have been unlawfully employed as bill distributors during the election, and accordingly the seat was given to the Conservative candidate by a majority of one. On the day the decision of the Judges was announced by the Speaker I witnessed a very uncommon incident. This was the appearance of the wigged and gowned Clerk of the Crown, bringing the return to the writ for the Exeter election, and at the Table, in the presence of the Speaker and the Commons, amending the return by substituting “H. E. Duke” for “H. St. Maur” as the Member to serve for the borough. Immediately afterwards Mr. Duke took his seat in the House.

6

It is a long and elaborate process, this obtaining of the Verdict of the country; and rightly so, having regard to the momentousness of the issues that may be at stake. The philosophy expressed at a General Election may not always be thought very high or noble. Often it has but root in an idea of material well-being—that men and women who labour with their hands may enjoy a little more of the pleasures of life before the time comes for them to lie down and die. And that is a most excellent thing, and well worth striving for. But it is quite possible to have inaugurated at a General Election a mighty movement towards an entirely new conception or order of life, like the foundation of Christianity, the Reformation, or the French Revolution, and bring it about by the peaceful processes of parliamentary evolution. To say the least, a Nation can unitedly rise to a height of great glory by marching to the polling booths, and, by its votes, securing the success of a high moral cause. Anyway, nothing should be done to detract from the importance and impressiveness of the General Election. The one substitute for the ballot box that remains in this age is the match-box, not only as the symbol but as the instrument of Revolution by fire and blood, with the aid of a tin of petrol.

CHAPTER V
TRIALS AND TRIBULATIONS OF THE M.P.

1

At every General Election there is seen the old and familiar, but ever curious and interesting, spectacle of about twelve or thirteen hundred men—who, though selected at random from the general mass, yet vary so much in position, ability and temperament that they may be said to reflect collectively the very image of the Nation—engaged in wooing the constituencies which have at their disposal the 707 seats in the House of Commons. What are the irresistible allurements that compel this large body of men, the majority of them actively engaged every day in business or professional life, to spend their money and time, their strength and temper, in order that they may be given the chance of making a gift of their professional capacity and business experience to the Nation, expecting in return, as regards the mass of them, neither fee nor reward beyond a salary of £400 a year?

Macaulay on the subject is well worth giving ear to. Writing to his sister Hannah (subsequently Lady Trevelyan) on June 17, 1833, after a few years' experience of the House of Commons, he says:

I begin to wonder what the fascination is which attracts men, who could sit over their tea and their book in their own cool, quiet room, to breathe bad air, hear bad speeches, lounge up and down the long gallery, and doze uneasily on the green benches till three in the morning. Thank God, these luxuries are not necessary for me. My pen is sufficient for my support, and my sister's company is sufficient for my happiness. Only let me see her well and cheerful, and let offices in Government and seats in Parliament go to those who care for them. If I were to leave public life to-morrow, I declare that, except for the vexation which it might give you and one or two others, the event would not be in the slightest degree painful to me.

Sir George Trevelyan, in his *Life of Lord Macaulay*, not only corroborates his uncle as to the inexplicability of the charm of the House of Commons, but gives also from personal experience a still more forbidding

description of what he calls “the tedious and exhaustive routine” of an M.P.’s life:

Waiting the whole evening to vote, and then walking half a mile at a foot’s-pace round and round the crowded lobbies; dining amidst clamour and confusion, with a division twenty minutes long between two of the mouthfuls; trudging home at three in the morning through the slush of a February thaw; and sitting behind Ministers in the centre of a closely packed bench during the hottest week of the London summer.

If this were all that was to be said, it would, indeed, be hard to understand why a seat in the House of Commons should be regarded as an object to be sighed for, and schemed for, and fought for, and paid for by thousands of very astute and able men. The constituencies are not engaged at the General Election in fastening this burden upon unwilling shoulders. How incomprehensible, then, is the action of these who, having had experience of the hard and thankless lot of the Member of Parliament, its mental strain, its physical discomforts, yet labour unceasingly night and day during the weeks of the General Election to induce the electors to send them back again to the dreary round of routine tasks at Westminster. Indeed, Macaulay himself felt keenly the loss of his seat for Edinburgh in 1847, though at the time he was absorbed in his *History of England*; and in 1852, with his great work still uncompleted, he was delighted to be returned again to Parliament by his old constituency. But the truth is, we have been given thus far only the dark side of the picture. There is a silver lining also to the cloud. The life of a representative of the people has of course its compensations.

Still, the tribulations of an M.P. are undoubtedly many. There are, to begin with, the torments of the post. Cobden, in a letter to a friend early in 1846, when his name as the leader of the agitation for the repeal of the Corn Laws was in all men’s mouths, gives a glimpse into the contents, half laughable and half pathetic, of the letter-bag of an M.P. He says:

First, half the mad people in the country who are still at large, and they are legion, address their incoherent ravings to the most notorious man of the hour. Next, the kindred tribe who think themselves poets, who are more difficult than the mad people to deal with, send their doggerel and solicit subscriptions to their volumes, with occasional requests to be allowed to dedicate them. Then there are the Jeremy Diddlers, who begin their epistles with high-flown compliments upon my services to the millions, and always wind up with a request that I will bestow a trifle upon the individual who ventures to lay

his distressing case before me. To add to my miseries, people have now got an idea that I am influential with the Government, and the small place-hunters are at me.

Cobden supplied a specimen of the begging letters he was accustomed to receive. It was from a lady asking him to become her “generous and noble-minded benefactor.” As she desired to begin to do something for herself, she hoped he would procure her a loan of £5,000 “to enable her to rear poultry for London and other large market towns.” In another letter, written July 14, 1846, after the taxes on bread-stuffs had been repealed and the Corn Law League disbanded, Cobden says:

I thought I should be allowed to be forgotten after my address to my constituents. But every post brings me twenty or thirty letters—and such letters! I am teased to death by place-hunters of every degree, who wish me to procure them Government appointments. Brothers of peers—aye, “honourables”—are amongst the number. I have but one answer for all: “I would not ask a favour of the Ministry to serve my own brother.” I often think what must be the fate of Lord John, or Peel, with half the needy aristocracy knocking at the Treasury doors.

2

Happily, things have greatly improved since the time of Cobden. It is probable that the average elector still fails to see that his representative deserves any gratitude or thanks for his services in Parliament. On the contrary, the elector may think that it is he who is entitled to some return for having helped his representative to a seat in the House of Commons in preference to another who was equally eager for the honour. The spectacle of so many men competing for the voluntary service of the State in the capacity of a Member of Parliament cannot but tend to convince the ordinary elector that he is conferring a favour on the particular candidate for whom he votes. Constituents, certainly, are often very exacting. And as the representative desires to retain his seat, he cannot afford to ignore a letter from even the humblest and obscurest of the electors. The General Election may come round again with unexpected suddenness, bringing with it the day of reckoning for the Member who has been neglectful of communications from his constituents. Then it is that the voter, however humble, however obscure, can help to make or mar the prospect of the Member’s return to Westminster. The worst of it is that some constituents will unreasonably persist in asking for things impossible. In the post-bag of

the M.P. appointments used to be greatly in demand. There was a time when the M.P. had some patronage to distribute in the way of nominations to posts in the Customs and the Inland Revenue, for which no examination was required, should the Party he supported be in power. But that good time, or bad, is gone and for ever. The throwing open of the Civil Service to competition deprived the M.P. of this sort of small change, which he once was able to scatter among the electors so as to reward past services and secure future support. Now he has absolutely nothing in his gift, except, perhaps, a nomination for any vacant sub-post office in his constituency. Yet numbers of the electors still imagine there are many comfortable posts in the public service which are to be had merely for the saying of a word by their representatives to the Minister of the Department concerned. An example of what the M.P. has occasionally to put up with may be seen in the terms of a blunt and abusive epistle—admittedly a very rare one—sent by a disappointed office-seeker to the man he says “he carried in on his own shoulders” at the last election. It opened: “You’re a fraud, and you know it. I don’t care a rap for the billet or the money either, but you could hev got it for me if you wasn’t so mean. Two pound a week ain’t any more to me than 40 shillin’s is to you, but I objekt to bein’ maid a fool of.” It went on: “Soon after you was elected by my hard workin’, a feller here wanted to bet me that You wouldn’t be in the House more than a week before you made a ass of yourself. I bet him a Cow on that as I thort you was worth it then. After I got Your Note sayin’ you deklined to ackt in the matter I driv the Cow over to the Feller’s place an’ told him he had won her.” And thus concluded: “That’s orl I got by howlin’ meself Hoarse for you on pole day, an’ months befoar. I believe you think you’ll get in agen. I don’t. Yure no man. An’ I doant think yure much of a demercrat either. I lowers meself ritin to so low a feller, even tho I med him a member of parlerment.”

Other electors argue that as M.P.’s are law-makers they should consequently be able to rescue law-breakers from the clutches of the police and gaolers. Accordingly there are appeals for the remission of fines imposed on children for breaking windows, and even to get sentences of penal servitude revoked. The respectable tradesman on the verge of bankruptcy, who could be restored to a sound financial position by the loan of £100, is perhaps the worst pest of all the cadging letter-writers. He usually declares that he not only voted for his representative, but also attended every meeting that gentleman addressed in the course of the

election. The best reply the M.P. could make to such an attempt to fleece him is to advise his correspondent to attend more to business and less to politics; but he probably never makes it, for he can rarely afford to speak out his mind to a constituent. An Irish Member who was elected for an Ulster constituency after a close contest showed me a letter he got from one of his supporters asking for some favour. "I voted for you under thirteen different names," said the writer, "and could I do more for you than that?" No Member would think of offending so invaluable a supporter. Inventors are also of the plagues from which the M.P. suffers. The man who knows how to make soap out of sawdust writes glowing letters about the fortune awaiting a company which would work the process. Almost every post brings samples of tonics and boxes of lozenges calculated to transform the harshest croak into the clearest and mellowest of voices. "I shall be thankful for a testimonial," said the maker of one mixture, "that after you had used my specific the House was spellbound by the music of your tones, and I guarantee to extend your fame by publishing it, with your portrait, broadcast." Tradesmen are very importunate. For instance, the Labour Members receive circulars from too enterprising firms soliciting their custom for things which, it was declared, were most requisite for the maintenance of the state and dignity becoming a Member of Parliament. From one firm a Member, fresh from working in the coalmines, had a tender for a Court dress of black velvet, to cost, with sword, only £50. A company of wine merchants offered to stock with the choicest brands the wine-cellar of the establishment they presumed he was about to set up in London.

The day after the announcement of a birth in a Member's family a van pulled up at the entrance to the Houses of Parliament containing three different sorts of perambulators. The tradesman who brought them was extremely indignant because the police refused him admission to the House to display their good points and conveniences to the happy father! Poets ask for subscriptions to publish their works, or, enclosing some doggerel verses as samples, appeal for orders for odes for the next General Election. "If you would quote in the House a verse from my volume, *Twitterings in the Twilight*, what a grand advertisement I'd get!" wrote one rhymester to his representative. "You might say something like this: 'One of the most delightful collections of poems it has ever been my good fortune to come across is Mr. Socrates Wilkin's *Twitterings in the Twilight*. Could the

situation in which the Empire finds itself be more happily touched off than in the following verse of that eminent poet?’ and then go on to quote some lines from my book, which I enclose.” Members who are lawyers and doctors are expected by a large section of their constituents to give professional advice for nothing. If one of these unreasonable persons has a dispute with his landlord as to the amount of rent due, or finds it impossible to recover a debt, he expects, as a matter of course, his representative, if a gentleman learned in the law, to help him out of his difficulty; or, if a doctor, he favours him with long and incoherent accounts of mysterious complaints from which he has suffered for years. The M.P. is also expected to throw oil on disturbed domestic waters. Here is a specimen of a communication which is by no means uncommon:

DEAR SIR,

Me and the wife had a bit of a tiff last Saturday night, and she won’t make it up. If you just send her a line saying Bill’s all right, she will come round. She thinks the hell of a lot of you since you kissed the nipper the day you called for our votes.

But pity the poor M.P. who receives from a female voter so embarrassing a letter as the following:

HONoured SIR,

I hear that Mr. Balfour is not a married man. Something tells me that I would make the right sort of wife for him. I am coming to London to-morrow, and will call at the House of Commons to see you, hoping you will get me an introduction to the honourable gentleman. I am only thirty years of age, and can do cooking and washing.

AGNES MERTON.

P.S.—Perhaps if Mr. Balfour would not have me, you would say a word for me to one of the policemen at the House.

During the evening the Member who received this strange epistle cautiously ventured into the Central Hall, and, sure enough, espied an eccentric-looking woman in angry controversy with a constable, who was trying to induce her to go away. But she refused to leave, and ultimately found sympathetic companions in the crazy old party who has haunted the place for years in the hope that some day she will induce the Government to restore the £5,000,000 of which she declares they have robbed her, and the other lady, younger, but just as mad, who is convinced that some M.P. has

married her secretly and left her to starve, and has come to Westminster to claim him “before all the world.”

3

The Member of Parliament is liable to receive other communications of even less flattering and more exasperating character. Bribes are occasionally dangled before him through the post. Will he allow his name to be used in the floating of a company, or in the advertising of some article of common use or a patent medicine? Will he use his influence in obtaining a Government contract for a certain firm? If he will, there is a cheque for so-and-so at his disposal. In the course of a debate in the House of Commons on the payment of Members, John Burns, for many years a well-known Liberal Minister, evoked both laughter and applause by reading his reply to an offer of £50 received during his previous service as a Labour representative if he obtained for a person in Belfast a vacant collectorship of taxes. “Sir,” he wrote, “you are a scoundrel. I wish you were within reach of my boot.”

But the sane and the righteous give the M.P. more annoyance than the knavish and the crazy. Think of the numerous local functions—religious, social, and political—to which the Member of Parliament is invited! When a meeting is being organized in the constituency, naturally the first thought of its promoters is to try to get the Member to attend. The more conspicuous he is in Parliament, and therefore the more likely to attract an audience, the greater is the number of these invitations; and if he fails to respond, the more widespread is the dissatisfaction among his baulked constituents. He is expected to preside at the inaugural meetings of local amateur dramatic societies and local naturalists’ field clubs, and “to honour with his presence” the beanfeasts of local friendly societies. The literary institution, designed to keep young men of the constituency out of the public-houses, must be opened by him. He must attend entertainments of a mixed political and musical sort, at which his speech is sandwiched between a sentimental song and a comic.

But perhaps the Member of Parliament is most worried by the appeals to his generosity and charity which pour in upon him in aid of churches, chapels, mission-halls, schools, working men’s institutes, hospitals,

asylums, cricket and football clubs, and in fact societies and institutions of all sorts and sundry. It is only proper that if money be needed for an excellent local purpose, the representative of the district in Parliament should be included in the appeal. Many wealthy Members of Parliament spend from £1,000 to £4,000 a year on local charities, and they spend it willingly when the objects appear to them to be deserving. But of the 707 M.P.'s there are never a great many who can be described as wealthy.

Besides that, many representatives—among them being some of the most charitable of men—always refuse to send contributions to local objects, influenced by a sense of honour and the fear that it might be regarded as bribing the electors. In so doing they run a grave risk of being misunderstood by their constituents. If a Member of Parliament should refuse to help in providing them with coals, blankets, footballs, cricket-bats, big drums, billiard-tables, church steeples, sewing-machines, he is set down as mean, and numbers of his constituents vow that he shall not have their votes again at the General Election. There is a story told that when John Morley was seeking re-election for Newcastle-on-Tyne an elector who was asked to vote for this statesman of the highest and purest ideals indignantly exclaimed: “Not me! What has John Morley ever done for the Rugby Football Club?”

The representative is to be commended by all means in resisting these illegitimate demands. Macaulay, when Member for Edinburgh, was asked to subscribe to a local football club. “Those were not the conditions upon which I undertook to represent Edinburgh,” he answered. “In return for your generous confidence I offer parliamentary service, and nothing else. The call that is now made is one so objectionable that I must plainly say I would rather take the Chiltern Hundreds than comply with it. If our friends want a Member who will find them in public diversions, they can be at no loss. I know twenty people who, if you elect them to Parliament, would gladly treat you to a race and a race-ball each month. But I shall not be very easily induced to believe that Edinburgh is disposed to select her representatives on such a principle.” On the other hand, there is something to be said for the constituents. Surely they may very properly ask: “From whom can we more reasonably seek aid for our deserving local charities than from our Member of Parliament?” They recall to mind his accessibility and graciousness while he was “nursing” the constituency. Was he not ever

ready to preside at the smoking concerts of the Sons of Benevolence, to sing songs or recite at the mothers' meetings, to hand round the cake at the children's tea parties, to kick off at the football contests?

His speeches are also remembered. Did he not regard service in the House of Commons while he was seeking it more as a distinction and privilege than as a public duty? Did he not tell the electors from a hundred platforms that for all time he was absolutely at their service? Did he not come to them literally hat in hand begging the favour—mind you, the “favour”—of their vote and influence? Yet to this cynical end has it all come, that, badgered by requests for subscriptions to this, that or the other, he replies—to quote the prompt, emphatic and printed answer which one representative has sent to all such appeals: “I was elected for —— as Member of Parliament, not as Relieving Officer.”

4

In the House of Commons itself some disappointments also await the M.P. The motives which induce men to seek for a seat in Parliament are many and diverse; but there is hardly a doubt whatever that the main reason is a genuine desire to serve the State and promote the well-being and happiness of the community. Accordingly, in the first flush of enthusiasm after election our representatives zealously set about informing themselves of the subjects which are likely to engage their attention in Parliament. But soon comes a rude awakening, bringing with it the first of the disappointments that await them. They find that to instruct themselves properly in questions that are ripening for legislation would leave them very little time for the calls of business and social life.

The breakfast table of the M.P. is heaped almost every morning during the session with parliamentary papers of one kind or another—Blue Books, Bills, reports and returns. Blue Books are popularly supposed to be unattractive reading. This is a mistake. They may look ominously ponderous in outward appearance, but their matter is not therefore portentously dull. With a little delving, illuminating facts for the serious student of the condition of the people—the supreme and all-embracing question of politics—come to light. There are, however, not only too much of them, but too many. On an average, eighty are issued every year, making

an impossible demand on the attention of even the most conscientious representative. The Bills are more inviting than the Blue Books, for, embodying as they do the fads and hobbies of the 707 Members of the House of Commons, they bring one into touch with curious manifestations of common human nature and individual political ideals. About 300 of them are introduced every session. After the formality of a first reading, they are printed and circulated among the representatives, who are expected to make themselves acquainted with their provisions.

It is to be feared that many M.P.'s give up this task in despair. Instead of attempting to arrive at independent conclusions by personal investigation and study, they are content to rely upon their Party leaders to direct them on the right path in regard to Government measures dealing with the main public questions of the day, and upon their Whips as to whether they should oppose or support the Bills of private Members. Yet it is not always plain sailing, even when the lazy course is pursued of just giving one's ear to the leaders on both sides attacking and defending. "The worst effect on myself resulting from listening to the debates in Parliament," writes Monckton Milnes, "is that it prevents me from forming any clear political opinion on any subject." Of the 300 Bills brought in every session, very few are passed. So supreme is the command of the Ministry over the time of the House of Commons that the private Members have little chance of carrying legislation. Only the Bills of the Government set out on their course through both Houses of Parliament with a fair prospect of reaching the Statute Book.

Furthermore, the M.P. who is ambitious "the listening Senate to command," also soon discovers that the opportunities for talking are flagrantly restricted in the interest of the Government. He may have devoted many days to the making and colouring of artificial flowers of rhetoric with which to decorate his speech in a great debate. Sometimes he may get the chance to deliver it in a House almost empty, and containing but two interested listeners—one the hon. Member who hopes to follow, and is impatient of his prolixity, and the other his wife in the Ladies' Gallery, fuming at the indifference with which his eloquent periods are being received. That is bad enough; but there is a worse fate still. He may sit night after night on the pounce to "catch the Speaker's eye" and yet fail to fix the attention of that wandering orb. Meanwhile he may hear his

arguments and his epigrams made use of by luckier men, who probably got them in the Library from the same shelf, the same book, the same page as himself. Finally, the debate may be brought to an end, leaving him baulked in his design, with a mind further oppressed by the burden of a weighty unspoken speech. Then his constituents say unpleasant things of him because they do not see his name in the newspaper reports. He is neglecting his duty, or he is an empty-minded “silent Member,” who, having nothing to say, says it.

There is an old proverb at Westminster which declares that “they are the wisest part of Parliament who use the greatest silence.” Again, in the opinion of the leaders of the Party in office he is the most useful of Members who never consumes valuable time by speaking, but is ever at hand to vote when the bells ring out the summons to the division. The man who always votes at his Party’s call and never dreams of thinking for himself at all is to be found by the score in the House of Commons. But to many another M.P. it must be a sore trial to find his opinions often dictated by his leaders and his movements in and out of the House controlled by the Whips. Party discipline is strict in all the political groups, and violations of it are rarely condoned. The speech of the Member who is sincere and courageous enough to take up an attitude independent of his Party in regard to some question of the day is received with jeers by his colleagues, and, what is perhaps more disconcerting, with cheers by the fellows on the other side. There are, to be sure, representatives to whom the House of Commons is but a vastly agreeable diversion from other pleasures and pursuits. Imagine the feelings of such an easy-going Member when, on a dull night off, an urgently worded and heavily underscored communication from the Whips demanding his immediate attendance is delivered by special messenger at some most inopportune moment, perhaps as he is just sitting down to a pleasant dinner or is leaving his house for the Frivolity Theatre. If, prone as he is to yield to the temptation of the flesh, he should ignore this peremptory call of Party duty, he is held guilty, like the crank and the faddist, of a grave breach of discipline. His past services in the division lobbies—on nights when the proceedings in the House were to him a most enjoyable lark—are forgotten. He gets a solemn lecture from the Chief Whip on the enormity of his offence. Worse still, his name is published in an official black list of defaulters, or a nasty paragraph exposing his neglect

of duty appears in the newspaper which most widely circulates in his constituency.

And yet what model M.P., Liberal or Unionist or Labour, with all his sincere attention to the desires, the whims, the caprices of his constituents, with all his willing surrender of private judgment to his leaders, of personal pleasures to the Whips, can confidently feel that his seat is safe? It is hard to get into Parliament. To remain there is just as difficult. The insecurity of the tenure of a seat in the House of Commons is perhaps the greatest drawback of public life. Many a man with ambition and talent for office does years of splendid service for his Party in Opposition. The General Election comes. His Party is victorious at the polls. But he himself has been worsted in the fight, and he has the mortification of seeing another receive the office which would have been his in happier circumstances. To such a man with his capacity for public life, with his keen enjoyment of the Party fights in Parliament, existence outside must be barren and dreary indeed. Yet never again may he cross the charmed portals of the House of Commons.

CHAPTER VI

THE FASCINATION OF THE HOUSE OF COMMONS.

1

But now that the litany of the cares and disappointments of a Member of Parliament is exhausted, there remain many compensations which make a seat in the House of Commons an object greatly to be coveted, and well worth the physical labour, the mental worry, the demands on the purse, which are involved in its attainment. Its rewards are chiefly moral and social. The gratification of having won the trust of a large body of the public comes first, perhaps. Then there is the sense of the power and influence of the legislator. The House of Commons is the greatest and most renowned of national assemblies. To be a Member of it is a great honour. The letters "M.P." add distinction to a name. That is a proper source of pride on the part of the Member himself. It is also a mark for the deference of others. The "M.P." is lifted out of the common run of humanity. Most of us would look a second time at a man casually encountered in the street if we were told he was an "M.P."

The House of Commons has been called, as everyone knows, "the best club in London." The phrase, by the way, was used for the first time in a novel called *Friends of Bohemia, or Phases of London Life*, written in the mid-Victorian era by E. M. Whitty, then a sketch-writer in the Reporters' Gallery. Some say the House has lost its proud pre-eminence in that respect. There is an entire absence of class feelings and social distinctions in the House. That the cook's son is the equal of the duke's son is, perhaps, more unreservedly admitted by the duke's son than by the cook's son. On the other hand, the Members will tell you that they differ too widely in class, wealth, avocations, business pursuits, and, above all, in political ideas and principles, for them to be clubbable in the mass by reason of mental affinity or association of interests. Yet there is no doubt whatever that in regard to one of the objects of a club, ministering to the personal needs and comforts

of its members, the House is far better equipped now than ever it was in its most socially select period, before the Reform Act of 1832.

At that time hungry Members were able to obtain but a steak or a chop, or a pork pie, at Bellamy's famous restaurant, which stood in Old Palace Yard immediately adjoining the old Houses of Parliament. Now they have an elaborate restaurant, very properly subsidized out of the public funds, and managed by a Kitchen Committee elected by themselves. Before the World War an excellent meal of three courses could be had for a shilling; and to realize what might then have been obtained for five shillings would stagger the imagination of a gourmand. Prices still remain below those charged for similar meals in a first-class restaurant. Even the secrets of the cellars have been recklessly disclosed to the electors. There is the "Valentia Vat," holding 1,000 gallons of the rarest Scotch whisky. But our representatives are not stimulated by whisky alone, whether Scotch or Irish. We are also told that the cellars are always well stocked with wines.

In the old House of Commons, which was swept away by the great fire of 1834, there was but one smoking-room. What it was like Macaulay describes in a letter to his sister, dated July 23, 1832. "I am writing here at eleven o'clock at night," he said, "in the filthiest of filthy atmospheres, in the vilest of all vile company, and with the smell of tobacco in my nostrils." In the Palace of Westminster to-day there are several rooms devoted to the enjoyment of tobacco. The engaging spectacle to be witnessed, by all accounts, in the chief smoking-room any night of a session suggests the question: Is there any reality in Party conflicts? If half what M.P.'s say of each other be true, a man who is not a politician and is careful of his reputation would not like to be discovered associating with them. Yet opponents who have just been raging furiously against each other in the Chamber, are, we are told, to be seen exchanging opinions of politics, questions and personalities, with mutual good humour, frankness and confidence over coffee and cigarettes, in the delightful companionship of the smoking-rooms. Political controversy has there its fangs drawn. The only emulation between Members of opposite political parties when they foregather in clouds of tobacco smoke is as to who will say the cheeriest word and tell the most amusing story, with the result that many fast friendships between them are formed.

Chess is also played. It is the only game permitted at Westminster. One year there was a great match played over the telegraph wires between the House of Commons and the United States Congress, and though at one time the defeat of America seemed imminent, the match ended in a draw. In 1920 the introduction of billiards and cards was again suggested. "It is contrary to the traditions of the House that cards and billiards should be played within the precincts," said Sir Alfred Mond, First Commissioner of Works, in reply. Then there is that most agreeable of all the adjuncts of the House, the Library. It consists of five pleasant rooms overlooking the river. The bookcases are of carved oak; the volumes are beautifully bound; Members move about silently, for all sound is deadened by the thick carpets, and the atmosphere is delightfully pervaded with the aroma of Russian leather. The books are about 50,000 in number, mainly historical, constitutional, legal, and political—just the works, in fact, where Members are certain to find the necessary material for confuting each other's arguments.

The Ladies' Gallery, and the development of the Terrace from a lounge for Members, which was its original purpose, into a society resort, have added greatly to the attractiveness of the House of Commons. They explain the remarkable expansion, within recent years, of what may be called the fashionable side of Parliament. It must not be supposed that this admission of ladies into Parliament by a side-door—unknown to the Constitution long before they were made eligible for election by statute—has had the result of making Members neglectful of their duties. On the contrary, the social functions at Westminster during the session have the effect of keeping members, and the young members especially, more regular in their attendance, or, at least, more within hearing of the division bells.

2

Besides that, many Members of Parliament derive pleasure even from experiences which by others are regarded as worries and vexations. Their correspondence, with all its manifestations of strange phases of human nature, is a source of entertainment to some, and it ministers to the sense of self-importance of others. There are Members who give an ear of affable condescension to eccentric frequenters of the Central Hall, such as the mad engineer with his scheme for uniting Ireland with Great Britain by a bridge thrown across the Channel, via the Isle of Man, thus consummating a real

tangible union between the two countries. They have a smile of welcome and a hearty handshake for all and sundry from their constituencies who call upon them at St. Stephen's. There are Members to whom the pressing invitations to attend bazaars, flower shows, tea meetings, smoking concerts, cricket and football matches, are flattering evidence of their popularity, and they are accepted accordingly with a rare delight.

The House of Commons affords a splendid field—no better in the whole wide world—for the vain and ambitious who yearn for applause or crave for power. Any Member can easily emerge from the obscurity of the back benches into the full glare of the limelight. Let him but flagrantly break one of the rules of order, and his name will appear as a headline in a thousand newspapers. Then there are the material rewards. The young and ambitious are offered the dazzling prospect of office. The possession of any post in the Administration, even the humblest, carries with it a seat on the Treasury Bench, side by side with eminent statesmen whose names are household words. It carries also the right, when addressing the House, to stand at the Table before the famous despatch box, to lean elbow on it, and even to thump it, as an added emphasis in the very passion of argument, as was done by all the renowned parliamentarians of the past. It is true that keen and fierce is the competition for the higher offices in the Administration. The House of Commons, with all its constitutional supremacy as an institution, is composed of human beings. That being so, it is not free from the unamiable characteristics of intrigue and envy; and the qualities of resolute will and tenacity of purpose are, indeed, necessary in the ambitious young Member if he is to escape from being pushed aside or being trampled upon in the race for office. Once on the Treasury Bench, however, he has won half the battle for a post in the very hierarchy of the Government—the exclusive ring of Cabinet Ministers.

Yet the number of men in the House of Commons without social or political ambition is remarkably large; men, too, who are absolutely unknown outside their constituencies. They are in Parliament literally for their health. During the day they are engaged in the direction of great industrial and commercial undertakings, and in the evening they go down to Westminster for that rest and recuperation which comes with change of scene and occupation. They find the duties of an M.P. very agreeable, on the

whole. The responsibilities of the position sit lightly upon them. They find a joy in all the details of parliamentary life.

Many old men, who have spent themselves in trade or finance, take to politics in the evening of their days as a mild relaxation or hobby, and a means of prolonging life. There was once a great merchant who, when he left for ever his desk in the city, after an association of half a century, found the separation a terrible strain, and seemed likely to pine and mope his way quickly to the grave. His medical adviser recommended him to find a seat in the House of Commons as a distraction to relieve the monotony of his existence. But the old man did not like the suggestion. He knew nothing of public questions. The financial intelligence was the only portion of his morning paper which he had carefully studied for fifty years. "If you do not go into the House of Commons, you will have to go to Paradise," said the doctor; "it is the only alternative." "Then I will choose the House of Commons," said the old City man, with a sigh of resignation. And how glad he was when he became a Member! At last, something of the joy of life had really come to him.

To sit silently on the green benches during a debate, save when they cheer a supporter, or roar at an opponent, and to walk through the division lobbies, voting as directed by the Whips, amply satisfy the desire of not a few Members for political thought and labour. It is an existence that excites and soothes by turns. Disraeli once said to a friend who had just entered the House of Commons: "You have chosen the only career in which a man is never old. A statesman can feel and inspire interest longer than any other man." A seat in the House does not, of course, make one a statesman. But, as a general proposition, there is much force in Disraeli's saying. Old men find the fountain of youth in the halls of Westminster. It is all nonsense what one sometimes reads about the weary and trying round of parliamentary life. There are men in the House of Commons who, after twenty, thirty, forty years of service, show no symptoms of physical exhaustion, and who will tell you that Parliament is the most interesting and most entertaining place in the world. John Morley once spoke of the daily round of an M.P. as "business without work and idleness without rest." During the years he was engaged in writing his *Life of Gladstone* he took no active part in the controversies of the House of Commons. But he could not keep entirely away from the place. How often had I seen that fine philosophical writer at

this particular period of his career sitting on the front Opposition Bench, at the gangway corner, his arms folded, his legs crossed, listening, like an ordinary mortal, for hours to Members venturing to say this, not hesitating to say that, going one step further, adding another word, on subjects that must have had no interest for him. The spell of the House of Commons was upon him. He could not keep away. He had to come down, even as a distraction, just to see if anything was going on. Nothing was going on, but he remained for hours.

3

Parliamentary life has a fascination which few men, having once breathed its intoxicating atmosphere, can successfully withstand. Its call is irresistible. Cobden thus wrote from a retreat in Wales, in July, 1846, after the object of his parliamentary career, the repeal of the Corn Laws, had been achieved:

I am going into the wilderness to pray for a return of the taste I once possessed for nature, and simple, quiet life. Here I am, one day from Manchester, in the loveliest valley out of Paradise. Ten years ago, before I was an agitator, I spent a day or two in this house. Comparing my sensations now with those I then experienced, I feel how much I have lost in winning public fame. The rough tempest has spoiled for me a quiet haven. I feel I shall never be able to cast anchor again. It seems as if some mesmeric hand were on my brain, or that I was possessed by an unquiet fiend urging me forward in spite of myself.

However disappointed a Member may be in failing to realize his dreams of political ambition and social success, there remains for him the consoling thought—indeed, the great reward—that he has the honour of serving the State, of helping in the management of national affairs, of guiding the destinies of a mighty Commonwealth. No wonder that most Members quit this exalted and historic scene reluctantly, with the deepest regret—aye, with breaking hearts. Should so great a misfortune befall them of being rejected from further service by their constituents at the General Election, they long to return again to the green benches. Complacently to settle down to the humdrum of private life is for many of them impossible.

Even the old and worn agitators who have voluntarily resigned pine to be in the thick of the shoutings of the rival Parties, and the trappings through the division lobbies. There was William Wilberforce, the emancipator of the

slaves. Sir Samuel Romilly, who sat in the House of Commons in 1807, when slavery within the British Empire was finally abolished, said of Wilberforce: "He can lay his head upon his pillow and remember that the slave trade was no more." But was Wilberforce content to be out of Parliament even in his extreme old age? Hannah Macaulay relates that in 1830, while staying at Highwood Hill, the guest of Wilberforce, she got a letter from her brother, enclosing an offer to him from Lord Lansdowne of the seat for the pocket borough of Calne. She showed the communication to Wilberforce. "He was silent for a moment," she writes, "and then his mobile face lighted up, and he slapped his hand to his ear and cried: 'Ah! I hear that shout again! Hear, hear! What a life it was!'"

CHAPTER VII

PALACE OF WESTMINSTER

1

The Palace of Westminster, in which Lords and Commons meet—the largest and most imposing Gothic building in the world—may be regarded, rising so nobly on the left bank of the Thames, as an expression in architecture of the dignity and stability of Parliament, and the honour in which it is held by the Nation. Most visitors to the Palace reach it by Whitehall or Victoria Street. On that side are the entrances to both Houses. It is more picturesque, but less imposing, than the river front. The inclusion of Westminster Hall—the only overground portion of the old Palace saved from the fire of 1834—enforced the breaking up of the western or land front of the new Palace into a variety of façades. The light and shade produced by the massive grey masonry of the ancient Hall, mingling with the Gothic gracefulness of the new Palace, is very beautiful, and also pregnant with historic meaning. It reminds one of the survival of tradition in the forms and ceremonies of Parliament. The effect of this blending of the past and present is heightened by the close contiguity of the venerable Abbey, and the open grassy space, known as Parliament Square, with its effigies of great Victorian statesmen—Sir Robert Peel, Lord Palmerston, the Earl of Derby, and Lord Beaconsfield—which front the forecourt of the Palace; and the striking figure of Oliver Cromwell, with sword and Bible, on the sunken grass plot by the side of Westminster Hall. To the contemplative mind the long history of government and administration is presented—its struggles, its controversies, its failures, its successes.

But the most impressive view of the Palace to the eye is obtained from the opposite bank of the Thames. Standing beneath the aged and hoary Lambeth Palace on the Surrey side—town house of the Archbishop of Canterbury—and looking across the river, especially when the mighty waterway is at its full tide, one realizes more completely the Gothic

stateliness of this temple of legislation, the outcome of the constructive genius of Sir Charles Barry, and the graceful fancy of Augustus Welby Pugin. The long façade above the river wall and terrace, its uniform symmetry, the lightness and grace of its stone carving, the many steeples and pinnacles—beginning with the delicate tracery of the lofty Clock Tower, close to Westminster Bridge, and terminating with the solid massiveness of the colossal Victoria Tower—form altogether a most imposing masterpiece in architecture, worthy of the ancient and august National Assembly which deliberates within its walls, that mother of representative institutions which perhaps is the greatest gift of the English race to mankind. So it is that something of the secret of the high place which Parliament holds in popular esteem and pride may be found in the grandeur of its home. At any rate, the spectacle presented by the Palace of Westminster does impress the mind with the glory of the purpose of Parliament and its might. Here we see the apotheosis of politics, the science of the progress and well-being of humanity, and the temple in which it is fittingly served.

Thus at Westminster we have not only the flower or the fruit of the national life in the guidance of the State aright, but its roots and fibres going deep down to the very bedrock of the past. For more than six centuries the grand inquest of the Nation has sat at Westminster. At first it was a council of the great and wise summoned by the King personally. When Edward I, “the great law-giver,” sent to the sheriffs writs for the election of two knights for each shire, two citizens for each city, two burgesses for each borough, in addition to himself calling together the prelates and the nobles, the principle of popular election came into operation. The Parliament thus elected and known as the “Model Parliament” was really representative of the Nation at large. It met in the Palace of Westminster so long ago as November, 1295. For over a century the three estates of the realm—the Prelates, the Nobles, and the Commons—deliberated together. The division of Parliament into two Houses—one for the Peers, spiritual and temporal, and the other for the Commons—took place in 1377, the last year of the reign of Edward III. The Lords have always met in the Palace of Westminster. The Commons for the best part of two centuries assembled in the Chapter House, or the Refectory, of Westminster Abbey. They held their last sitting there on the day that Henry VIII died.

Henry's son and successor, Edward VI, gave St. Stephen's Chapel—within the Palace of Westminster—to the Commons for their meeting place in 1547, the first year of his reign, and there the representatives of the people regularly met and deliberated until the place was destroyed by fire in 1834. This Chapel, built by Edward III in 1327, the first year of his reign, on the ruins of the original St. Stephen's Chapel (which was provided by King Stephen in 1147 for the use of the inhabitants of the Palace, and dedicated by him to the first Christian martyr) was in the beautiful Gothic of the period, and Italian artists were brought to London to adorn its walls with religious frescoes. After the Reformation, when the Chapel was transferred from the Crown to the House of Commons, these mural paintings were covered over with a plain, decorous wainscot, which in the gay times of Charles II was in turn hidden behind rich tapestry hangings. These tapestries disappeared in the alterations made by Sir Christopher Wren in 1707, after the Union of England and Scotland, so as to provide accommodation for the forty-five Members from Scotland. The Chamber underwent a final transformation in 1800, when, as a result of the Union of Great Britain and Ireland, seats for 100 additional Members had to be found. The old wainscot was then taken down; and although the paintings of the Italian artists of the fourteenth century were found to be in a perfect state of preservation, they were demolished likewise to make room for the required two extra lines of benches on each side. There were now five rows of benches on either side, divided, as in the present Chamber, by a gangway. The Speaker's Chair was at the top of the Chamber, where the altar originally stood. It was a carved oak armchair, surmounted with the Royal Arms of England. Below it, as now, was the Clerk's table.

The old House of Lords, like the old House of Commons, was an oblong chamber with rows of benches on each side running up from the floor to the walls. On the walls hung tapestries, divided into compartments by oak frames, illustrating scenes from the defeat of the Spanish Armada in 1588, and with medallion portraits of the principal English naval captains woven in the borders. They were the gifts of the States of Holland to Queen Elizabeth in commemoration of England's great deliverance and the ruined dream of Spain. The Throne on which all the Sovereigns of England from 1550 to 1834—from Edward VI to William IV—sat on the assembling of Parliament was at the top of the Chamber. It was a carved gilt armchair standing on a dais. The seat was lined with crimson velvet. Two gilt

Corinthian pillars supported a canopy, also of crimson velvet, and the whole was surmounted by a crown.

Between the two Houses lay the Painted Chamber, a survival of the original Palace, erected by Edward the Confessor, who indeed used this particular room as a sleeping apartment and died in it. Its walls were painted with battle scenes by direction of Henry III in the middle of the thirteenth century, and hence its name. Here the Court, before which Charles I was arraigned, sat for the concluding days of the trial. Here Oliver Cromwell and Henry Martin blacked each other's faces in fun, like giddy young schoolboys, as they signed the warrant which condemned the King to the headsman's axe. The Chamber was also used for conferences between representatives of both Houses when they differed in regard to a Bill. At these meetings the Peers were seated and wore their hats, while the Commons had humbly to stand uncovered.

2

Thus the old Palace of Westminster was historically of great interest. But it had no pretensions to beauty. It was just an architectural patchwork, added to from time to time without any sense of order or unity of design. Interiorly, it was also confined and uncommodious. Yet the idea of pulling it down to give place to a building of nobler proportions and one more suitable to its great purpose was not relished. In the very last session of the Commons that was held in St. Stephen's Chapel Joseph Hume proposed that new Houses of Parliament should be built in the Green Park. The motion was rejected. Four or five months later, as the buildings were enveloped in flames, one of the spectators wittily cried out: "There is Joe Hume's motion being carried without a division."

The great conflagration which destroyed the Palace was on the night of Thursday, October 16, 1834. The Whig Ministry, under Earl Grey, that carried the Reform Act of 1832, broke up in July on the question of appropriating a portion of the revenues of the Church in Ireland to secular purposes, and was succeeded by another Whig Administration with Lord Melbourne as Prime Minister. Parliament was prorogued on August 15th by King William IV in person. It was to meet again on October 23rd. When that day came the ancient Palace of Westminster was a thing of the past. At

first it was thought the fire was the work of political incendiaries. But a Committee of the Privy Council found, after a long and searching investigation, that it was due solely to human stupidity. An immense quantity of old wooden “tallies” or notched sticks, originally used as receipts for sums paid into the Exchequer, had accumulated at Westminster, and, after the abolition of this barbaric mode of keeping the national accounts and the substitution of pens, ink and paper, in 1826, the sticks were used as firewood in the Government offices. As the room in which the remaining “tallies” were stored at Westminster was required for another purpose, two men were employed all day, on October 16, 1834, in getting rid of the sticks by burning them in the stove under the House of Lords by which that Chamber was heated. At five o’clock they went home. At half-past six the House of Lords was found to be on fire. The heat from the over-charged flues had ignited the panelling of the Chamber. The progress of the flames could not be stayed, and gradually the conflagration swept over the whole mass of buildings. Thus did the ancient Palace of Westminster disappear through an act of almost incredible carelessness. All that remained of the historic fabric were the cloisters of the old St. Stephen’s Chapel (or House of Commons), the crypt beneath the Chapel, in which the Speaker used to entertain Members at dinners and other social functions, and, happily, Westminster Hall, with its centuried associations of great men and historic deeds. Practically everything else was destroyed, including the Throne in the House of Lords and the Chair in the House of Commons.

On October 23, 1834, the day appointed for the reassembling of Parliament, the two Houses met for a brief and formal sitting amid acres of still smouldering ruins, the Lords within the charred walls of their library, and the Commons in an adjoining committee-room. It was decided temporarily to fit up the House of Lords for the use of the Commons, and the Painted Chamber for the use of the Lords, and a sum of £30,000 was voted for the purpose. A Royal Commission was also appointed to superintend the construction of a new Palace of Westminster. Parliament then adjourned. On November 14th King William dismissed the Melbourne Ministry, and Sir Robert Peel was commanded to form a new Administration. On the advice of the Prime Minister, the King dissolved Parliament on December 29th, and the new Parliament met on February 19, 1835, in the temporary buildings, which continued to be used till the completion of the present Palace of Westminster.

Among the immense crowd which witnessed the grand and terrible spectacle of the burning of the old Houses of Parliament on that night in October 1834 was an architect named Charles Barry. He had known and loved the ancient and historic pile from his earliest years, for, born in 1795, the son of a stationer who had a shop in Bridge Street, opposite the Houses of Parliament, he had grown to manhood under its very shadow. Parliament decided to have an open competition for designs of the new legislative buildings. The only condition imposed was that the style should be either Gothic or Elizabethan. As many as ninety-seven architects entered the lists. The successful competitor was Barry for his Gothic plan. He was forty years old at the time. In superintending the building and internal decoration of the Palace—subject to the control of the Royal Commission—Barry was assisted by Augustus Welby Pugin, another architect and an authority on the Gothic style. Hume's idea of removing the Houses of Parliament to the Green Park was revived, but the historic associations of Westminster made too great an appeal. Moreover, was not the Duke of Wellington of opinion—far-seeing man that he was—that the site by the river was the best, as it would be fool-hardy to have the Houses of Parliament accessible on all sides to an attacking mob?

The river wall was begun in 1837. The buildings were not commenced until three years later. The selection of the stone received the anxious consideration of the Commissioners. Finally the hard magnesian limestone from Anston, in Yorkshire, was selected for the exterior of the buildings, and French Caen stone for the interior. Then, on April 27, 1840, the first stone—it may be seen from Westminster Bridge in the south-east angle of the plinth of the Speaker's House—was laid without any public ceremony by the wife of the architect, and the vast edifice was raised on a bed of concrete, 12 feet thick. Exactly seven years later—April 15, 1847—the Lords first occupied their House; and at the opening of the session of 1852, on November 4th, the Commons assembled in their new Chamber.

The progress of the building was beset with many difficulties and vexations for the designer. The Palace was originally expected to be finished in six years, at a cost of £800,000, exclusive of furniture and fittings. Twenty years passed before it was fully completed, and over £2,000,000 was expended upon it. The Treasury refused to pay Barry an

architect's professional fees of 5 per cent. upon the outlay on the works executed under his direction, and fixed his remuneration at £25,000, or £23,000 less than he held he was entitled to. His designs were also subjected to continuous criticism and attack by other architects. However, he was knighted on the completion of his splendid work. Dying suddenly at Clapham Common on May 12, 1860, his remains were honoured by a grave in Westminster Abbey. His statue by John Henry Foley stands at the foot of the great staircase leading to the committee-rooms of the Houses of Parliament.

4

Probably no feature of London is so familiar in the metropolis, or so widely known by name in the provinces, as the famous clock of the Houses of Parliament. No visitor to London would think of returning home without having seen "Big Ben" and heard him chiming the quarters and booming out the hour. During the summer season hundreds of thousands of strangers, not only from the provinces, but from far-off lands, gaze up at his massive, honest face, proud and delighted to have made the acquaintance of so great a London celebrity. It is the largest clock in the world. Each of the four dials, there being one for each point of the compass, is of white enamelled glass and 23 feet in diameter. The minute marks on the dial look as if they were close together. They are 14 inches apart. The numerals are two feet long. The minute hand is 14 feet, and the hour hand six feet. To wind the clock takes about five hours. The time is regulated by electric communication with Greenwich Observatory.

The clock has a large bell to toll the hours and four smaller ones to chime the quarters. The large bell is called "Big Ben," after Sir Benjamin Hall, who was First Commissioner of Works when the Clock Tower was erected. It weighs 13½ tons. Twenty men could stand under it. For a clapper it has a piece of iron 2 feet long, 12 inches in diameter, and weighing 12 cwt. No wonder, then, that there are few things more impressive than "Big Ben" tolling the hour of twelve, in his slow, measured and solemn tones, especially at midnight, when the roar of London is hushed in slumber. And what is said by the full chime of bells before the striking of each hour? Here is the verse, simple and beautiful, to which the chime—a run of notes from

the accompaniment to “I know that my Redeemer liveth” in Handel’s *Messiah*—is set:

Lord, through this hour
Be Thou our guide,
That by Thy Power
No foot may slide.

During the session of Parliament a brilliant steady light, blazing from a lantern over “Big Ben,” may be seen at night from most parts of London. It indicates that the House of Commons is sitting. So long as the representatives of the people are in conclave, the light flashes its white flame through the darkness. It vanishes the moment the House rises. A wire runs from the lantern down to a room under the floor of the House of Commons, and when the question, “That this House do now adjourn” is agreed to, a man stationed below pulls a switch, which instantly extinguishes the light. When this beacon was first set on high, and for many years after, it shone only towards the west, for it was thought unlikely than an M.P. would dwell in, or even visit, any other quarter of the town. But with the extension of the franchise Parliament became democratized, and a new lantern was provided which sheds its beams in the direction of Peckham as well as of Pall Mall. The light should be regarded by all who see it as a sacred symbol of the fire of liberty, law and justice ever burning in the House of Commons. Another comparatively recent innovation is the flying of the Union Jack from the iron flagstaff, 64 feet high, which tops the 336 feet of the Victoria Tower, on days that Parliament is sitting. Only the Royal Standard was seen, before that, on the rare occasions that Queen Victoria came to open Parliament in person. Small as the Union Jack seems to the upturned gaze of persons in the streets, it is of remarkable dimensions, being 60 feet long and 45 feet wide. I saw one day the flag of another country flying for the first time side by side with the Union Jack over the Victoria Tower. It was the Stars and Stripes. The day was April 20, 1917—the day on which the United States joined France, Italy and England in the War against Germany.

The Palace of Westminster covers an area of nine acres. Eleven courts or quadrangles give light and air to its 1,200 or 1,300 rooms, its hundred

staircases, and its two miles of corridors. In the very heart of the Palace is the great Central Hall, above which rises a tower terminating in a spire, and right and left of the Hall are the two Houses of Parliament—the Commons' Chamber nearer to the Clock Tower, the Lords' Chamber nearer to the Victoria Tower—while about them lie the retiring rooms of their respective Members and the homes of their principal officers. There, used to be twenty official residences in the Palace. They have been considerably reduced in order to provide more accommodation for Members. Still, on the Commons side, the Speaker, the Clerk and the Sergeant-at-Arms are commodiously housed. In the old Palace a Minister had no escape from the House of Commons except the Library or smoking-room, which were available to all Members, and one gathers from the published recollections of old parliamentarians that it was not seemly for a Cabinet Minister to be seen there. "The place for a Minister," it used to be said, "if *at* the House, is *in* the House." In the new Palace every Minister has a private room in the corridors at the back of the Speaker's Chair, in which he may transact departmental business and receive visitors, when his presence in the House is not particularly required.

The principal entrance to the Palace of Westminster is by St. Stephen's Porch, in Old Palace Yard. Immediately to the left extends the wonderful and impressive Westminster Hall, the thrilling associations of which must quicken the pulses of the least imaginative. Straight ahead lies St. Stephen's Hall, leading to the Central Hall of the Houses of Parliament. This noble hall is traversed daily, during the session, by thousands of the public on their way to or from the Legislative Chambers. How many pay heed to its strange vicissitudes? It occupies the site of old St. Stephen's Chapel (originally the Chapel Royal of the ancient Palace of Westminster), in which, as I have said, the Commons sat regularly from the sixteenth century to the nineteenth. In the building of the new Palace, St. Stephen's Hall was raised on the vaulted foundations of St. Stephen's Chapel. The positions of the Speaker's Chair and the Table are marked by brass plates set in the floor of St. Stephen's Hall. Here it was that one of the most historic of parliamentary incidents took place. On this very spot stood Charles I and Mr. Speaker Lenthall when the King demanded whether there were then present in the House the five Members, including Pym and Hampden, who had promoted the Grand Remonstrance against his unconstitutional action, and the Speaker made his famous reply: "I have neither eyes to see nor

tongue to speak in this place, but as the House is pleased to direct me, whose servant I am,” and when the angry cries of “Privilege, Privilege!” raised by Members were the presage of civil war. St. Stephen’s Hall fittingly contains statues of twelve of the greatest and wisest statesmen whose voices so often rang through the old House of Commons. The statesmen thus honoured are Selden, Hampden, Falkland, Clarendon, Somers, Walpole, Chatham, Mansfield, Burke, Fox, Pitt and Grattan; and the selection was made by the historians Macaulay and Hallam.

Beneath St. Stephen’s Hall is the old crypt of St. Stephen’s Chapel. Like the Chapel, it was originally used for religious services. For centuries after the Reformation it was used as a place for shooting rubbish. About a quarter of a century before the fire of 1834 it was converted into a dining-room in which the dinners given by the Speaker to Members took place. After the fire the crypt was restored to its original purpose, and for a time was a place of worship for the numerous residents within the area of the Palace of Westminster. It is the most beautiful place in the Palace, with its altar, inlaid marble floor, walls of mosaic and groined ceiling. It is also a place of solitude and silence. Not for years has it been used as a place of worship. The only sound to which it now re-echoes is the cry of the infant as the water of baptism is poured on its head. One of the few privileges of an M.P. is that a child born to him may be christened in St. Stephen’s Crypt.

A new Member is not many hours in the Palace of Westminster before he has secured the special peg for his hat and overcoat in the beautiful cloisters of old St. Stephen’s, which has been turned into a cloak-room for the Commons; obtained one of the long rows of lockers, or presses, in the corridors, immediately surrounding the Chamber, to which each Member is entitled, for storing books and papers; enjoyed a pipe or cigar in the smoking-room; had a meal in one of the several dining-rooms; read the newspapers in the news-room, or made himself acquainted with some of the contents of the extensive Library; strolled on the Terrace; had tea in the tea-room, and dispatched numbers of letters on the official stationery of the House to relatives and friends giving his first impressions of the scene where glory or obscurity awaits him as a representative of the people.

One of the most pleasant adjuncts of the House of Commons is the large and lofty suite of rooms overlooking the Thames, which is devoted to the Library. But there is more in these apartments than books. They also contain some rare and most interesting historical relics, parliamentary and political. Here in a glass case is shown a manuscript volume, stained and mouldered, of the old Journals of the House of Commons. The writing on the pages that are open is not easily decipherable. But it is well worth while endeavouring to peruse it, for it is the official chronicle of the raid of Charles I on the House of Commons. The shaky handwriting tells of the agitation of the Clerk when he made the record.

In the Library is also to be seen a memento of a curious privilege enjoyed of old by Members of Parliament. This is a collection of envelopes franked by eminent Members of both Houses. It comprises about 10,000 signatures, and covers the period from 1784 to 1840, when franking was abolished. By the system of franking, Peers and Commons had the free delivery of letters posted by themselves and their friends. It was introduced in 1660 to relieve Members of some of the expenses incurred in the discharge of their national duties. But this freedom of the Post Office was not confined to letters. Household furniture and even a pack of hounds were sent free through the post by M.P.'s in England, and in Ireland an M.P. franked his wife and children from Galway to Dublin and back on a holiday trip. Members also signed packets of letters wholesale and gave them away to friends. One noble lord thereby franked the tidings of his own death. He died suddenly at his desk after addressing some covers to friends, and the family economically used the covers to tell those friends that he had passed away. Ultimately, in the last decade of the eighteenth century, the daily allowance to each Member of both Houses was limited to ten sent by himself and fifteen received by him. All such letters had to bear on their covers the signatures of those who franked them. In the House of Commons collection are to be seen the autographs of archbishops and bishops, of Peers and of Commoners, including such celebrities as Nelson, Byron, Canning, Fox, Peel, Palmerston, Wellington, Clive, Cobbett, Grattan, O'Connell and Gladstone. In the year 1837 as many as 7,400,000 franked letters were posted, at an estimated loss to the revenue of the Post Office of over £1,000,000. At the same time all sorts of devices had to be resorted to by the poor to evade the heavy postage, from 10d. to 1s. 6d., which was then charged for letters. Rowland Hill, the author of the penny postal system,

used to underline words in newspapers which he sent home—a Whig politician's name to indicate that he was well, and a Tory's that he was ill. Franking was abolished in 1840, on the establishment of the penny post. Members, however, are still entitled to the privilege of sending free through the post a limited number of copies of a Bill to their constituents, by endorsing the covering wrapper with their signatures.

The table of the old House of Commons, which was designed by Sir Christopher Wren in 1706, and at which Burke, Pitt, Fox, Canning and Peel stood while addressing the House, was found in the ruins, after the fire of 1834, almost uninjured. It is now preserved in the tea-room. In one of the smoking-rooms is to be seen an interesting memorial of Henry Broadhurst, one of the first of the Labour members. In a glass case are the mallet and chisels used by him as a stonemason employed on the buildings of the new Palace of Westminster, which he was afterwards to enter, not only as a Member, but as a Minister, for he served as Under-Secretary of the Home Department in 1886.

7

The old Houses of Parliament had no such pleasant lounge as the Terrace, which extends the whole length of the river front. On summer nights Members who desired a blow of fresh air promenaded old Westminster Bridge. "It was a beautiful, rosy, dead calm morning when we broke up a little before five to-day," wrote Francis Jeffrey, M.P. and editor of the *Edinburgh Review*, to a friend on April 20, 1831, in reference to a late and stormy sitting over the first Reform Bill, "and I took three pensive turns along the solitude of Westminster Bridge, admiring the sharp clearness of St. Paul's, and all the city spires soaring up in a cloudless sky, the orange-red light that was beginning to play on the trees of the Abbey and the old windows of the Speaker's house, and the flat green mist of the river floating upon a few lazy hulks on the tide and moving low under the arches. It was a curious contrast with the long previous imprisonment in the stifling, roaring House, amid dying candles, and every sort of exhalation." If Jeffrey could return from the Shades and see the Terrace, especially on a fine afternoon in June or July, when "five o'clock tea" is being served, how amazed he would be, and how he would curse his fate that he should have been born a century or so too soon! Perhaps? For there are legislators who think that "Tea on the

Terrace” is a function lowering to the dignity of Parliament. A part of the Terrace is reserved for their sole use by a notice, “For Members Only,” where they may ruminate in gloomy aloofness undisturbed by the smiles of beauty and the rustle of her skirts.

As the new Member explores the corridors and rooms, he will see the walls hung with portraits of all the Prime Ministers, all the Speakers, and a long line of Chancellors of the Exchequer, besides those of other distinguished politicians who never attained to office. Apart from their innate interest as counterfeit presentments of great statesmen, in mezzotints or line engravings, these pictures should stimulate the ambition of the new Member to make a name for himself. There is one way in which the new Member may employ his leisure at Westminster with profit to the tax-payer. That is to follow the excellent example set by Passmore Edwards, the philanthropist, who sat in Parliament for a number of years in the last quarter of the nineteenth century. Writing in his autobiography, *A Few Footprints*, he says:

I would write the words “Waste not, want not” over the doors of parliament houses, palaces, cottages, workshops and kitchens; and if the spirit and meaning of the motto were put in practice the world would spin through space with a double joy. While a Member of Parliament I always, when opportunity offered, lowered the gas within reach that was burning to waste. I did so for a double reason—to prevent waste and to preserve the purity of the air of the House; but I never saw or heard of any other Member or servant of the House doing a similar thing.

“True political economy,” Edwards adds, “is in reality true moral economy. I hate waste anywhere and everywhere.”

CHAPTER VIII

ASSEMBLING OF THE NEW PARLIAMENT

1

The procedure of Parliament is very ancient. An old-world spirit animates especially the quaint and curious ceremonies that mark the assembling of a new Parliament. The House of Commons is crowded. What a number of strange faces are in the throng! It is easy to distinguish the new Members by the eager looks of curiosity and wonder, not unmixed with triumph, with which they gaze on every feature of the historic Chamber and follow every movement of the officials, and the shyness with which they cheer, or indulge in forms of applause unfamiliar to the House, such as the clapping of hands, as their leaders appear and take their places on the two front benches—the Treasury Bench on one side and the Opposition Bench on the other. But this shyness soon disappears. There is a story told that an old Member was thus addressed by a new Member at the opening of a new Parliament: “If you please, sir, where do the Members for boroughs sit?” The incident was told to Disraeli, who was much diverted. “Yes,” said he, “and in three months we shall have that Member bawling and bellowing and making such a row there will be no holding him!” At one time county Members and borough Members were distinct not only in class, but in manners and dress. The ancient distinction between “Knight of the Shire,” “Citizen of the City,” “Burgess of the Borough,” was removed by the Ballot Act of 1872, all representatives being grouped as “Members of the House of Commons.”

As yet they are without a head. They have no Speaker. In fact, the House of Commons has not yet been constituted. It is only when the Speaker is elected and the Members have taken the oath of allegiance and signed the Roll that the House really begins its corporate existence. The first thing to be done, therefore, is for this throng to obtain that coherency, that solidarity, which is given to an assembly by the appointment of a president. Until the

Speaker is elected, the Clerk, sitting in wig and gown at the Table, assumes the direction of affairs. But before the Commons can appoint a Speaker they must have the consent of the Sovereign, and that is given them at the Bar of the House of Lords.

Suddenly the buzz of conversation, the interchange of jokes, and the laughter which follows, are stilled by a stentorian cry of “Black Rod.” It comes from the door-keeper in the lobby outside. Presently “Black Rod,” the messenger of the House of Lords, appears. He is never allowed free access to the House of Commons. The doors are closed in his face by the Serjeant-at-Arms, and he has to knock for admission before it is granted to him. He walks slowly up the floor, carrying in his right hand a short ebony rod tipped with gold, the emblem of his office. On reaching the Table “Black Rod” delivers his message, which is an invitation to the Commons to come to the House of Lords. Then, retreating backwards down the floor to the Bar, he waits until joined by the Clerk, when the two officials walk across the intervening lobbies to the House of Lords, followed by a struggling crowd of new Members, determined not to miss anything, shoving and jostling each other in their eagerness to secure good places in the “Gilded Chamber.”

“Gilded Chamber,” indeed! Gladstone’s most appropriate description of the House of Lords springs at once to the mind, such is its gorgeous colouring in which gold predominates, and its glow and sparkle, especially when the electric lights are on. The first thing that arrests the eye of the spectator is the Throne, provided with two chairs for the King and Queen, and emblazoned with the Royal Arms, on a dais at the top of the Chamber. It is unoccupied, but seated on a bench beneath it, all in a row, are five Lords, arrayed in ample red robes, slashed with ermine or white fur, and three-cornered hats. These are the Lords Commissioners, to whom the King delegates his authority in matters parliamentary when his Majesty is not present in person.

When the Commons, headed by the Clerk, stand huddled together at the Bar, the Lord Chancellor—the central personage among the Lords Commissioners—without rising from his seat or even lifting his hat by way of salutation, informs them that his Majesty has been pleased to issue Letters Patent under the Great Seal constituting a Royal Commission to do all things in his Majesty’s name necessary to the holding of the Parliament.

He then addresses the Members of the two Houses of the Legislature in the following words:

My Lords and Gentlemen,—We have it in command from his Majesty to let you know that his Majesty will, as soon as the Members of both Houses shall be sworn, declare the causes of his calling this Parliament; and it being necessary that a Speaker of the House of Commons shall be first chosen, it is his Majesty's pleasure that you, gentlemen of the House of Commons, repair to the place where you are to sit and there proceed to the choice of some proper person to be your Speaker, and that you present such person whom you shall so choose here to-morrow at twelve o'clock for his Majesty's Royal approbation.

Then the Clerk and the Members of the House of Commons, without a word having been spoken on their side, return to their Chamber.

2

The election of Speaker is at once proceeded with in the House of Commons. There is no ceremony at Westminster more novel and interesting, and none that illustrates more strikingly the continuity through the centuries of parliamentary customs. The Clerk of the House of Commons presides. He sits in his own seat at the Table. Immediately behind him is the untenanted high-canopied Chair of the Speaker. The Mace, that glittering emblem of the Speaker's authority, is invisible. The Clerk may not speak a word in the discharge of his duties on this great occasion. All he is permitted to do is to rise and silently point with outstretched finger at the Member who, according to previous arrangement, is to propose the candidate for the Chair, and later on to indicate in the same dumb way the Member who is to second the motion. If there is to be no contest, and at the assembling of a new Parliament the former Speaker is invariably re-elected unanimously, the motion that he "do take the Chair of this House as Speaker" is made by a leading unofficial Ministerialist, and seconded by an old and respected Member of the Opposition. The Government take no part in the ceremony so far, in accordance with an old-established tradition that the election or re-election of a Speaker is the independent and unfettered action of the House. The motion is not put to the House in the customary manner. The Clerk does not say, "The question is that James William Lowther do take the Chair of this House as Speaker." The Speaker-designate rises in his place on one of the back benches and humbly submits

himself to the will of the House. The Commons express their unanimous approval of the motion by cheers without question put. Thus the Speaker-Elect is literally “called” to the Chair by the House.

In one respect only has time altered the symbolic details of the ceremony. In the long, long ago it was the custom for the Member chosen for the Chair humbly to protest that of all the House he was the least suited for the exalted position. An amusing instance of this modest declaration of unfitness comes down to us from the days of Queen Elizabeth. The House of Commons having met for the choice of a Speaker, Mr. Serjeant Yelverton was proposed by Sir William Knowles. “I know him,” said Knowles, “to be a man wise and learned, secret and circumspect, religious and faithful, every way able to fill the place.” “Aye, aye, aye,” cried the whole House; “let him be Speaker.” Then rose the modest, blushing Yelverton. He said he was at a loss to account for his selection for the Chair, lacking as he did every quality that was necessary in a Speaker. He had no merit and no ability. He was moreover a poor man with a large family. Nor was he of a sufficiently imposing presence. The Speaker ought to be a big man, stately and comely, well-spoken, his voice great, his carriage majestic, his nature haughty, and his purse plentiful and heavy. But, contrarily, he was of a small body, he spoke indifferently, his voice was low, his carriage of the commonest fashion, his nature soft and yielding, and his purse light. He adjured the House to consider well before it made the grievous mistake of appointing to the Chair a man so totally unfitted for the post. But the House, mightily impressed by these humble expostulations, so becoming in a candidate for the Speakership, persisted in unanimously electing Mr. Serjeant Yelverton; as, indeed, Mr. Serjeant Yelverton, despite all his protestations of unworthiness, well and gladly knew they would do.

It is not so long since another amusing piece of comedy used to be enacted on this otherwise serious and solemn occasion. The proposer and seconder of the Speaker-designate were required in the prescribed parliamentary phrase to “take him out of his place” and conduct him to the Chair; while he was obliged to wriggle his shoulders as if he were struggling to free himself from their hands and escape from the House. Surely they were not serious—he meant to convey—in conferring upon one so lowly and unworthy an office so dignified and exalted? This display of mock modesty is now a thing of the past. The only part of it that survives is

that the proposer and seconder approach the Speaker-designate, and when they are within a few paces of him, the Speaker-designate rises and walks to the Chair, his sponsors following close behind. The Speaker-designate does not, however, immediately go into the Chair. Standing on the dais, he again thanks the House for the high honour conferred on him, and then takes his seat as “Speaker-Elect,” as he is called at this stage of his evolution. The glittering Mace, which all the time lay hidden under the Table, is now placed by the Serjeant-at-Arms in its usual position within sight of all eyes to indicate that the House is sitting. Then follow congratulations generally offered by the Leader of the House and the Leader of the Opposition, after which the House adjourns. The first day’s ceremony of the opening of the new Parliament is over.

3

But although the Commons have chosen one of their number “to take the Chair of this House as Speaker,” the Constitution requires that before he can enter upon the duties of his office he must submit himself in the House of Lords for the Sovereign’s ratification of his election. Until the approval of the Crown has been signified he continues to be styled “Mr. Speaker-Elect.” Next day sees the completion of the ceremony of Mr. Speaker’s election. He enters the Chamber, by way of the lobby, heralded by the ushers who preceded him, crying “Way for the Speaker-Elect” with an emphasis on “elect,” and attended by the Serjeant-at-Arms. It is also evident from the dress of the choice of the Commons, that his evolution as Mr. Speaker is not yet complete. He is still, as it were, in the chrysalis or transition state. He is seen to be only half-made up, wearing, it is true, the customary Court dress—cutaway coat, knee-breeches, silk stockings, and shoes—but not the customary full-flowing silk gown, and with only a small bob-wig—that is, the short wig of counsel when practising in courts of law—instead of the customary full-bottomed wig with wings, which fall over his shoulders. Further, it is noticeable that the Serjeant-at-Arms does not carry the Mace on his shoulder—as he usually does—but holds it reclining in the hollow of his left arm, his right hand grasping its end.

The Lords assemble on the second day of the new Parliament at the same hour as the Commons, and once more is “Black Rod” despatched to invite the attendance of Members of the Lower House to the House of Peers, to

hear the Royal will in regard to the election of the Speaker. On arriving at the Upper Chamber, the Speaker-Elect stands at the centre of the Bar, with “Black Rod” to his right, the Serjeant-at-Arms (who has left the Mace outside) to his left, and his proposer and seconder immediately behind in the forefront of the crowd of Commons who have followed him across the lobbies. He bows to the Lords Commissioners, who, in all the glory of scarlet robes and cocked hats, are again seated on the form in front of the Throne, and they who yesterday encountered the Commons without lifting a hat, now acknowledge the salutation of the Speaker-Elect by thrice respectfully bending their uncovered heads. Then the Speaker-Elect addresses them as follows:

I have to acquaint your Lordships that, in obedience to his Royal commands, his Majesty’s faithful Commons have, in the exercise of their undoubted right and privilege, proceeded to the choice of a Speaker. Their choice has fallen upon myself, and I therefore present myself at your Lordship’s Bar humbly submitting myself for his Majesty’s gracious approbation.

To this the Lord Chancellor, addressing the Speaker-Elect by name, replies:

We are commanded to assure you that his Majesty is so fully sensible of your zeal for the public service, and your undoubted efficiency to execute all the arduous duties of the position which his faithful Commons have selected you to discharge, that he does most readily approve and confirm your election as Speaker.

His election having thus been ratified by the Sovereign, Mr. Speaker “submits himself in all humility to his Majesty’s royal will and pleasure”; and if, says he, in the discharge of his duties, and in maintaining the rights and privileges of the Commons’ House of Parliament, he should fall inadvertently into error, he “entreats that the blame may be imputed to him alone, and not to his Majesty’s faithful Commons.” Assertions of the rights and privileges of the House of Commons follow fast on expressions of loyalty to the Throne during the ten minutes that the Speaker, surrounded by “the faithful Commons,” stands at the Bar of the House of Lords, and holds this significant historical colloquy—which has been repeated at every election of Speaker on the assembling of a new Parliament for many centuries—with the Lord Chancellor, not as the President of the House of Lords, but as the representative of the Sovereign; for the next duty of the Speaker is to request from the Sovereign recognition of all the ancient

rights and privileges of Members of Parliament, which are “readily granted” by the Sovereign, speaking through the Lord Chancellor. This ends the ceremonial. The Speaker and the Commons return to their Chamber as they came. But, see, the Mace is now borne high on the shoulder of the Serjeant-at-Arms, and hear the usher announcing “Mr. Speaker” and “Way for Mr. Speaker.” The Speaker passes through the Chamber to his rooms, and in a few minutes comes back arrayed in the complete robes of his office. Then, standing on the dais of the Chair, he reports what took place in the House of Lords. It is one of the curious customs of Parliament that the Speaker always assumes that he has been to the House of Lords alone, and that the Commons are in absolute ignorance of what has happened there. Without the slightest tremor of emotion, or the faintest indication of satisfaction, the Commoners learn that their “ancient rights and undoubted privileges” have been fully confirmed, particularly freedom from arrest and molestation, liberty of speech in their debates, and free access to the Sovereign. They know full well that if they do anything criminal they may feel the dread touch of the policeman on their shoulders—freedom from arrest for debt was abolished long ago—and they know also that even if they would they could not disturb the domestic privacy of the King. So the solemn announcement evokes not a solitary cheer. But there is loud applause upon the Speaker thus finally concluding: “I have now again to make my grateful acknowledgments to the House for the honour done to me in placing me again in the Chair, and to assure it of my complete devotion to its service.” The ancient and picturesque ceremony of the election of Speaker of the House of Commons is completed.

4

At the assembling of every new Parliament the Members for the City of London, in accordance with an ancient custom, have the privilege of sitting on the Treasury Bench with the Ministers, though for the opening day only. I have frequently read in the newspapers that this privilege was given to the City of London by way of commemorating the protection afforded to the Five Members on that historic day, January 4, 1642, when Charles I came down to the House of Commons to arrest them for their opposition to his will, and found to his discomfiture that “the birds had flown,” to use his own words. The statement is not well established. It is a singular thing that

no written record of the origin or existence of the custom is to be found at the Guildhall any more than at the House of Commons. But there is authority for saying that the right was exercised in the time of Elizabeth, and over seventy years before the conflict between Charles I and the Parliament.

The earliest reference to it is contained in a Report on the Procedure of the English Parliament prepared in 1568 at the request of the then Speaker of the Irish Parliament by Hooker, a well-known antiquarian of the time, who was a Member both of the English and Irish Parliaments. This report was printed and presented to the Irish Parliament, and was reprinted in London about 1575 under the title of "The Order and Usage of the Keeping of a Parliament in England." It is set out fully in Lord Mountmorres's *History of the Principal Transactions in the Irish Parliament from 1634 to 1666*, published in 1792. Hooker, describing the seating of Members in the House of Commons, says:

Upon the lower row on both sides the Speaker, sit such personages as be of the King's Privy Counsel, or of his Chief Officers; but as for any other, none claimeth, or can claim, any place, but sitteth as he cometh, saving that on the right hand of the Speaker next beneath the said Counsels, the Londoners and the citizens of York do sit, and so in order should sit all the citizens accordingly.

It will be noticed that the representatives of York as well as those of London sat, according to Hooker, on the Front Bench to the right of the Speaker. Probably the privilege was conferred upon London and York as being the first and second cities of the Kingdom. But it seems clear that the privilege was not at first confined merely to the opening day of a new Parliament, but was exercised at every sitting of the House of Commons. The only other authoritative statement on this subject which I have found is in Oldfield's *Representative History of Great Britain and Ireland*, published in 1816. The passage is as follows: "It (York City) sends two Members to Parliament, who are chosen by the freemen in general, and who enjoy the privilege of sitting in their scarlet gowns next the Members for London on the Privy Councillors' bench on the first day of the meeting of every new Parliament." In 1910, the then representatives of York, A. Rowntree and John Butcher, with a view to asserting this privilege in the same manner as it is asserted by the representatives of the City of London, laid the facts before Mr. Speaker Lowther. After a full consideration of the matter he gave

it as his opinion that, assuming the right to have once existed, it must be considered, in the absence of any evidence of having been used in modern times, to have lapsed, and could not now be properly claimed or exercised.

5

On the morning of the day that the new Parliament meets for business—the day on which the King’s Speech is read—the corridors, vaults and cellars of the Palace of Westminster are searched to see that all is well with the building and safe for the King, Lords and Commons to assemble within it—a ceremony (for it is now only that) which is repeated on the opening day of every session. It recalls the Gunpowder Plot of Guy Fawkes to blow up the Parliament in 1605.

The Commons possess but one memento of Guy, that most notorious of all anti-parliamentarians. In a glass case in the Members’ Library may be seen a long, narrow key with a hinge in the centre for folding it up—so that it might be carried more conveniently in the pocket—which was found on Fawkes when he was captured. It was the key to the cellar of gunpowder extending under the House of Lords, though it was really part of an adjoining empty house which the conspirators had taken for their purpose. The custom of searching the Houses of Parliament is popularly supposed to date from the Gunpowder Plot, but it did not commence until eighty-five years later. According to a document preserved in the House of Lords, an anonymous warning received in 1690 by the Marquess of Carmarthen, setting forth, “There is great cause to judge that there is a second Gunpowder Plot, or some other such great mischief, designing against the King and Parliament by a frequent and great resort of notorious ill-willers at most private hours to the house of one Hutchinson in the Old Palace Yard, Westminster, situate very dangerous for such purpose,” led to a thorough examination of the buildings, and though nothing was then found, from that time to this the search appears to have been regularly made year after year.

The search party consists of twelve Yeomen of the Guard from the Tower in all the picturesque glory of their Tudor uniforms, accompanied by representatives of the Lord Great Chamberlain and the Office of Works, and the two police inspectors of the Houses of Lords and Commons. They tramp through the miles of corridors and lobbies, looking carefully into

every nook and corner, and down in the equally extensive basements they examine everything with the utmost minuteness, going among gas pipes, steam pipes, hot-water pipes, electric-light conductors, to make sure that no explosives have been deposited there. When the search was first ordered, years and years ago, the Yeomen of the Guard were directed to carry lanterns to light their way through the dark passages. The corridors and cellars are now flooded with electric light. But the search party, still obeying the old order, march along swinging their lanterns. And still the solemn function ends up with service of cake and wine to the old Beefeaters, and the drinking of long life to the King, with a hip-hip hurrah! Only in one respect is there a departure from the old procedure. At one time it was customary, when the inspection was over, for the Lord Great Chamberlain to send a mounted soldier with the message "All's well" to the Sovereign. The mounted soldier no longer rides post-haste to the King at Buckingham Palace; but every year the Vice-Chamberlain lets his Majesty know, by private wire, that everything is ready for his coming to meet the Lords and Commons in the House of Lords to announce from the Throne the business for which he has summoned Parliament to meet.

CHAPTER IX

TAKING THE OATH OF ALLEGIANCE

1

Let us linger awhile in the Upper Chamber to note what happens when, on the second day of the opening of a new Parliament, the Commons return to their own House, having at their head no longer a mere "Speaker-Elect," but a fully-fledged "Mr. Speaker," who has been completely evolved from the chrysalis state by the magic influence of the Royal approbation. As the noise of the retreating feet of the exultant Commons irreverently breaks for a minute or so the solemn stillness of the House of Lords, the five Lords Commissioners rise from their bench, and with slow, toilsome footsteps, as if the weight of their ample scarlet robes trailing on the ground behind them impede their progress, disappear behind the Throne. After a brief interval the Lord Chancellor reappears, attired in his customary robes—which, like the Speaker's, consist of a full-bottomed wig and a flowing black gown worn over levee dress—and takes his seat on the Woolsack. The junior bishop among the Lords Spiritual present reads the prayers, while the peers stand with bowed and reverent heads. Then the process of swearing-in begins. The Lord Chancellor is the first to come to the table; and, with a copy of the New Testament in his right hand, and a large paste-board card containing the words of the oath, in his left, he repeats, after the Clerk of the Parliaments, the declaration that he will be faithful and bear true allegiance to his Majesty; after which he kisses the book, and writes his name on the Roll of Parliament. It is the first signature on the virgin sheet. The roll is of a different kind in each House. In the Upper Chamber it is really a roll. It consists of one long sheet of paper, about 16 inches in width, which winds round a roller. The peers simply write their ordinary signatures, such as "Birkenhead," "Morley," "Rosebery," "Salisbury," or "Lansdowne."

As the Lord Chancellor returns to the Woolsack, Garter King of Arms (the head of The Herald's College), appears, in his gorgeous tabard, emblazoned back and front with the Royal Arms and many quaint devices, and delivers to the Clerk the Roll of the Lords. The Clerk of the Crown in Chancery, wearing wig and gown, also enters and presents a certificate of the return of the sixteen representative Scottish peers, who are elected for every new Parliament by the peerage of Scotland. Then the peers come to the table without any order or precedence being observed, and each, having first handed over his writ of summons, a small piece of limp parchment, to the Clerk, takes the oath, and subscribes the Roll.

“Once a peer, a peer for life,” it is said, truly enough, and yet every Lord of Parliament must receive, at the dissolution, a fresh summons from the Crown, and must take a fresh oath of allegiance, before he can resume his legislative duties in the new Parliament. The writs are issued from the Crown Office at Westminster to “the Lords spiritual and temporal” individually. The mediæval quaintness of the summons—it has been in use for over six centuries—is shown in its principal passage:

We strictly enjoining, command you upon the faith and allegiance by which you are bound to Us, that the weightiness of the said affairs and imminent perils considered (waiving all excuses), you be at the said day and place personally present with Us, and with the said Prelates, Great Men, and Peers, to treat and give your council upon the affairs aforesaid. And this, as you regard Us and Our honour and the safety and defence of the said United Kingdom and Church and dispatch of the said affairs, in no wise do you omit.

The writ sent to the spiritual peers is the same, save that they are commanded to attend upon their “faith and love” instead of their “faith and allegiance,” as in the case of the peers temporal. The Archbishops of Canterbury and York, and the Bishops of London, Durham and Winchester, become Lords of Parliament immediately on their consecration, but the other prelates of the Church Establishment must await, in the order of seniority of consecration, writs of summons to the House of Lords, according as vacancies arise by death or resignation in the estate of the Lords spiritual. The number of spiritual peers is limited to twenty-six, and as there are thirty-six dioceses in the Established Church, ten of the prelates are therefore not Lords of Parliament, but all of them—save the Bishop of Sodor and Man—may hope, in time, to have seats in the House of Lords by

succession. It is an interesting fact that the making of an affirmation instead of taking the oath—a not infrequent occurrence in the Commons—is rarely to be seen in the Lords. The only time I have witnessed it was when Viscount Morley of Blackburn (better known in literature and politics as John Morley) came to the table on his first introduction to the House of Lords in May 1908, and the Clerk produced, in the usual course, the New Testament and the copy of the oath. Lord Morley refused to be sworn, and insisted on making affirmation instead. As there was no precedent for such a demand in the House of Lords, no form of affirmation was available; but after a hurried consultation between the Lord Chancellor and the Clerk, the terms of the oath, with the appeal to the Almighty, “So help me, God” omitted, were made to serve the purpose.

2

In the House of Commons the procedure of swearing-in members is somewhat different. The Speaker is the first to take the oath. As soon as he returns to the Chair, in the full garb of his office, he stands on the dais, and repeats the words of the oath after the Clerk. It is a very simple declaration, and is the same in both Houses:

I, ———, swear by Almighty God that I will be faithful and bear true allegiance to his Majesty King George, his heirs and successors, according to law. So help me, God.

The Speaker then signs the Test Roll, which, differing in form from the Roll of Parliament in the Upper House, is a large book strongly bound in leather, with brass clasps, opening at the bottom instead of at the sides, and with a sheet of blotting-paper between every two leaves. A new Test Roll is provided for each new Parliament.

After the Speaker, Members are sworn in in batches. To expedite matters, two tables are brought into the Chamber, and, being placed in line with the Clerk’s Table, are each supplied with copies of the New Testament and five large paste-boards, on which the oath is printed in bold type. At each table one of the clerks-assistant stands, and administers the oath to the Members, as they present themselves in groups of five, two or three holding between them a Testament, and each having in his left hand one of the oath-cards, the words of which they repeat, and then kiss the book. The first to take the

oath and sign the roll after the Speaker are the Leader of the House and the Leader of the Opposition. Members of “his Majesty’s most honourable Privy Council,” and the Ministers, past and present, next have precedence, and take the oath separately from the other Members.

In the Lords, as we have seen, each peer, before taking the oath and subscribing the Roll, gives the Clerk his writ of summons. But in the Commons no proof of identity—no evidence that they are duly elected M.P.’s—is required from the gentlemen that present themselves at the Table to take the oath and subscribe the Test Roll. It is true that the Clerk of the Crown in Chancery receives at his office at Westminster from the returning officer of every constituency what is called the return of the writ—that is, actually the writ of election, with the name of the elected representative certified on the back—and that the names of the Members, with the constituency each represents, are inscribed in a book, called the “Return Book,” which is delivered by the Clerk of the Crown to the Clerk of the House of Commons on the day the new Parliament opens.

But though ordinarily all the approaches to the Chamber are guarded by vigilant policemen and door-keepers, who know every Member of the House, it is obviously impossible at the opening of a new Parliament—when there is a large influx of new Members—for the officials on duty to be able to discriminate between those who say they are representatives and those who may be strangers. It would not be difficult, therefore, for an impostor of nerve and audacity, with some knowledge of the House and its ways, to enter the House by personating some Member whom he knew could not be in attendance, to vote in a division on the Speakership, should there be a contest for the Chair, and even to take the oath and subscribe the Roll. There is no case of personation on record, but it is possible in the circumstances. The Return Book is a conspicuous object on the Table during the swearing-in of Members. It is there for reference by the Clerk, in the event of a question arising as to the identity of any person who may present himself. However, as it contains merely the name of each Member and his constituency, and not his portrait and description, it is hardly an insuperable bar to personation, and accordingly, in the case of new Members, the question of identity has to be taken on trust by the Clerk. But there is no doubt that a Member who for any reason did not want to take the oath could quite easily evade the obligation.

In the case of a contested election for the Speakership, Members would of course have to vote without having been sworn. What, it may be asked, would happen in the event of a Member, after the election of the Speaker, sitting and voting without having taken the oath and signed the Roll? The penalties provided by an Act passed in 1866 are a fine of £500 for each commission of the offence of voting, and the immediate deprivation of the seat, which, *ipso facto*, becomes vacant. The payment of the fines, when the offence has been committed through mistake, ignorance, or inadvertence, can be remitted by an Act of Indemnity, but it is contended that nothing can avoid the instant vacating of the seat. I remember hearing it persistently whispered that one Member elected at a certain General Election had never taken the oath or signed the Roll. The matter, however, was never brought to the notice of the House. A peer who takes his seat and votes without having previously subscribed to the oath is likewise liable for every such vote to a penalty of £500. Peers have so inadvertently violated the law. Each explained that having taken the oath and signed the Roll on his accession to the peerage he thought he was not obliged to do so again when a new Parliament assembled. This excuse was accepted in the case of four peers in 1906. Bills of Indemnity were then said to be no longer necessary.

The swearing-in of Members returned to the House of Commons at the General Election of 1918—the first after the World War—had one new feature. It was introduced owing to changes in the law of election made by the Reform Act of 1918. It is provided by that Act that a candidate must lodge £150 with the returning officer at his nomination, which sum is not given back until the returning officer is officially informed that the candidate, if elected, has taken the oath and signed the Roll. Accordingly, to provide a means of ready discovery as to whether a particular Member had or had not subscribed to the oath, two clerks sat at the Table, with printed lists of the names and constituencies, which they ticked off as the name and the constituency of each Member was announced by the Clerk of the House in the course of the introduction of the Member to the Speaker.

As Members take the oath, they proceed, in single file, to subscribe the Test Roll, over which the Clerk stands sentinel. Each Member writes his full name and that of his constituency. He is then introduced by the Clerk to the Speaker, who shakes hands with him. So the process of swearing-in goes on for two or three days. It is slow and tedious work, and the House is not a lively place while it is in progress. Occasionally a special incident relieves the tedium of the proceedings. Some Members claim to make an affirmation instead of being sworn, on the ground that he has no religious belief, or that the taking of an oath is contrary to his religious belief. The affirmation is in the same form as the oath, except that the words "Solemnly, sincerely and truly declare and affirm" are substituted for the word "swear," and the words, "So help me, God" are omitted. These have to sign their names on a different part of the Test Roll. It is no unusual thing either to see a Member, wearing his hat, sworn on a book provided by himself. He belongs to the Jewish persuasion, which requires the oath to be taken with covered head on a copy of the Pentateuch, or first five books of the Old Testament. Others prefer to swear with uplifted hand instead of by kissing the New Testament. The oath is administered in about a minute to each batch. It is in signing the Test Roll that time is consumed. The Member who has not his glasses adjusted, or who searches on the Table for the pen that suits him best, with which to inscribe his name on the roll of fame in bold and lasting caligraphy, may block a group anxious to get to the lunch-rooms or smoking-rooms, and may prove the same kind of nuisance to his fellows as the man who wants to change a five-pound note at the railway booking-office, though there is a long and impatient queue behind, and the train is on the point of starting.

CHAPTER X

MR. SPEAKER

1

As “Mr. Speaker” does not speak in the debates, the title of the President of the House of Commons appears, at first sight, paradoxical. The original function of the office was to sum up, like the Judge at a trial, the arguments of both sides at the close of a debate. “If any doubt arise upon a Bill,” says an Order passed in 1604, “the Speaker to explain, but not to sway the House with argument or dispute.” Mr. Speaker had also to “speak” the views of the House in its contentions with the Crown, about supplies and taxes, before the Revolution of 1688.

The duties of the Speaker to-day are not so anxious or troublesome. The occasions on which he conveys the views or desires of the Commons to the Sovereign, or his representatives, the Lords Commissioners in the House of Lords, are rare, and always formal or ceremonious. He has been relieved long since of the invidious task of summing up a debate in which the contending parties had argued out their differences. His duties are now more appropriate to his office, as controller and guide of a deliberative Assembly. He keeps the talk strictly to the subject of discussion. He decides points of order. He interprets the rules of the House. He is ever ready to assist Members in doubt or difficulty about a question, a motion or a Bill. He guards with jealous care the authority, honour and dignity of the House. He is most concerned with the maintenance of its great traditions of good order, decorum, and freedom of opinion.

Above all, Mr. Speaker must be scrupulously fair, absolutely just, in rulings which may affect any of the political sections of the Assembly. For the most precious attribute of the Chair of the House of Commons is impartiality. The Speaker, like the King, is supposed to have no politics. That has become almost a recognized constitutional principle. Of course, he is returned to the House originally as a supporter of one or other of the

political parties. It follows also that on his first appointment to the Chair he is necessarily the choice, or the nominee, of the political Party which at the time is supreme. The Chair of the House of Commons, when vacated by resignation or death, has always been considered the legitimate prize of the Party then in office or in power. Accordingly the Speaker has invariably been chosen from the ranks of the Ministerialists. All the Speakers of the nineteenth century—Sir Henry Addington, Sir John Freeman-Mitford, Charles Abbot, Charles Manners-Sutton, James Abercromby, Charles Shaw-Lefevre, John Evelyn Denison, Henry Bouverie Brand, Arthur Wellesley Peel and William Court Gully—were so chosen and appointed, and so was James William Lowther, the first Speaker elected in the twentieth century. But whether the Speaker is first designated by the Government, or, in case of a division, is carried by the majority of the Government, when he is being conducted by his proposer and seconder from his place on the benches to the Chair, he, as it were, doffs his Party colours, be they buff or blue, and wears, instead, the white flower of a neutral political life; and, once in the Chair, he is regarded as the choice of the whole House, from which his authority is derived and of which, to use the ancient phrase, he is “the mouth.” Henceforth he sits above all Parties. As Speaker he has no political opinions. So he remains Speaker—being re-elected unanimously at the first meeting of each new Parliament—until he decides to resign or is removed by death. This concurrence of both sides in the appointment of Mr. Speaker adds immensely to his judicial independence in presiding over the Party conflicts which are waged on the floor of the House of Commons.

Once only has a Speaker been dismissed on the assembling of a new Parliament because he was supposed to be hostile to the Party which came back from the country in a majority. This was Charles Manners-Sutton. A Tory himself, he was the nominee of the Tory Administration in office at the resignation of Charles Abbot in 1817. The moderate Conservatives and Whigs put forward Charles William Wynn. His brother, Sir Watkin Wynn, who was also in the House, and he were known as “Bubble and Squeak,” on account of the peculiarity of their voices. Indeed, Canning thought the only objection to Wynn as a candidate for the Chair was that Members might be tempted to address him as “Mr. Squeaker.” However, Manners-Sutton was elected by the large majority of 160; and in accordance with precedent he was reappointed to the position after General Elections in 1819, 1820, 1826, 1830 and 1831. In July 1832, during the struggle over the great Reform

Bill, he intimated his wish to retire at the close of the Parliament. A vote of thanks for his services was unanimously passed, on the motion of Lord Althorp, the Whig Leader of the House, an annuity of £4,000 was granted to him, and one of £3,000, after his death, to his heir male. But the Whig Ministers, returned again to power at the General Election which followed the passing of the Reform Act, were apprehensive that a new and inexperienced Speaker would be unable to control the first reformed Parliament in which, it was feared, there might be discordant and unruly elements, and they induced Manners-Sutton to consent to occupy the Chair for some time longer. The Radicals, however, decided to oppose his re-election. Accordingly, at the meeting of the new Parliament on January 29, 1833, after Manners-Sutton had been proposed by Lord Morpeth and seconded by Sir Francis Burdett, both Whigs, Edward John Littleton was put up in opposition to him by Joseph Hume and Daniel O'Connell. A division was taken, and Littleton was rejected by 241 votes to 31, or the enormous majority of 210. Thereupon Charles Manners-Sutton was declared elected Speaker unanimously.

When a new Parliament next assembled, on February 19, 1835, the Tories were in office, the Whigs having been summarily dismissed by William IV; but, as the result of the General Election which followed, a majority of Whigs confronted Sir Robert Peel, Prime Minister, in the House of Commons, determined to fight him on every issue. Charles Manners-Sutton was again nominated for the Chair, this time his proposer and seconder being Tories. That he was a staunch Tory everybody was well aware. But he was charged with overt acts of partisanship, in breach of the principle that as Speaker he was bound to be absolutely impartial. It was said that he had been concerned in the Tory opposition to the reform of Parliament, and had, in fact, tried to constitute an anti-Reform Administration himself. It was further said that he had helped in the overthrow of the late Whig Government, and that, had the Tories been successful at the polls, he would have been appointed to high office in Peel's Cabinet. Though he denied these charges, the Whigs as a Party opposed his re-election to the Chair; and their nominee, James Abercromby, was carried in a most exciting contest by the narrow majority of 10, or by 316 votes to 306. "Such a division was never known before in the House of Commons," writes Charles Greville in his *Memoirs*. "Much money was won and lost. Everybody betted. I won £55."

Lord John Russell, speaking in the 1835 debate, said the House of Commons was under no obligation in a new Parliament to re-elect the Speaker, unless he had won for himself the confidence and esteem not of his own Party alone, but of the general body of Members. Even so, no attempt has since been made to depose a Speaker on Party grounds, even when a General Election has upset the balance of Parties in the House of Commons. On the retirement of Abercromby in May 1839, the Whigs, being still in office, nominated Charles Shaw-Lefevre; the Tories ran Henry Goulburn, and the former was elected by a majority of 18, or by 317 votes against 299. The General Election of 1841 resulted in a change of Government. The Melbourne Administration, which elected Shaw-Lefevre to the Chair, was overthrown at the polls, and the Tories came back with a large majority. Many of the victors in the electoral contest were disposed to follow the example set by their opponents in 1835, and make a Party question of the Speakership of the new Parliament. But their leader and Prime Minister, Sir Robert Peel, refused to countenance this line of action. "I do not think it necessary," said he, in a speech supporting the re-election of Shaw-Lefevre in August 1841, "that the person elected to the Chair, who has ably and conscientiously performed his duty, should be displaced because his political opinions are not consonant with those of the majority of the House." The re-election of Shaw-Lefevre was, accordingly, unanimous. Peel's wise view of the Speakership has since prevailed. The continuity of the office has not been broken since the dismissal of Manners-Sutton in 1835. John Evelyn Denison was unanimously chosen to succeed Shaw-Lefevre in 1857, Henry Bouverie Brand to succeed Denison in 1872, and Arthur Wellesley Peel to succeed Brand in 1884. The Whigs, or Liberals, were in office on each occasion that the Speakership became vacant by resignation in those years. And the Conservatives, on their return to power, reappointed Denison in 1866, Brand in 1874, and Peel in 1886.

The circumstances attending the election of William Court Gully as Speaker gave both to the principle that the Chair is above the strife and the prejudices of Party, and the precedent of its occupant's continuity of office, an accession of strength which perhaps makes them stable and decisive for all time. Gully had sat in the House as a Liberal for ten years when, on the retirement of Peel in May 1895, he was nominated for the Chair by the

Liberal Government. The Unionist Opposition proposed Sir Matthew White Ridley, a highly respected member of their Party, and a man of long and varied experience in parliamentary affairs. On a division Gully was elected by the narrow majority of 11. The voting was: Gully, 285; White Ridley, 274. It was publicly declared at the time that, as the Unionists had disapproved the candidature of Gully, they held themselves free to put a nominee of their own in the Chair should they have a majority in the next new Parliament. A few weeks later the Liberal Government was defeated in the House of Commons, and a dissolution followed. It is the custom to allow the Speaker a walk-over in his constituency at the General Election. But Gully's seat at Carlisle was on this occasion contested, and his Unionist opponent received from Arthur Balfour, then Leader of the Unionist Party, a letter warmly endorsing his candidature and wishing him success. In his address to the constituents Gully made no reference to politics. As Speaker of the House of Commons, he could have nothing to say to Party controversy. Like his predecessors, he recognized that a Speaker cannot descend into the rough strife of the electoral battle, not even to canvass the electors, without impairing the independence and the dignity of the Chair of the House of Commons. The contest ended in his re-election by a substantial majority.

The Unionists came back triumphant from the country. There was still a feeling in the Party, though not, indeed, prevailing to any wide extent, that the Speaker of the new Parliament should be chosen from its ranks. It was pointed out that for sixty years there had not been a Conservative Speaker—Manners-Sutton having been the last—and, apart altogether from the legitimate ambition of the Conservatives to have a Speaker of their own way of thinking, it was argued that in building up the body of precedents which guide, if they do not control, the duties of the Chair, Conservative opinion ought to have its proper share, if these precedents are truly to reflect the sense of the House generally. But tradition and practice in the House of Commons were too powerful to be overborne. At the meeting of the new Parliament, in August 1895, Gully was unanimously re-elected to the Chair. The aloofness and supremacy of the Speakership has one fine effect. It gives to the House, despite its Party divisions, an ennobling sense of national unity.

The Speaker forfeits—actually, though perhaps not theoretically—his rights as the representative of a constituency in the House. He is disqualified from speaking in the debates and voting in the divisions. The constituency which he represents is, therefore, in a sense disfranchised. But there is no record of a constituency ever having objected to its representative being made Speaker. No doubt it appreciates the distinction. Formerly it was customary for the Speaker to join in the debates and divisions when the House was in Committee, he having left the Chair, and the proceedings being presided over by the Chairman. In Committee on the Bill for the Union of Great Britain and Ireland, Mr. Speaker Addington, on February 12, 1799, declared that, while he was in favour of the plan, he was strongly opposed to Catholic emancipation with which Pitt was disposed to accompany it. If it were a question, he said, between the re-enactment of all the Popery laws for the repression of Ireland, or the Union, coupled with Catholic emancipation, for the pacification of Ireland, he would prefer the former. Again, during the Committee stage of the Bill introduced by Henry Grattan, in 1813, to qualify Roman Catholics for election as Members of Parliament, an amendment to omit the vital words, “to sit and vote in either House of Parliament,” was moved by Mr. Speaker Abbot (strongly opposed, like Addington, to the removal of the Catholic disabilities), and having been carried by a majority, though only a small one of four votes, proved fatal to the measure. Manners-Sutton also exercised his right to speak in Committee three times on such highly controversial questions as Catholic emancipation and the claims of Dissenters to be admitted to the Universities, to both of which he, like his predecessors in the Chair, answered an uncompromising “No.”

But so high has the Chair of the House of Commons been since lifted above the conflicts of politics, that partisanship so aggressive would not now be tolerated in the Speaker. On the last two occasions that a Speaker interested himself in proceedings in Committee, the questions at issue had no relation whatever to Party politics. In 1856 Shaw-Lefevre spoke in defence of the Board of Trustees of the British Museum, of which he was a member. In 1870 Evelyn Denison voted to exempt horses employed on farms from a licence duty which was proposed in the Budget. This was the last occasion that a Speaker in wig and gown passed through the division

lobby to record his vote, and it is probable that never again will a Speaker speak or vote in Committee. Indeed, Mr. Speaker Gully directed that his name should be removed from the printed lists supplied to the clerks in the division lobbies for the purpose of recording how members voted. The only vote which a Speaker now gives is a casting vote, should the numbers on each side in a division be equal. It is the custom for the Speaker to give his casting vote in such a way as to avoid making the decision final—thus giving the House another opportunity of considering the question—and to state his reasons, which are entered in the *Journals*.

Occasions for the Speaker's casting vote rarely arise. Peel was called upon to give it but once during his eleven years of office; that was on the Marriages Confirmation (Antwerp) Bill in July, 1887. The object of the measure was to confirm marriages solemnized at Antwerp by a Dr. Potts, chaplain to a British and American chapel from 1880 to 1884, the invalidity of which was caused by a technicality. The tie was a motion to adjourn the debate, and Mr. Speaker Peel gave his casting vote for the adjournment. Gully's experience in this respect was singular. On the sole occasion he was called upon to give his casting vote no tie really existed. It was on May 11, 1899, in connection with the second reading of the Vehicles (Lights) Bill. "The tellers for the Ayes and the Noes came up to the Table almost at the same time," said Gully, describing the incident. "One of the tellers gave his number as forty, and the teller for the Ayes was then turned to and asked his number. In point of fact the teller for the Ayes had succeeded by a majority of three. His number should have been forty-three, but he was so elated at hearing of a victory which he had not expected that at the moment he only repeated what the other Member had said, and he said 'forty,' whereupon there was a tie. I then gave my vote for the Ayes, doing that which a Speaker always did on such occasions, although I do not think I had formed any opinion at all upon the Bill. Still, in doing what I did I pursued the proper course, because it gave the opportunity on the third reading for the expression of a decided opinion on the Bill."

CHAPTER XI

“ORDER, ORDER!”

1

What are the qualities, then, which make a successful President of the representative Chamber? “Go and assemble yourselves together, and elect one, a discreet, wise, and learned man, to be your Speaker.” Such were the words a Lord Chancellor in the reign of Elizabeth addressed to a new House of Commons. The order in which the qualities deemed essential for the Speaker are arranged is not without its significance. Discretion comes first. It might be given the second place and the third also. Marked ability is by no means indispensable in a Speaker. Intellectually his duties are not searching. But undoubtedly in the twentieth century, as in the sixteenth, the faculty which is of the highest importance in the art of the Speakership is sagacity, prudence, circumspection—making allowances for the weaknesses and eccentricities of human nature.

John Evelyn Denison had sat in the House for more than thirty years when, in 1857, he was chosen Speaker. Nevertheless, he was awed by the responsibilities of the Chair. In such a position timorousness or irresolution would be fatal. To Denison the prospect was not made less formidable by the reply which he got from his predecessor on inquiring whether there was anyone to whom he could go for advice and assistance on trying occasions. “No one,” said Shaw-Lefevre; “you must learn to rely entirely upon yourself.” “And,” proceeds Denison in his *Diary*, “I found this to be very true. Sometimes a friend would hasten to the Chair and offer advice. I must say, it was for the most part lucky I did not follow the advice. I spent the first few years of my Speakership like the captain of a steamer on the Thames, standing on the paddle-box, ever on the look-out for shocks and collisions.” But these “shocks and collisions” are rarely uncommon or unfamiliar. The House of Commons has not had a life and growth of several centuries without providing an abundance of precepts and examples for the

guidance of its Speaker. Very little happens in the House of Commons that has not happened there often before. Almost every contingency that can possibly arise is covered by a precedent, and if a Speaker be but acquainted with the forms and procedure of the House and the rulings of his predecessors, both of which hedge his course, he cannot go far astray. Nor is it the fact that there is no one to whom he can go for advice. It is the custom for Members to give the Speaker private notice of questions on points of order; unless, of course, such as spring up unexpectedly in debate; and for aid in the decision of these questions the Speaker has not only the clerks who sit at the Table below him to refer to, if necessary, as to custom and procedure, but also a counsel outside to direct him on points of law. "I used to study the business of the day carefully every morning," says Denison, "and consider what questions could arise upon it. Upon these questions I prepared myself by referring to the rules, or, if needful, to precedents." It is also the practice for the clerks to have an audience with the Speaker every day before the House meets, to draw his attention to points of order that are likely to arise, and to confer with him generally on the business of the day. Therefore it is a rare experience for the Speaker to be brought suddenly face to face with an unprecedented situation. And in such a difficulty he has the advantage of being able, as the supreme authority in the House, to impose his ruling unquestioned on all concerned, even should he have gone beyond his exact functions and powers as the director of debate, the preserver of order, the guardian of the rights of Members. Mr. Speaker Lowther was asked, May 14, 1920, how a mistake he might make could be redressed. His reply, greeted with loud laughter, was "The Chair, like the Pope, is infallible."

It must not be supposed, however, that smooth and easy is the way of the President of the House of Commons. The whole art of the Speakership does not consist in presenting a dignified, ceremonial figure, in wig and gown, on a carved and canopied Chair, and having a mastery of the technicalities of procedure. The situation that tests most severely the mettle of the Speaker is one that not infrequently arises in the House of Commons, when there is what the newspapers call "a scene," and he is expected to stand forth on the dais of the Chair the one calm, serious, stern and impartial personality, looming above the noise and recrimination which arises from the benches below. It is not cleverness that is then the indispensable quality in a Speaker. More to the purpose, for the controlling and the moderating of

the passions of a popular assembly, are the superficial gifts of an impressive presence, an air of authority, a ready tongue, and a resonant voice. Still, the control of the House in such an emergency will depend not so much upon the appearance, the temperament, the elocution of Mr. Speaker, as upon the measure of the confidence and respect of Members which he has previously won by more sterling qualities; and the qualities upon which the trust of the House of Commons in its Speaker reposes most securely and abidingly are strength of character, fairness of mind, urbanity of temper, or a combination of tactful firmness with strict impartiality.

No doubt it is difficult for the Speaker to appear impartial at all moments and to all sections of the House. Some passing feeling of soreness will inevitably be felt by Members censured, or placed at a disadvantage in Party engagements, by decisions of the Chair. But if the Speaker has not impressed the House generally with his discretion and judgment, with confidence in the impartiality of his rulings, with the conviction that he regards himself as the guardian of the House, and not the auxiliary of the Government in getting business done, that feeling of soreness will not be, as it ought to be, brief and transient, and the Speaker will find on a crucial occasion that the Assembly has passed from his control.

Even so, the Speaker must not be too stern in action or demeanour. I have witnessed many violent scenes in the House of Commons, and I have invariably noticed that, in a clash of will and tempers, genial expostulation by the Chair is most potent in the restoration of order. Disraeli said of Denison that even "the rustle of his robes," as he rose to rebuke a breach of order, was sufficient to awe the unruly Member into submission. But Members are not disposed to forget that, after all, the Speaker is but the servant of the House. There was once a very proud and haughty Speaker, Sir Edward Seymour by name, in the reign of Charles II. "You are too big for the Chair and for us," said a Member smarting under a reprimand or a ruling. "For you, that think yourself one of the governors of the world, to be our servant is incongruous." The Speaker must not be too fastidious or impatient with the commonplace or the eccentric. He should have a genial tolerance of the extravagant in personality and character, which is certain to appear in company of 707 men, chosen from all classes and all parts of the kingdom, and which, indeed, makes the House of Commons a place of infinite interest, abounding in humour and comedy. Moreover, the House

will not tolerate the despot or the master in an officer of its own creation. Indeed, it is a mistake to suppose that the Speaker wields unfettered authority, that his individual will is law in the House of Commons. It is true that his controlling powers are great, and that his rulings on points of order and procedure are final. But the will which he imposes upon the House is not his own: it is the law of the House itself, for everything he does must be in accordance with rule and precedent.

2

But suppose a Speaker, who, of course, puts his own interpretation on precedents and Standing Orders, ultimately finds that he has made a wrong ruling, what ought he to do in the way of rectifying it? Thomas Moore relates in his *Diary* an extraordinary discussion on this point with Manners-Sutton after dinner one evening in 1829 at the Speaker's house. "Dwelt much on the advantages of humbug," writes Moore, in reference to Manners-Sutton; "of a man knowing how to take care of his reputation, and to keep from being *found out*, so as always to pass for cleverer than he is." Moore says he himself argued that this denoted a wise man, not a humbug. If by that line of policy a man induced his fellow-men to give him credit for being cleverer than he really was, the fault could not be his, so long as he did not himself advance any claim to it as his due. The moment he *pretended* to be what he was not, then began humbug, but not sooner. The poet then goes on:

He still pushed his point, playfully, but pertinaciously, and in illustration of what he meant put the following case: "Suppose a Speaker rather new to his office, and a question brought into discussion before him which Parties are equally divided upon, and which he sees will run to very inconvenient lengths if not instantly decided. Well, though ignorant entirely on the subject, he assumes an air of authority, and gives his decision, which sets the matter at rest. On going home he finds that he has decided quite wrongly; and then, without making any further fuss about the business, he quietly goes and *alters* the *entry* on the Journals."

Moore again insisted that wisdom, and not humbug, was the characteristic of such an action. "To his *supposed* case all I had to answer," the poet writes, "was that I still thought the man a wise one, and no humbug; by his resolution in a moment of difficulty he prevented a *present* mischief, and by his withdrawal of a wrong precedent averted a *future* one."

There are only two instances of the action of a Speaker being made the subject of a motion of censure, followed by a division. In neither case, however, was the motion carried. On July 11, 1879, Charles Stewart Parnell moved a vote of censure on Mr. Speaker Brand on the ground that he had exceeded his duty in directing the clerks at the Table to take notes of the speeches of the Nationalist Members, then inaugurating their policy of obstructing the proceedings of the House. The motion was lost by 421 votes to 29, or a majority of 392—one of the largest recorded in the history of Parliament. The Irish Members were also the movers of the other vote of censure on the Speaker. On March 20, 1902, Joseph Chamberlain, then Colonial Secretary, speaking on the concluding stages of the South African War, quoted a saying of Vilonel, the Boer General, that the enemies of South Africa were those who were continuing a hopeless struggle. “He is a traitor,” interjected John Dillon, the Irish Nationalist, and Chamberlain retorted; “The hon. gentleman is a good judge of traitors.” Dillon appealed to the Chair whether the expression of the Colonial Secretary was not unparliamentary. “I deprecate interruptions and retorts,” replied Mr. Speaker Gully, “and if the hon. gentleman had not himself interrupted the right hon. gentleman, he would not have been subjected to a retort.” “Then I desire to say that the right hon. gentleman is a damned liar!” exclaimed Dillon. He was thereupon “named” by the Speaker, and, on the motion of Arthur Balfour, was suspended from the service of the House. On May 7th J. J. Mooney, a Member of the Irish Party, moved that the Speaker ought to have ruled that the words applied by the Colonial Secretary to Dillon were unparliamentary, and accordingly have directed Chamberlain to withdraw them. On a division the action of the Chair was supported by 398 votes to 63, or a majority of 335.

3

If the duties of the Speakership are arduous, its dignity is high and its emoluments handsome. In former times the Speaker was paid a salary of £5 a day, and a fee of £5 on every Private Bill. This fluctuating income was replaced by a fixed salary of £6,000 a year on the election of Henry Addington to the Chair in 1789. It was also decided at the same time that a sum of £1,000 equipment money was to be given to the Speaker on his first appointment. In the reign of William IV the salary was reduced to £5,000 to

be paid, free of all taxes, out of the Consolidated Fund direct, without having to be voted every year by the House of Commons. At the same time an official secretary, with a salary of £500, was attached to the office. The Speaker also has a residence, furnished by the State and free of rent, rates and taxes, with coal and light supplied. The Speaker's house is in that conspicuous wing of the Palace of Westminster, with its carved stonework and gothic windows, extending from the Clock Tower to the river. It was first occupied by John Evelyn Denison in 1857. Here the Speaker gives several official entertainments during session. There are dinners to the Ministers, to the leader Members of the Opposition, and to private Members. According to long-established custom, a Member who accepts an invitation to dine with Mr. Speaker is required to appear either in uniform or Court dress, ordinary evening dress being debarred. As a result, many eminent parliamentarians, such as William Cobbett, Joseph Hume, Richard Cobden, John Bright, Joseph Cowen, all sturdy democrats and Radicals, who could not bring themselves to wear Court dress, never had the pleasure of dining as guests of Mr. Speaker. The rule is still enforced. The only departure from it was made by Mr. Speaker Peel during the short Liberal Parliament of 1895, when he had a separate dinner party of the Labour Members of the House, and told them they might come in any dress they pleased. But that precedent, at least, has not once been followed at Westminster, though subsequent Speakers have in such cases given luncheons instead of dinners. The Speaker is attired at these dinners in a black velvet Court suit, knee-breeches with silk stockings, a steel-handled sword by his side, and lace ruffles round his neck and wrists. The table and huge sideboards in the oak-panelled rooms are spread with magnificent old plate, and the walls are hung with portraits of many famous "First Commoners."

The Speaker is the First Commoner of the Realm, according to an Act of Parliament passed in 1688 (1 William and Mary, c. 21) after the Revolution. It provided that the Speaker's place in the order of precedence is next after the peers of the Realm. In 1919 the Speaker was raised a great many steps in the scale. By an Order in Council issued by King George V it was ordained that he "shall have, hold and enjoy place, pre-eminence and precedence, immediately after the Lord President of the Council," which makes him the seventh subject of the Realm. The order is: Archbishop of

Canterbury, Lord Chancellor, Archbishop of York, Prime Minister, Lord Chancellor of Ireland, Lord President of the Council, the Speaker.

The Speakership is one of the highest prizes of political ambition. In dignity and importance it is next, perhaps, to the office of Prime Minister. Four Speakers have resigned in order to become Prime Ministers. One of them, Henry Addington, after being Speaker for twelve years, was summoned by George III, in 1801, to form an Administration in succession to Pitt's, which failed to complete its Irish policy at the Union, owing to the King's rooted objection to Catholic emancipation. The only position for which the Speakership would be relinquished is certainly that of Prime Minister. Sir John Freeman-Mitford, who followed Addington in the Chair, resigned after a year's service in order to become Lord Chancellor of Ireland; but he did so only at the earnest solicitation of the King and the solatium of a salary of £10,000 per year and a peerage as Lord Redesdale. The Lord Chancellorship of Ireland is a high and honourable position, but it is unlikely that anyone would now give up the Speakership of the House of Commons for it. Charles Abbot resigned the Chief Secretaryship for Ireland—a post of greater political importance than that of the Lord Chancellorship—in order to succeed Freeman-Mitford as Speaker in 1802. Abbot refused the offer of a Secretaryship of State from Perceval, the Prime Minister, in 1809 during his occupancy of the Chair; and Manners-Sutton could have been Home Secretary in the Administration formed in 1827 by Canning, but he did not think it good enough.

On the other hand, Ministers have been willing to give up their portfolios for the Speaker's Chair. Spring Rice, Chancellor of the Exchequer of the Melbourne Administration, had his heart set on that coveted office. He was in the running for the Speakership in 1835, when James Abercromby was elected. In 1838 Abercromby intimated to Lord Melbourne his intention to resign—throwing a curious side-light on the relations at the time between Mr. Speaker and the Treasury Bench—because from the attitude of Lord John Russell, the Leader of the House, he felt he no longer possessed that degree of Ministerial confidence which, in his opinion, was essential to the due conduct of public business and the maintenance of the authority of the Chair. The Prime Minister induced Abercromby to postpone his resignation, and at the same time satisfied the renewed pretensions of his Chancellor of the Exchequer with the promise that he should be the Government

candidate for the Chair whenever it became vacant. But when Abercromby retired in the following year it was found that Spring Rice was not acceptable to the Radicals, and Shaw-Lefevre was selected in order to maintain the unity of the Party and preserve the Liberal succession to the Chair. Again, on the resignation of Arthur Wellesley Peel in 1895, Sir Henry Campbell-Bannerman was willing to lay down his portfolio as Secretary of State for War in the then Liberal Government for the object of his ambition—the Speakership; and it is said that he reluctantly yielded to the urgent representations of his colleagues that the Party could ill spare his services. Just ten years later he became Prime Minister.

Still, the office has, as a rule, fallen to unofficial Members, or to Members who have held subordinate Ministerial appointments. Denison, in the opening passages of his *Diary*, states that on April 8, 1857, he was seated in his library at Ossington, when the letters were brought in, and among them was the following:

94 PICCADILLY,
April 7, 1857.

MY DEAR DENISON,

We wish to be allowed to propose you for the Speakership of the House of Commons. Will you agree?

Yours sincerely,
PALMERSTON.

Denison says the proposal took him by surprise. “Though,” he writes, “I had attended of late years to several branches of the private business, and had taken more part in the public business of the House of Commons, I had never made the duties of the Chair my special study.” William Court Gully had been ten years in Parliament before his elevation to the Speaker’s Chair, but he was one of that large, modest band of “silent Members” who, confining themselves to voting in the division lobbies, are unknown in debate, and, consequently, are never mentioned in the papers. Moreover, being a busy lawyer, Gully took little or no part in the routine work of the House, such as service on Committees upstairs, which is supposed to afford a good training for the Speakership. Indeed, the Chair may be said to be the one great prize that is open to the occupants of the back benches as well as the front benches who possess the necessary physical and mental qualities.

Personal appearance is undoubtedly an essential qualification for the office. This includes the possession of clear vision. A Speaker with spectacles would look incongruous in an assembly where the competition to catch his eye is so keen.

4

The term of office of Mr. Speaker is usually short. Arthur Onslow, who was elected in 1726, continued in possession of the Chair for thirty-five years, through five successive Parliaments, apparently without ruffling a hair of his wig. So long an occupancy is now wellnigh impossible. For one thing, the duties of Mr. Speaker are physically more responsible and irksome. The sessions are longer, the sittings of the House more protracted, and the fatigue of the prolonged and often tedious hours in the Chair must be most severe mentally and physically. Besides, there has grown up of late a preference for a certain maturity of age in the Speaker. Arthur Onslow was only thirty-six when he was called to the office. Henry Addington, who occupied the Speaker's Chair at the opening of the nineteenth century, was thirty-two only on his appointment. William Court Gully, who was in possession of the Chair at the opening of the twentieth century, had passed his sixtieth year on his election. The occupancy of the office must be comparatively brief if men are appointed to it only when their heads are grey or bald. Of recent Speakers, Henry Bouverie Brand sat for twelve years, Arthur Wellesley Peel eleven years, William Court Gully ten years, James William Lowther sixteen years.

The Speaker receives a pension of £4,000 a year. John Evelyn Denison refused this retiring allowance. "Though without any pretensions to wealth," he wrote to Gladstone, then Prime Minister, "I have a private fortune which will suffice, and for the few years of life that remain to me I should be happier in feeling that I am not a burden to my fellow-countrymen." He retired in February 1872, and died, without heir, in March 1873. A peerage is also conferred on the Speaker when he resigns. This was not the custom in the eighteenth century. When Arthur Onslow retired in 1761, after his long service of thirty-five years, George III, in reply to the address of the Commons to confer on Onslow "some signal mark of honour," gave him a pension of £3,000 a year for the lives of himself and his son, but no peerage. The custom began in the nineteenth century with

Charles Abbot, who, on retiring in 1817, was made Baron Colchester. Since then every Speaker has been “called to the House of Lords”—Manners-Sutton as Lord Canterbury; Abercromby as Lord Dunfermline; Shaw-Lefevre as Lord Eversley; Denison as Lord Ossington; Brand as Lord Hampton; Peel as Lord Peel; Gully as Lord Selby.

But he is Speaker no longer; another presides in his place; and what a shadowy personage he seems, even as a Lord, compared with the resounding fame and distinction that were his in the glorious years when he filled with pomp and dignity the Chair of the House of Commons!

CHAPTER XII
HOW A GOVERNMENT IS MADE

1

Macaulay, writing to his sister Hannah on December 19, 1845, says: "It is an odd thing to see a Ministry making. I never witnessed the process before. Lord John Russell has been all day in his inner library. His antechamber has been filled with comers and goers, some talking in knots, some writing notes at tables. Every five minutes somebody is called into the inner room. As the people who have been closeted come out, the cry of the whole body of expectants is: 'What are you?' I was summoned almost as soon as I arrived, and found Lord Auckland and Lord Clarendon sitting with Lord John. After some talk about other matters, Lord John told me that he had been trying to ascertain my wishes, and that he found I wanted leisure and quiet more than salary and business. Labouchere had told him this. He therefore offered me the Pay Office, one of the three places which, as I have told you, I should prefer. I at once accepted it."

But this Ministry was fated not to be formed. Both Lord Grey and Lord Palmerston, two leading members of the Whig Party, wanted the Foreign Office, and neither would recognize a superior claim in the other. Macaulay, from whose very lips the cup of office was thus rudely dashed, bore the disappointment philosophically. On the day after he had sent the letter, from which I have quoted, he wrote another to his sister, saying: "All is over. Late at night, just as I was undressing, a knock was given at the door of my chambers. A messenger had come from Lord John with a short note. The quarrel between Lord Grey and Lord Palmerston had made it impossible to form a Ministry. I went to bed and slept sound."

When we come to consider the interesting business of making a Government, the first question that arises is—What is the chief test of a man's capacity for office? Under our Constitution, with its free and unfettered Parliament, of which the Ministers must be Members, a

deliberative assembly where everything is made the subject of talk, talk, talk, and provided with a Reporters' Gallery for the dissemination of its debates through the Press, it is inevitable that a man's fitness for a post in the Administration should be decided mainly by his gift of speech. It must often prove a false standard of judgment in regard to genuine ability and character. Glibness of tongue, or even oratory, is certainly not an essential qualification for the administrative duties of government. Still, the fact remains that the ready talker with but little practical experience of affairs has a better chance of office than the man of trained business capacity who is tongue-tied. Perhaps debaters are really more useful to a Government than business men in an arena of conflict like the House of Commons. There are some excellent anecdotes pointing to such a conclusion. Disraeli, forming an Administration, offered the Board of Trade to a man who wanted instead the Local Government Board, as he was better acquainted with the municipal affairs of the country than its commerce. "It doesn't matter," said Disraeli; "I suppose you know as much about trade as Blank, the First Lord of the Admiralty, knows about ships." John Bright once said he asked Richard Lalor Sheil, an eloquent speaker, but unconnected with commerce, how it happened that he was appointed to the Board of Trade. "I think," replied Sheil, "the only reason is I was found to know less of trade than any other man in the House of Commons." Bright himself was made President of the Board of Trade in 1869. It used to be said in the Department that, so unfitted was he for administration, he did not know even how to tie up official papers with red tape.

When, at an earlier period of political history, Sidney Herbert, Lord Herbert of Lea, resigned the War Office, Palmerston fixed upon Sir George Cornwall Lewis to succeed him, and argued the point with Lady Theresa Lewis, saying that the duties would not be military, but civil. "He would have to look after the accounts," said the Prime Minister. "He never can make up his own," replied the wife. "He will look after the commissariat," said the Prime Minister. "He cannot order his own dinner," replied the wife. "He will control the clothing department," said the Prime Minister. "If my daughters did not give the orders to his tailor, he would be without a coat," replied the wife. Cornwall Lewis, however, accepted the offer, and his Under-Secretary soon afterwards discovered him in Pall Mall reading a work on the military tactics of the Lycaonians. Sir Arthur Helps, the essayist, who was Clerk of the Privy Council, used to tell the story that once

when there was a difficulty in finding a Colonial Secretary, Lord Palmerston said: "Well, I'll take the colonies myself," and presently remarked to Helps: "Just come upstairs with me for half an hour and show me where these places are on the map." Charles James Fox is said to have confessed his ignorance of what Consols meant. He gathered from the newspapers that they were "things which rose and fell"; and he was always delighted when they fell, because he noticed, that for some unaccountable reason, it very much annoyed Pitt, as Chancellor of the Exchequer. That, no doubt, was Fox's fun. But we are told of Lord Randolph Churchill, on the authority of his son and biographer, Winston Churchill, that when, as Chancellor of the Exchequer, Treasury returns worked out in decimal figures were laid before him, he inquired what "these damned dots" signified. I myself heard Sir Edward Carson, a distinguished lawyer, speaking as First Lord of the Admiralty in 1917, during the Great War, declare that he entered the Admiralty in a state of extreme ignorance. "Someone asked me the day I went there how I felt," he went on to say, "and I said, 'My only qualification is that I am absolutely at sea.'"

After all, perhaps, it is a matter of no very great concern. Are there not capable permanent officials in the various Departments of the State, whose duty it is to see that administration is efficient and economical? The simple task of the Minister, as he sits behind the scenes in a room at Whitehall, is as a rule to see that things are done in harmony with the political policy of his Party. What seems to be absolutely necessary to the prosperity of an Administration is that in the Houses of Parliament—open as they are to the gaze and hearing of the country—it should have at its service a number of able debaters. The measures of the Government have to be submitted to the judgment of a deliberative Assembly, and a newspaper-reading public; and accordingly a successful Minister is he whose ready gift of clear and forcible exposition of Party principles and policies enables him to expound and defend these measures. Gladstone, when forming his first Government in 1868, invited John Bright to join it, giving him his choice of any office, except the War Office or the Admiralty, which, as he was a Quaker and a man of peace, would hardly suit him. Bright selected the position of President of the Board of Trade. As I have said, he never gave evidence of any special business capacity, but he was the greatest orator of his day; he had uttered in the House of Commons and on the public platform the most beautiful and also the most scornful passages that ever fell from the lips of

man; he possessed debating gifts which enabled him to place a political question in a light that made it shine beyond its deserts, and that being so he was deemed fit for a place of importance and emolument in the new Government. What is the good of a Minister rising to the Table of the House of Commons with an unanswerable case if he be unable to state it—if he be choked with arguments for which he can find no utterance?

2

It follows, therefore, that when a General Election has pronounced the sentence of condemnation on the existing Government, and men of another Party are called to the service of the country, selection for office is restricted mainly to those who have won distinction as debaters in Opposition. On the benches to the left of Mr. Speaker are always numbers of young men ambitious of office, eagerly pushing themselves to the front on that conspicuous field of political activity, under the eyes of the Reporters' Gallery, most constant in their attendance, ever watching for an opportunity to strike a blow at once for their Party and their own reputation, in the hope that in the day of victory they shall have the proper reward of their services. Some of them are capable of talking well upon any subject. These aspire to be Secretaries of State. Others, not so remarkable for general ability or so glib of tongue, confine themselves to particular departments of administration. It is the endeavour of each to obtain a mastery of the business details of some special office—Foreign, Home, Treasury, Colonial, Army, Navy, Post Office, Pensions, Trade, Transport, or Agriculture—looking for an Under-Secretaryship, in the expectation of ultimately attaining, after some years of diligent and capable service, to Cabinet rank. Yet the qualities needed for success in office are often entirely different from those that bring fame and renown in Opposition. Gladstone said of Robert Lowe, whom he appointed Chancellor of the Exchequer in his first Administration on the strength of the reputation which that slashing debater had made in Opposition, that he was “splendid in attack, but most weak in defence”; “that he was capable of tearing anything to pieces, but of constructing nothing.” But it is only after the brilliant swashbuckler of Opposition has been tried in office that his incapacity and weakness in the true gifts of statesmanship are discovered.

Besides the pushful young men in the ranks on the back benches, with their abounding sense of fitness for office, there are the veterans of the Front Opposition Bench, survivors of the Ministry of the Party when it was last in power. Some of these, it often happens, are men who have grown old and worn in the service, as their wrinkled faces, bald heads, and stooped forms testify; but their interest in public affairs has not in the least abated, and they still crave to be placed at the head of Departments. It might be supposed that the weighty responsibility of office is a burden to be avoided rather than coveted by old parliamentarians; the world has such pleasant delights, apart from politics, with which they might occupy the leisure of the close of their day. But that is an idle supposition. It is true that in the Senate of Rome, to which election was for life, there was a special law providing that no senator over sixty should be summoned to its meetings. Did any Roman ever willingly acquiesce in it except the physically incapable? In modern England human nature is exactly what it was in ancient Rome. The grievance of the Front Bench man approaching seventy would be, not that he should be dragged from seclusion and quiet to sit for hours of a morning in a room at Whitehall, reading documents, and attend at the House of Commons till late at night, but that he should be set aside in the distribution of offices when his Party has again triumphed at the polls. And he has tradition and custom at his back, in support of his desire, as well as his past services. It is held that a member of either House of Parliament who has already been in the Cabinet is entitled to high office again whenever his Party comes back to power; and that, should he be passed over, should he be put on the retired list, he has every reason to feel affronted.

These are the two classes—the old but the tried, the able but the untrained young—from which the Prime Minister draws the members of his Administration. As I have indicated, he has not an absolutely free choice. He may not sit down in his study and, surveying the most prominent members of his Party in both Houses, select for office those who have proved themselves possessed of the qualities of character, ability, experience, and training. His task it is to satisfy, as far as possible, claims as conflicting as they are strong, and, at the same time, give to his Administration that weight and authority which is necessary to win and hold, in some measure, the confidence of the country. It is said that Gladstone, who formed no fewer than four Administrations—an almost

unprecedented record in constitutional history—used to draw up on separate slips of paper a list of the various offices, placing opposite each the names of three or four more or less eligible men as alternatives, and then, by a process of sifting, evolve the definite list. But this method, which no doubt most Prime Ministers adopt more or less, is not at all the simple matter it looks. It has to be followed out with exceeding care and circumspection. For every post in the Ministry there are at least three or four influential aspirants, old or young, each of whom thinks the office on which his mind is set is his by every title of personal fitness and devotion to the Party. To adjust these rival claims is, as I have said, no easy thing for the Prime Minister. Some of the office-seekers, those especially who know there are strong rivals in the field, insist upon personal interviews, in order to set forth their pretensions fully and unanswerably, and the serious loss the Party, if not the nation, would suffer were it not to have the advantage of their services. Every post brings shoals of letters from Members of Parliament, and leading Party men in the country, strongly urging the appointment of this person or that to a post in the Ministry, or his inclusion in the Cabinet.

Another important consideration of which the Prime Minister is obliged to take heed is the distribution of the offices of the Administration between the House of Lords and the House of Commons. It was provided by the Government of India Act, 1858—creating a fifth Secretary of State, that for India, the others being for Foreign Affairs, Home, the Colonies, and War—that four Secretaries of State and four Under-Secretaries may sit as members of the House of Commons at the same time.^[1] In 1864 notice was taken that five Under-Secretaries were sitting in the House of Commons in violation of this statutory provision, and a motion was made that the seat of the fifth Under-Secretary was thereby vacated. The House referred the matter to a Committee, who reported that the seat of the Under-Secretary last appointed was not vacated, but as the law had been inadvertently infringed, it was thought necessary to pass a Bill of Indemnity. By the Air Force Act, 1917, a sixth Secretary of State, that for Air, was created, and the number of Principal Secretaries of State and Under-Secretaries capable of sitting in the House of Commons was increased to five. The Chancellor of the Exchequer must be in the representative Chamber, as the hereditary House cannot impose taxation. The holders of all the other prominent offices may be in one House or the other, as the Prime Minister thinks most

convenient. But it has now become a rule, from which probably there will never be a departure, of placing the Home Secretary—the Minister whose department comes most closely into touch with the ordinary life of the citizen—and his Under-Secretary in the House of Commons. The Foreign Secretary, whose duties are most delicate and responsible, has usually been given the greater freedom and leisure of the House of Lords. Arthur Balfour declared in the House of Commons, during the Session of 1905, that the Foreign Secretary would never again be seen in that Chamber, unless the House was prepared to release him from the ordinary obligations of a Minister. “Because, if you ask him,” continued the Prime Minister, “to come down to answer questions, or when his own office is under discussion; if you require him to come down, as my other right hon. friends are required to come down, whenever there is a Government division or an important Government debate; if you require him to be here throughout the whole night, and at the same time to carry on the work of such an office as the Foreign Office—he cannot do it. I respectfully say it with full knowledge both of what the House of Commons requires and what is required of the Minister for Foreign Affairs.” Sir Edward Grey subsequently sat in the House of Commons for ten years, as Secretary of State for Foreign Affairs, but concessions in regard to answering questions and general attendance were granted him of the kind indicated by Balfour. The other Secretaries of State—War, Colonies, India—may be in either the House of Lords or the House of Commons, subject to the statutory provisions I have mentioned, but in whatever Chamber the Principal Secretary may be, the Under-Secretary of the same department must be in the other. The religion of aspirants to office must also be taken into account by the Prime Minister.

There are two positions in the Government for which Roman Catholics are ineligible—the Lord Chancellorship of England and the Lord Lieutenancy of Ireland. In 1891 Gladstone brought in a Bill “for the removal of the religious disabilities of Roman Catholics to hold the offices of Lord Chancellor of England and Lord-Lieutenant of Ireland.” It was opposed by the Unionist Government then in power, and was defeated by 256 votes to 223. It was known as “The Ripon and Russell Relief Bill,” as it was well understood that if the Bill were carried Gladstone, on his return to office, intended to make the then Lord Ripon, who was a Catholic, Lord-

Lieutenant of Ireland; and Sir Charles Russell, also a Catholic, Lord Chancellor of England.

3

The process by which the Government is formed is, constitutionally, most interesting; but even in the best of circumstances, and apart altogether from the limitations to his unfettered choice which I have set out, it must indeed be harassing to the Prime Minister. If his power and influence are great, so are his embarrassments and difficulties. "Lord Grey is in a dreadful state of anxiety and annoyance; thinks he shall break down under his load," wrote Lord Tavistock to his brother, Lord John Russell, in 1830, during the making of the first Reform Administration. Disraeli, speaking in the House of Commons in March 1873, described the constitution of a new Government as "a work of great time, great labour, and of great responsibility," and declared that the task had to be discharged solely by the Prime Minister. "It is a duty which can be delegated to no one," he said. "All the correspondence and all the interviews must be conducted by himself, and, without dwelling on the sense of responsibility involved, the perception of fitness requisite, and the severe impartiality necessary in deciding on contending claims, the mere physical effort is not slight." The only Prime Minister, perhaps, who approached the task of making an Administration with a sense of gaiety not unmingled with irresponsibility was Lord Palmerston. He had the engaging weakness of putting square men in round holes and round men in square holes, and the reconstruction of the Ministry which sometimes followed as a consequence was, to him, only a fresh source of laughter. "Ah, ha!" he would cry, "what a delightful comedy of errors!" Gladstone, while revelling in the power and authority of the position, was deeply impressed also by its gravity and solemnity. He writes in his diary, January 29, 1886: "At a quarter after midnight in came Sir H. Ponsonby with verbal communication from Her Majesty, which I at once accepted." It was the command to form his third Administration, that which came quickly to grief on the question of Home Rule. Next day, Saturday, was spent by Gladstone in consultation with his principal colleagues. After church on Sunday, from one o'clock till eight, political business engrossed his attention. "At night came a painful and harassing succession of letters," he writes, "and my sleep for once gave way; yet for the soul it was

profitable, driving me to the hope that the strength of God might be made manifest in my weakness.” Next morning he went down to Osborne to attend the Queen, had two audiences with her Majesty, an hour and a half in all, and in the evening returned to London. He writes in his diary the following day: “I kissed hands, and am thereby Prime Minister for the third time. But, as I trust, for a brief time only—slept well. D. G.”

John Morley, summarizing in his *Life of Gladstone* the correspondence which Gladstone received while he was engaged in forming an Administration, writes: “One admirable man with intrepid *naïveté* proposed himself for the Cabinet, but was not admitted; another no less admirable was pressed to enter, but felt that he could be more useful as an independent Member, and declined—an honourable transaction, repeated by the same person on more than one occasion later. To one excellent member of his former Cabinet the Prime Minister proposed the Chairmanship of Committees, and it was with some tartness refused. Another equally excellent member of the old Administration he endeavoured to plant out in the Viceregal Lodge in Dublin, without the Cabinet, but in vain. To a third he proposed the Indian Viceroyalty, and received an answer that left him ‘stunned and out of breath.’”

It is also entertaining to study the varied feelings with which politicians have received the offer of office. “Dear Henry,” wrote Robert Lowe in a brief, laconic note to his brother in December 1868, “I am Chancellor of the Exchequer with everything to learn. Yours affectionately.” It was the surprise appointment of Gladstone’s first Administration, for Lowe had previously shown but little interest in finance. His administration of the office soon ended in an abortive attempt to impose a tax on matches. In another letter to a friend, Lowe said: “I have this day accepted the office of Chancellor of the Exchequer in Gladstone’s Government. I am almost angry with myself for not being more pleased. One gets these things, but gets them too late. Ten years ago I should have been very differently affected. However, it is something to have done what I said I would do.” It was a curious frame of mind in which to enter upon a great office. He had said he would be a Cabinet Minister, and the thing had come to pass. That was all.

That eminent lawyer, John Duke Coleridge, returned home from a concert on the night of December 4, 1868, to find—as he records in his diary—“Gladstone’s messenger waiting with an offer of the S.G., Collier to

be A.G.” The letter of the Prime Minister was written from “11 Carlton House Terrace,” and marked “Most Private.” “I need not spend words,” said Gladstone, “in assuring you that I anticipate great advantage to the new Government from your most valuable aid, and that I look forward with great pleasure to the relations which will, I hope, be established between us.” Coleridge sent the messenger back with a note refusing the post absolutely. He doubted whether, as Solicitor-General, he could serve with satisfaction under the proposed Attorney-General, Sir Robert Collier. “I know well,” he wrote, “that a man who once puts office by puts it by probably for ever; and you will not suppose that I send this answer without regret and a considerable struggle. But I am sure it is my duty to do it.” Next morning Coleridge received another letter inviting him to come to 11 Carlton House Terrace. “So I had to go to him,” Coleridge writes on December 5th. “He was most kind, and urged me to accept.” Two days later he says: “So the deed is done, and I suppose in a few days I shall be Minister.” On Saturday, December 10th, he went down to Windsor, “with a lot of Ministers coming in and going out,” had luncheon, saw the Queen, and was knighted. “I could not help it,” he adds. What chance had his weak human disinclination for office against the working of resistless, inevitable Fate?

At a Press Club dinner in London, John Morley related the circumstances in which he received and accepted in 1886 the offer of the post of Chief Secretary for Ireland, with a seat in the Cabinet. “It was whilst I was writing a leading article for a certain periodical,” said he, “that I received a letter from an illustrious statesman, who was then forming a Government, offering me a post in his Cabinet.” “Gentlemen,” he added, amid the cheers and the laughter of the company, “so strong in me was the journalistic instinct that, after accepting the illustrious statesman’s offer, I went back and finished that leading article. And I can assure you that neither the grammar nor the style of the latter half of the article fell short of my usual standard.” One of the most humanly interesting books dealing with public life in England is *From a Stonemason’s Bench to the Treasury Bench*, in which Henry Broadhurst tells the story of his career. In 1886 he was Secretary to the Parliamentary Committee of the Trades Union Congress and a Member of Parliament. One busy day at his office a letter was handed to him by a messenger, and, opening the envelope, he found the following communication:

(Secret)

21 CARLTON HOUSE TERRACE, S.W.
February 5, 1886.

DEAR MR. BROADHURST,

I have great pleasure in proposing to you that you should accept office as Under-Secretary of State in the Home Department. Alike on private and on public grounds, I trust it may be agreeable to you to accept this appointment, which should remain strictly secret until your name shall have been laid before her Majesty.

I remain, with much regard, sincerely yours,
W. E. GLADSTONE.

According to custom, Broadhurst immediately called upon the Prime Minister. He said that if it were Mr. Gladstone's wish that he should join the Administration, he hoped it would be in some capacity less important than that of Under-Secretary of the Home Office. But the Prime Minister would not listen to any objections to the offer. "I'll answer for you myself," said he, playfully. "You must prepare at once to enter upon the duties of the office." Broadhurst adds: "I can honestly declare that I left Mr. Gladstone's house without any of those feelings of exhilaration and pleasing excitement which the gift of office is generally supposed to awake in the breast of the politician." He lived the hard struggle of his early years over again in the next half-hour. "The lowly beginning of my career," he says, "its labours at the forge and the stonemason's shop, the privations, the wanderings, and my varying fortunes, stood out in my mind's eye as clearly as so many living pictures. Especially did my memory recall the months I had spent working on the very Government buildings which I was about to enter as a Minister of the Crown." He deplored the lack of education in his early days, and visions of failure and humiliation in the discharge of his new duties, in consequence, tormented him.

CHAPTER XIII
DISAPPOINTED HOPES

1

It is probably as annoying to an expectant Minister to be offered what he regards as an inferior post as to be entirely ignored. Sir Robert Peel, in December 1834, offered Lord Ashley (subsequently the Earl of Shaftesbury) a seat on the Board of Admiralty, which Lord Ashley, thinking it altogether beneath him, promptly refused. "Had I not," he writes in his *Diary*, "by God's grace and the study of religion subdued the passion of my youth, I should now have been heart-broken. Canning, eight years ago, offered me, as a neophyte, a seat at one of the Boards, the first step in a young statesman's life. If I am not now worthy of more, it is surely better to cease to be a candidate for public honours. Yet Peel's letter, so full of flummery, would lead anyone to believe that I was a host of excellency. The thing is a contradiction." Nevertheless, it is interesting to note that he accepted the post subsequently. He satisfied himself that it was of more importance than he at first supposed.

No politician had such curious adventures as an aspirant to office, and certainly no one has confessed so freely the bitterness of his disappointments, as Shaftesbury, whose name is so honourably associated with legislation for the protection of women and children employed in factories. In 1839 Peel was again engaged in making a Government. Queen Victoria had hardly been two years on the Throne, and was only twenty years of age. Peel invited Lord Ashley to accept a post in the Royal Household, urging that he desired to have around "this young woman, on whose moral and religious character depends the welfare of millions of human beings," persons whose conversation would tend to her moral improvement. Lord Ashley acknowledges that he was "thunderstruck" when he received Peel's letter, as he expected a far higher position than what he describes as "a mere Court puppet." But in his reply he said, somewhat

sarcastically, that if Peel desired it, he was willing to take “the office of chief scullion to the Court.” However, this Administration was not constituted. It was wrecked on what is known as “the Bedchamber question.” As one of the ladies of the Bedchamber, the Mistress of the Robes, who was most closely in attendance upon Queen Victoria, was related to some of the outgoing Whig Ministers, by whom she had been appointed—the office being at the time political, and its occupant bound to go out on a change of Government—Peel insisted upon her resignation. The Queen refused to consent to such a course, as one repugnant to her feelings, and Peel, thereupon refusing to form an Administration, the Melbourne Ministry were recalled to office. Two years later Peel was engaged once more in making a Government—this time Queen Victoria raised no objection to the Mistress of the Robes being changed—and again he offered Lord Ashley a place in the Royal Household, as a man who was deeply religious and moral. Lord Ashley now believed that Peel simply wanted to muzzle him, the leader of the growing humanitarian movement for the State regulation of factories. He refused the office. “I told Peel,” he wrote, “the case was altered; the Court was no longer the same; the Queen was two years older, had a child, and a husband to take care of her.” So he declined to devote himself to ordering dinners and carrying a white wand. He discovered subsequently, to his deep mortification, that Peel had already offered the post of Vice-Chamberlain of the Household to Lord —— (“the hero of Madame Grisi,” as Ashley describes him); and that Lord —— exclaimed: “Thank God, my character is too bad for a Household place!” Lord Ashley argued that “morality, therefore, was not the reason for putting me at Court.”

2

On January 27, 1855, the Coalition Government of Lord Aberdeen and Lord John Russell resigned, being defeated on a vote of censure charging them with mismanagement of the Crimean War. Lord Palmerston received the commands of Queen Victoria to form an Administration. He, too, desired to have a Ministry of both Liberals and Conservatives. On February 7th he wrote to Ashley—now the Earl of Shaftesbury and a Conservative—offering him the Chancellorship of the Duchy of Lancaster with a seat in the Cabinet. That was in the morning. In the afternoon Shaftesbury received a

brief note from Palmerston requesting him to “consider the offer as suspended,” in consequence of unforeseen difficulties, which, it subsequently transpired, were the claims of the Liberals for a greater share of place and power in the new Government. This explanation came to Shaftesbury from Lady Palmerston. “Palmerston is distracted with all the worry he has to go through,” she wrote. In a P.S. she added: “It is no pleasure to form a Government when there are so many unreasonable people to please, and so many interested people pressing for their own gratification and vanity, without any regard to the public good or the interests of the Government and country.” Shaftesbury thus poured out his virtuously indignant soul on the subject to his son: “The selfishness, the meanness, the love of place and salary, the oblivion of the country, of man’s welfare and God’s honour, have never been more striking and terrible than in this crisis. These, added to the singular conceit of all the candidates for office (and all have aspired to the highest), have thrown stumbling-blocks in Palmerston’s path at every step. The greediness and vanity of our place-hunters have combined to make each one of them a union of the vulture and the peacock.”

Shaftesbury declares that he had then no desire for place; and it is impossible to doubt the genuineness of the thanksgiving on his “escape from office” in which he indulges. A month later some of the Members of the Administration resigned, and Palmerston again offered Shaftesbury the Chancellorship of the Duchy of Lancaster. But Shaftesbury was still reluctant. “I could not satisfy myself,” he says, “that to accept office was a Divine call. I was satisfied that God had called me to labour among the poor.” However, one morning he received this note from Lady Palmerston: “Palmerston is very anxious now that you should put on your undress uniform and be at the Palace a quarter before three to be sworn in. Pray do this, and I am sure you will not repent it.” Shaftesbury gave way to these pleading entreaties. The result was certainly curious. “I went and dressed,” he writes in his *Diary*, “and then, while I was waiting for the carriage, I went down on my knees and prayed for counsel, wisdom and understanding. Then there was someone at the door, as I thought to say that the carriage was ready. But instead of that a note, hurriedly written in pencil, was put into my hand. It was from Palmerston—‘Don’t go to the Palace.’” Many would have groaned in the anguish of their souls over this crowning disappointment. Shaftesbury declares he danced with joy. “It was

to my mind," he says, "as distinctly an act of special Providence as when the hand of Abraham was stayed and Isaac escaped." Palmerston's sudden change of mind is no doubt accounted for in a passage which I find in the *Autobiography* of the eighth Duke of Argyll, who was a member of Palmerston's Cabinet. He states that one day Palmerston astonished all his colleagues by proposing that Lord Shaftesbury should be one of their number. "I was far too fond of Shaftesbury, and had much too great a respect for him to say one word in opposition," Argyll writes; "but I saw that it rather took away the breath from a good many of my colleagues. His fervid nature, his uncompromising temperament, and his somewhat individual opinions were evidently not considered as promising well for united councils. My opinion, which, however, I kept to myself, was that he was a far more valuable man out of office than in it." Argyll adds: "Palmerston evidently saw that the proposal was not very well received, and we heard nothing more of it."

3

In July 1886 Henry Cecil Raikes, a distinguished Conservative M.P., awaited, with hope and misgiving alternating in his breast, a letter from Lord Salisbury—then engaged in forming his first Unionist Administration—inviting him to join the Cabinet. As the list of Ministerial appointments announced in the Press grew towards completion, and nothing was heard from the Prime Minister, the fear grew upon him that he was about to be shelved. But he had staunch friends at the Carlton Club, and they took the unusual course of addressing a "round-robin" to Salisbury, earnestly requesting him not to forget "the long and arduous services to the Party" of Henry Cecil Raikes. A day or two later Raikes received the following letter from the Prime Minister:

20 ARLINGTON STREET, S.W.,
July 28, 1886.

MY DEAR RAIKES,

Are you disposed to join us as Postmaster-General? I am very anxious to meet your views. I wish I was in a position to do so more fully. But that is a species of regret which clogs me at every step of the arduous task in which I am engaged. I shall be very glad if we are able to persuade you to associate yourself with us—for the present in this office.

Believe me, yours very truly,
SALISBURY.

Only the minor post of Postmaster-General, when he had expected the Home Office, which carries a seat in the Cabinet! But to refuse an offer of office because it does not come up to one's expectations often means the exclusion from office for ever. Raikes accordingly decided to take the post of Postmaster-General. "He fully recognized the difficulties of his chief's position," writes his son and biographer, "and, of course, was not blind to the fact that if he were to refuse this office he would probably be throwing away the substance for the shadow, and would cut himself off from any but a remote chance of future advancement." It is not every politician who has had an offer of an office which was less than he expected that can follow the example of Henry Brougham, who contemptuously tore up the letter of Earl Grey offering him the post of Attorney-General in the first Reform Administration. Brougham wanted the Lord Chancellorship, and would not be put off with anything else; and though Grey was reluctant to trust Brougham in so exalted a post, Brougham had his way, for he was in the strong position of being indispensable to the new Government, not only in his own estimation, which did not so much matter, but also in the estimation of many leading Whigs, which did. But Raikes knew that he could be done without, and, sensible man, he accepted what was offered. Naturally he was mortified that the Secretaryship of State for the Home Department was carried off by an entirely outside and unsuspected rival, Henry Matthews (afterwards Lord Llandaff), who was discovered in the Law Courts as a powerful advocate and pleader by Lord Randolph Churchill.

4

Is there anything more poignant in the history of the making of Governments than the entreaty addressed by Benjamin Disraeli to Sir Robert Peel, in 1841, that he should not be forgotten in the distribution of the offices in the Tory Administration which was then being formed? Writing from Grosvenor Gate on September 5, 1841, and addressing "Dear Sir Robert," Disraeli said he should not dwell upon his services to the Tory Party, though since 1834 he had fought four contests, expended large sums of money, and exerted his intelligence to the utmost for the propagation of Peel's policy. He adds: "But there is one peculiarity in my case on which I

cannot be silent. I have had to struggle against a storm of political hate and malice, which few men ever experienced, from the moment—at the instigation of a member of your Cabinet—I enrolled myself under your banner, and I have only been sustained under these trials by the conviction that the day would come when the foremost man of this country would publicly testify that he had some respect for my ability and my character.” Then, throwing all reserve aside, he ends his letter with the following outburst of genuine feeling: “I confess to be unrecognized at this moment by you appears to me to be overwhelming, and I appeal to your own heart—to that justice and magnanimity which I feel are your characteristics—to save me from an intolerable humiliation.”

The same post brought the Prime Minister a most appealing letter signed, “Mary Anne Disraeli,” addressed “Dear Sir Robert Peel,” and marked “Confidential.” She begins: “I beg you not to be angry with me for my intrusion, but I am overwhelmed with anxiety. My husband’s political career is for ever crushed if you do not appreciate him. Mr. Disraeli’s exertions are not unknown to you; but there is much he has done that you cannot be aware of, though they have no other aim but to do you honour, no wish for recompense, but your approbation.” Her husband had made Peel’s opponents his personal enemies, she goes on; he had stood four expensive elections since 1834. “Literature,” she concludes, “he has abandoned for politics. Do not destroy all his hopes, and make him feel his life has been a mistake.”

Peel’s reply was cold and formal. He disliked Disraeli, regarding him as a political adventurer, and disliked him personally. “My dear sir,” he addresses him, and, fastening on the statement that Disraeli had joined the Tory Party at the instigation of a member of Peel’s former Cabinet, he declares that no one had ever got from him the slightest authority to make such a communication. Then Peel gives a remarkable account of the difficulties which beset him in constituting the new Government:

But, quite independently of this consideration, I should have been very happy, had it been in my power, to avail myself of your offer of service; and your letter is one of the many I receive which too forcibly impress upon me how painful and invidious is the duty which I have been compelled to undertake. I am only supported in it by the consciousness that my desire has been to do justice.

I trust, also, that when candidates for parliamentary office calmly reflect on my position, and the appointments I have made—when they review the names of those previously connected with me in public life whom I have been absolutely compelled to exclude, the claims founded on acceptance in 1834 with the almost hopeless prospects of that day, the claims, too, founded on new Party combinations—I trust they will then understand how perfectly insufficient are the means at my disposal to meet the wishes that are conveyed to me by men whose co-operation I should be proud to have and whose qualifications and pretensions for office I do not contest.

Disraeli, writing from Grosvenor Gate, September 8, 1841, hastens to explain that he never intended to even suggest, much less to say, that a promise of official promotion had ever been made to him at any time by any member of Peel's Cabinet. "Parliamentary office," he says, "should be the recognition of Party services and parliamentary ability, and as such only was it to me an object of ambition." He ends with a dignified touch of pathos: "If such a pledge had been given me by yourself, and not redeemed, I should have taken refuge in silence. Not to be appreciated may be mortification; to be baulked of a promised reward is only a vulgar accident of life, to be borne without a murmur."

Five years passed, and in the debate on the third reading of the Bill for the repeal of the Corn Duties, Disraeli, from the back Ministerial benches, made a scathing attack upon Peel and what he called his betrayal of the Tory Party in bringing in such a Bill to establish Free Trade. The Prime Minister, in reply, disclosed to the country the curious incidents of 1841. "It is still more surprising," said he, "that if such were the hon. gentleman's views of my character he should have been ready, as I think he was, to unite his fortunes with mine in office, thereby implying the strongest proof which a public man can give of confidence in the honour and integrity of a Minister of the Crown." Disraeli rose at once to make a personal explanation. He denied that his opposition to the Free Trade policy of the Prime Minister was inspired by his disappointment of office. He was not an applicant for office in 1841. "I never shall—it is totally foreign to my nature—make an application for any place," he cried. "Whatever occurred in 1841 between the right hon. gentleman and myself," said he, "was entirely attributable to the intervention of another gentleman, whom I supposed to be in the confidence of the right hon. baronet, and I daresay it may have arisen from a misconception." The correspondence which I have quoted was not published until long afterwards. The abrupt ending of the incident

in the House of Commons is strange in the light thrown upon it by the correspondence. According to the report in *Hansard*, Peel made no reply to Disraeli. Peel held the correspondence in his hands, and resisted the temptation to read it and crush Disraeli, because he was advised by one of his colleagues that the disclosure of a private application for office would be contrary to the high and honourable traditions of statesmanship.

5

Gladstone agreed with Peel that it was not advisable to put a man into the Cabinet without a previous official training. It was also Gladstone's custom, once he had invited a man to office, to hold on to him to the last possible moment. "The next most serious thing to admitting a man into the Cabinet," said he, mentioning one of the principles which guided him in the making of a Government, "is to leave a man out who has once been in." Still, there were occasions when he was compelled to pass over an old comrade-in-arms on the ground of age. He was himself seventy-one years of age when, in 1880, he was called upon to form his second Government. To one old member of his former Administration he wrote: "I do not feel able to ask you to resume the toils of office." He admitted that he himself was "the oldest man of his political generation," and that, therefore, he should be a solecism in the Government which he was engaged in constructing. "I have been brought," he added, "by the seeming force of exceptional circumstances to undertake a task requiring less of years and more of vigour than my accumulating store of the one and waning residue of the other." Here we have the answer to the question of age and office. The exclusion of a veteran politician from office is not a matter of the number of years he has counted. Is he an extinct political volcano as well as an old man? May he safely be set aside? On the answer which the Prime Minister gives to these questions in his own mind depends the fate of the office-seeker of advanced years. Gladstone was eighty-four in 1893, but he was still inevitable as Prime Minister. If the strong young man of achievement, and still greater promise, cannot be ignored, neither can the old man, who, having built up a commanding reputation, takes care that it is duly and fittingly recognized.

It is a singular thing that, among the twelve hundred men or so who constitute the two Houses of Parliament, there has never been any reluctance to take office. Probably the only instance of a public man who

had a positive repugnance of office was Lord Althorp, the Chancellor of the Exchequer and Leader of the House of Commons in the Grey and Melbourne Administrations from November 1830 to December 1834. Office destroyed all his happiness, he declared, and so affected his mind that he had to remove his pistols from his bedroom lest he should be tempted to shoot himself. He remained in office because he felt that one in his rank and position—born, as it were, to the purple, a member of one of the great territorial families, who boast of long lines of ancestors in the public service—could no more set aside the responsibility of office than the earldom and broad acres of which he was also the heir. The one consolation he derived from the death of his brother, Earl Spencer, was that his own accession to the House of Lords compelled him to lay down the burden of Chancellor of the Exchequer. Sir George Cornewall Lewis seems to have been animated by somewhat the same uncommonly high sense of duty. When Palmerston, in the forming of his Administration in 1855, offered him the post of Chancellor of the Exchequer which Gladstone had vacated, he says he entertained the strongest disinclination to accept the office. “I felt, however,” he writes, “that in the peculiar position of the Government”—they were in difficulties over the Crimean War—“refusal was scarcely honourable, and would be attributable to cowardice, and I therefore, most reluctantly, made up my mind to accept it.”

But these cases of objection to office on the part of public men, however wealthy or however old, are exceedingly rare. The hunt for posts when a new Government is being formed after a dissolution is eager and untiring. The old men, who will not admit that their weight of years unfits them for the cares of office, haunt the political clubs and Downing Street, so as to keep themselves conspicuous in the eyes of the new Prime Minister. But they cannot all get “jobs,” to use a word commonly employed while a Government is being made. Some of them must be sacrificed; there are so many able and pushful young men to be provided for. The same cry is heard in politics as in other walks of life: “Why should these old fellows lag superfluous on the stage?” But “the old gang”—as they are called by the young—will not retire from public life voluntarily and gracefully. It is not alone that they instinctively revolt against the assumption that their capacity for work is at an end, but they also dislike change of habits and pursuits, and, above all, they desire for a little longer to play a leading part on the prominent stage of Parliament. Public life, therefore, retires from them. It is

only the few who have made a great reputation and acquired a great authority that cannot lightly be set aside. For most politicians, no matter how fine their services in the past, a time comes when they are designated “old fogeys,” and, while still anxious to be once more Ministers of the Crown, they experience the humiliation, as they look upon it, of being shunted for ever. It is idle to talk of acquiescing patiently in the inevitable. Political history affords many a sad instance of such a fate being regarded as one of the sorest of the injustices of life.

The young and pushful have their disappointments and vexations also. Disraeli—according to Buckle, his biographer—having completed his Administration in 1874, wrote to a lady friend: “I have contrived in the minor and working places to include every representative man, that is to say, everyone who might be troublesome—all those sort of men who would have made a Tory cave.” He adds: “There are some terrible disappointments, but I have written soothing letters, which, on the whole, have not been without success.” But not altogether. For in another letter, written in 1876, Disraeli says that at a dinner party he met Lord Randolph Churchill—“he glaring like one possessed of a devil, and quite uncivil when I addressed him rather cordially.” “Why?” he asks, and answering, he says it was perhaps that “I gave the lordship of the Treasury to Crichton instead of himself.”

The making of a Government may be completed in a week if all goes well. Should there be difficulties in reconciling the claims of influential rivals for particular offices, it may extend over a fortnight. And what does it all signify to the people or nation? Charles Dickens was disposed to take an ironic view of the matter, if we judge from some passages in *Bleak House*. “The limited choice of the Crown,” he writes, “in the formation of a new Ministry would lie between Lord Coodle and Sir Thomas Doodle, supposing it to be impossible for the Duke of Foodle to act with Goodle, which may be assumed to be the case, in consequence of the breach arising out of that affair with Hoodle. Then, giving the Home Department and the Leadership of the House of Commons to Joodle, the Exchequer to Koodle, the Colonies to Loodle, and the Foreign Office to Moodle, what are you to do with Noodle? You can’t offer the Presidency of the Council. That is reserved for Poodle. You can’t put him in the Woods and Forests. That is hardly good enough for Quoodle. What follows? That the country is

shipwrecked, lost, and gone to pieces because you can't provide for Noodle!" That, however, does not quite settle the matter. May it not be said, rather—Happy country which has so many able and honest men striving for the opportunity of toiling in its service!

CHAPTER XIV
THE KING AND HIS MINISTERS AND THE
COUNTRY.

1

The list of the proposed Administration is submitted by the Prime Minister to the King for approval. Constitutionally, the Sovereign has the right of veto, and may require any of the Ministerial appointments to be cancelled. This prerogative is now rarely, if ever, enforced. So far as is known, Queen Victoria was the last Sovereign to raise objections to certain of the names proposed to her. When Gladstone was forming his Government in 1880, she wished for Lord Hartington at the War Office, in place of Mr. Childers; but she was induced to give way. It was said in 1893, when Gladstone was again forming an Administration, that Henry Labouchere was not included solely because Queen Victoria refused her sanction. In the remoter past there are instances of the Sovereign not merely vetoing an appointment, but also of making one. But when George IV attempted to appoint Herries in 1827 Chancellor of the Exchequer, objection was successfully maintained. By modern usage, therefore, the position may be said to be that the Sovereign has the right to veto an appointment, but not to make one.

The Administration having been completely formed, a day is appointed by the King for taking leave of the outgoing Ministers, and receiving the incoming Ministers, at meetings of the Privy Council. The customary procedure is for the Clerk of the Council to collect all the seals of office from the various Departments beforehand and take them to Buckingham Palace for the ceremony. Only certain Ministers hold seals as insignia of office. The retiring Prime Minister has no seal to hand over, even though he may also hold, as he usually does, the office of First Lord of the Treasury; and therefore the new Prime Minister has none to receive. The Ministers having seals of office are the Lord Chancellor, the Lord Privy Seal, the five Secretaries of State—Home Department, Foreign Affairs, Colonies, War,

and India (all of whom are constitutionally of co-equal and co-ordinate authority, and fully authorized to transact, if need be, each other's business)—the Chancellor of the Exchequer, the Chancellor of the Duchy of Lancaster, and the Secretary for Scotland.

The seals of office are sets of three seals, each made of metal, known respectively as the signet, the smaller seal, and the cachet. It is only at the Foreign Office that full use is made of the three. The signet is affixed to instruments for the ratification of treaties. The smaller seal is used for Royal Warrants countersigned by the Secretary. The cachet is used for the purpose of sealing letters sent by the King to Foreign Sovereigns on matters of State. Two seals only are used at the Colonial Office, the signet and the smaller seal; while at the Home Office and the India Office the smaller seal is used for all purposes. All the seals bear the Royal Arms, but have no image or device appropriate to the office of which each is the symbol. Each Minister receives the seals of his office enclosed in a velvet case from the King. No doubt curiosity impels him to examine the seals on that great day when he enters office, but he probably never sees them again until that other notable day when he quits office by handing the seals back to the King.

2

The outgoing Ministers are first received by the King in the Council Chamber. The seals being sorted out, each Minister takes his and delivers it up to the King, thereby relinquishing his office. Ministers without seals resign office by formally taking leave of the King. Later on, the new Ministers arrive at the Palace. The second Council is then held. The first thing done is to administer the Privy Councillor's oath to such Cabinet Ministers as are not yet members of the Privy Council. Each swears to be "a true and faithful servant unto the King's Majesty," and to reveal it to his Majesty should he come to know of "any manner of thing to be attempted, done or spoken, against his Person, Honour, Crown, or Dignity Royal," and then proceeds to take a further oath upon which the secrecy of Cabinet proceedings rests. The passage is as follows:

You shall, in all things to be moved, treated and debated in Council, faithfully and truly declare your Mind and Opinion according to your Heart and Conscience; and shall keep secret all Matters committed and revealed unto you, or that shall be treated of secretly in Council. And if any of the said Treaties or Councils shall touch any of the

Counsellors, you shall not reveal it unto him, but shall keep the same until such time as, by the Consent of his Majesty, or of the Council, Publication shall be made thereof.

The oath winds up, “So help you God and the Holy contents of this book,” though by an Act of 1889 affirmation may be substituted for the oath.

Disraeli, who knew something about the formation of Ministries, has described the antithesis of the Ministry of All the Talents, in his novel *Endymion*, as the Ministry of Untried Men. There is much fact and some fiction in the description. The Ministry was the one formed by Lord Derby in 1852, with Disraeli himself in it as Chancellor of the Exchequer. Derby, leader of the Protectionists, seemed to have a difficult task, for, barring himself, there was no one to choose who had already held office. The task, Disraeli tells us, was accomplished in this way: “A dozen men without the slightest experience of official life had to be sworn in as Privy Councillors before they could receive the seals and insignia of their intended offices. On their knees, according to official custom, a dozen men, all in the act of genuflexion at the same moment, and headed, too, by one of the most powerful peers in the country, the Lord of Alnwick Castle himself, humbled themselves before a female Sovereign, who looked serene and imperturbable before a spectacle never seen before, and which in all probability will never be seen again. One of the band, a gentleman without any experience whatever, was not only placed in the Cabinet, but was absolutely required to become the Leader of the House of Commons, which had never occurred before, except in the instance of Mr. Pitt in 1782.” Lord Beaconsfield’s confession, it is well to recall, appeared after his final disappearance from the political scene.

When the whole Cabinet has thus qualified for admission to the Privy Council, his Majesty declares Lord President of the Council the Minister appointed to that office, who thereupon takes the oath to “well and truly serve his Majesty,” and kisses his Majesty’s hand. The other Ministers take a similar oath in due order, beginning with the Lord Chancellor, who receives the Great Seal, followed by the Prime Minister and First Lord of the Treasury; and those who are entitled to seals receive them from the King, while the others kiss his Majesty’s hand in acceptance of office. Thus does the Sovereign ratify the selections of the Prime Minister for the various posts in the Administration.

Lord Campbell relates in his *Diary* that in 1859, as the members of the Palmerston Administration, in which he held the office of Lord Chancellor, were going down to Windsor by special train, they passed another express returning to London with the outgoing Premier, Lord Derby, and his colleagues. What an opening for aspiring young statesmen if a wicked wag of a railway director had ordered the two trains to be put on the same line, was the genial comment of the Lord Chancellor! Sir Stafford Northcote, who was a Minister in the next Derby Administration, formed in July 1866, also gives some interesting glimpses of the proceedings associated with a change of Government. He writes: "Queen's carriages met us at the terminus and took us to Windsor Castle. As we went upstairs we met the late Ministers coming down, and shook hands with them. While we were waiting in the long room there was a sharp thunderstorm, and there was another while we were at luncheon, after taking office. The slopes of the Terrace looked as if there had been a fall of snow. Some thought this a bad omen for us. Disraeli had a bad omen of his own as we came down, for, thinking there was a seat at the end of the saloon carriage, he sat down there, and found himself unexpectedly on the floor." This Administration lasted scarcely two years; but, despite the ill-omened accident to Disraeli, it was for that statesman a fortunate Administration. In it he first filled the great office of Prime Minister, to which he succeeded on the resignation of Lord Derby, on account of failing health, early in 1868.

But to return to Windsor Castle. Sir Stafford Northcote goes on to say: "Lord Derby was first sent for by the Queen, and had a short audience. We were then all taken along the corridor to the door of a small room, or, rather, closet. Lord Derby, Lord Chelmsford, and Walpole were called in; then the five new members of the Privy Council—Duke of Buckingham, Carnarvon, Cranborne, Hardy, and I—were called in together, and knelt before the Queen while we took the oath of allegiance; then we kissed hands, rose, and took the Privy Councillor's oath standing. The Queen then named the Duke of Buckingham Lord President of the Council, and we all retired. The Prince of Wales and Duke of Edinburgh were in the room. We were then called in one by one and kissed hands on appointment to office, Lord Derby going first, then the Lord Chancellor, the Lord President, the Lord Privy Seal, the Secretaries of State (all together), the Chancellor of the Exchequer,

etc. The seals were delivered to all these, except the Lord President. Lord Derby then had a long audience with the Queen, while we went to luncheon. Returned by special train at four o'clock." John Bright was the only Minister who, so far as I know, was relieved of the obligation to kneel and kiss the Sovereign's hands on receiving the seals of office. When he went to Windsor on his appointment as President of the Board of Trade, Queen Victoria, a great admirer of his speeches, sent Helps, Clerk to the Privy Council, to tell Bright she would dispense with the ceremony if that was more agreeable to his feelings as a Quaker, and he availed himself of this "considerate permission," as he regarded it.

How a Minister (Henry Chaplin, afterwards Lord Chaplin) held the seals of the Secretary of State for War, for the briefest period possible, is mentioned in the diary of Lord Cranbrook, when he enters the visit to Windsor of the Conservative Ministry of 1885 upon taking office. "There was no contretemps but the careless omission of the kissing hands by Northcote, which was soon set right; and her Majesty gave Chaplin the War Office seals by mistake, easily rectified. Still, there should be some distinctive mark on each set."

4

But all is not over yet. A Member of the House of Commons who accepts an office of profit under the Crown thereby vacates his seat, and must seek re-election. This applies to the heads of all the great Departments. Minor Ministerial posts, such as the Secretary to the Treasury, the Under-Secretaries of State, the Parliamentary and Financial Secretaries of various Departments, are exempted from this parliamentary law, as they are regarded as holding office not by appointment of the Crown, but by appointment of the Ministers in charge of the different offices. The object of compelling a Minister to submit his acceptance of office to the judgment of his constituents, which was first established by an Act of the reign of Queen Anne—Succession to the Crown Act, 1707—was to restrain the corrupt influence of the Crown over Parliament by its power of conferring place on servile and obsequious Members. The danger the statute was designed to avert has, happily, past long since and gone for ever. The Act of Anne, however, continues in operation despite the fact that, owing to the complete revolution which has since been effected in the Constitution, it is entirely

remote from the realities of these democratic times. The only modification of the original Act is a provision in the Reform Act of 1867, by which a Minister who is transferred to another office “in lieu of and in immediate succession the one to the other” need not submit himself to his constituents. A constitutional difficulty arose on the taking over of the Chancellorship of the Exchequer by Gladstone on the resignation of Lowe in 1873, during a parliamentary recess, Gladstone at the time being First Lord of the Treasury and Prime Minister. Did the right hon. gentleman come under the provision of the Act of 1867, and therefore not obliged to seek re-election? The law officers of the Crown—Coleridge, Attorney-General, and Jessel, Solicitor-General—came to the conclusion that the seat was not vacated; and their opinion was supported by Sir Erskine May, Clerk of the House of Commons. On the other hand, Lord Chancellor Selborne advanced the opposite view, holding that, as Gladstone had taken the office of Chancellor of the Exchequer, not in lieu of and in immediate succession to, but in addition to, the office of First Lord of the Treasury, he must submit himself to his constituents. But this Gladstone was reluctant to do, as his seat for Greenwich was believed to be unsafe.

Meanwhile, the Conservative Opposition sought to make the situation more embarrassing for the Government. The Speaker is not empowered to issue his warrant for a new election during the Recess in the room of any Member who since the Prorogation has accepted any office whereby he has vacated his seat, unless on receipt of a certificate from two Members and a notification from the Member himself of the fact of such acceptance of office. What happened in this particular case is thus described by John Morley in his *Life of Gladstone*: “The unslumbering instinct of Party had quickly got upon a scent, and two keen-nosed sleuth-hounds of the Opposition, four or five weeks after Mr. Gladstone had taken the seals of the Exchequer, sent to the Speaker a certificate in the usual form, stating a vacancy at Greenwich, and requesting him to issue a writ for a new election. The Speaker reminded them, in reply, that the issue of writs during the recess in cases of acceptance of office required notification to him from the Member accepting, and he had received no such notification.” In the midst of the controversy Parliament was dissolved, and with it the difficulty.

Governments have tried to repeal the statute of Queen Anne. Arthur Balfour, who thought the law not only antiquated, but inimical to good government, once, when Prime Minister, brought in a Bill to abolish it. “I remember in my early days,” said he, in the session of 1905, “the Party to which I belong—it was in 1880—derived infinite enjoyment from the satisfaction of turning the late Sir William Harcourt out of his seat at Oxford on his taking office as Home Secretary. He found a seat after considerable inconvenience to Mr. Gladstone’s Government; and in my opinion, although it gave us great satisfaction as a good practical joke, it was a severe condemnation of the system on which we now carry on business, and which no practical assembly in the world but our own would tolerate for an instant.” Balfour failed, however, to get the House of Commons to agree to his Bill. I have heard several debates on the subject. The chief argument of the Treasury Bench for the repeal of the Act was that by reason of it no Prime Minister has ever been able to exercise a really free choice in the selection of his colleagues in the Administration; for often he has had to put a square man into a round hole, because the round man that would fit the round hole admirably held an unsafe seat, and therefore might not be re-elected. But the view of the back benches always has been that the Act supports the control of the House over the Government, and gives to the constituency the opportunity of expressing its opinion as to the action of its representative in accepting office under the Crown. This view has always prevailed. During the Great War the principle was twice suspended by emergency Acts. Members who accepted office in the two Coalition Governments of the War—one under Asquith in May and June 1915, and the other under Lloyd George in December 1916 and January 1917—were expressly absolved from the necessity of seeking re-election. But when the second Coalition Government, after the General Election of December 1918, submitted to the new Parliament, as their first measure, a Bill to repeal the statute of Queen Anne, feeling against it was very strong, and all that the House of Commons would assent to was to suspend for nine months the obligation on Members to go to their constituencies on the acceptance of office.

With the re-election of the Ministers the work is at an end. The Administration has been duly constituted, according to long-established custom. However smoothly and rapidly it may have progressed, there are certain to be many sore hearts—those of the young with disappointed hopes, and, more pathetic still, those of the old, who are deemed to be no longer fit for office. But what of the outgoing Ministers? They no longer carry out of office the little perquisites which were permitted to some of their predecessors. At one time each Secretary of State, for instance, received on his appointment a silver inkstand, which he could retain and hand down as a keepsake to his children; but Gladstone, when Chancellor of the Exchequer, abolished this custom, and the only souvenir of office an outgoing Minister can take with him now is the red despatch box in which he used to carry his official papers to the House of Commons. How do they take their dismissal by the country? “There are two supreme political pleasures in life,” says Lord Rosebery. “One is ideal, the other real. The ideal is when a man receives the seals of office from the hands of his Sovereign; the real, when he hands them back.” It is the saying of a man who was sick and tired of office. But I beg leave to doubt its general application.

CHAPTER XV
OFFICE AND ITS SPOILS

1

Why do every Government cling so tenaciously to the responsibility and drudgery of office? Wherefore the feverish eagerness of every Opposition to take the burdens of the Empire upon their shoulders? Do the “Spoils of Office” account for the great trouble there always is in compelling the “ins” to get out, and the little persuasion necessary to induce the “outs” to come in? Surely here is a matter of high public interest, which is well worth investigation.

The salaries of most of the chief offices of the Ministry were settled at their present figures by an arrangement made so long ago as 1831. During the Administration of Earl Grey (better known as the Reform Ministry) fixed incomes of £5,000 a year for the Secretaries of State, and £2,000 a year for the Presidents of Boards were agreed to on the recommendation of a Select Committee of the House of Commons. In 1850 the emoluments of office were again reviewed by a Select Committee, and they reported in favour of the retention, practically, of the 1831 settlement. Included in this Committee of fifteen members were such rigid economists as Molesworth, Cobden, Bright, and Ricardo, who grudged almost every penny spent for State purposes. “For these offices,” they said in their report, “it is requisite to secure the services of men who combine the highest talents with the greatest experience in public affairs; and considering the rank and importance of the offices and the labour and responsibility incurred by those who hold them, your Committee are of opinion that the salaries of these officers were settled in 1831 at the lowest amount consistent with the requirements of the public service.”

The differences in the emoluments of the more important offices of Cabinet rank have been a source of embarrassment to many a Prime Minister engaged in forming a Government. It has often happened that a

man offered a post with the lower salary has considered himself slighted by his political chief. To give one conspicuous instance, the appointment of Joseph Chamberlain to the Board of Trade by Gladstone in 1880 was resented by the Radicals, if not by Chamberlain himself, as a belittling of his services and abilities. This feeling did not tend to the harmony of the inner councils of the Liberal Government; and yet the only foundation for it was that the Presidency of the Board of Trade had only £2,000 a year as compared with the £5,000 of a Secretary of State, for intrinsically it was a high and important office.

In 1915 the Cabinet Ministers of the first War Coalition Government, under Asquith, decided to put their varying salaries, big and little, into a common fund, and then divide the amount equally among all. The “pooling” was entirely novel. Its purpose was to mitigate the personal hardship caused to certain Ministers who, in the reshuffle of offices necessary in order to include Unionists in the Coalition Government, had their emoluments reduced, or else to afford a salve to their offended dignity. To give one example, so distinguished a Minister as Winston Churchill would otherwise have lost £2,500 a year by his transfer from the office of First Lord of the Admiralty, paid £4,500, to the office of Chancellor of the Duchy of Lancaster, paid £2,000. But the general effect of this adoption by the combined Liberals and Unionists in the Cabinet of the trade union principle of paying one rate of wages, was to more than double the salaries of some Ministers, and more than half the salaries of others. The sum that each received was £2,446. The chief sacrifices were made by the Lord Chancellor, whose salary is £10,000, and the Attorney-General, whose salary, exclusive of fees, is £7,000. The Prime Minister’s salary was excluded from the pool. In the House of Commons the arrangement was criticized on the ground that it was come to “behind the back of Parliament,” and altered the remuneration of Ministers which Parliament had sanctioned. Mr. Asquith strongly deprecated the discussion. He absolutely declined to admit the right of the House of Commons to inquire how Ministers proposed to spend their salaries. “For my part,” he added, “I will never consent to hold office in this House under the Crown, subject to the condition that the House of Commons or any other body in this country is entitled to inquire how I spend the money which I receive. If my right hon. friends and colleagues—for I have no concern in the matter myself—choose by domestic arrangement among themselves to determine how their

particular salaries are going to be allocated, I submit that that is not a matter for the House or the public.” The payment to each Minister of the salary attached by Parliament to his office was resumed under the second Coalition Government formed by Mr. Lloyd George.

2

The Prime Minister, head of the Government and its maker, receives no salary. The position was even unknown to the Constitution until 1905, when it was formally recognized and given high precedence by King Edward VII on the appointment of Sir H. Campbell-Bannerman to it in succession to Mr. Arthur Balfour. Some office of State carrying a salary is accordingly held by the Prime Minister. It is usually that of First Lord of the Treasury, or, as he is fully described, “First Commissioner for executing the Office of the Lord High Treasurer of his Majesty’s Exchequer,” which carries a salary of £5,000 a year and that famous official residence, No. 10 Downing Street. There is a country house, “Chequers,” in Buckingham, the gift in 1920 of Lord Lee of Farnham. The post is a sinecure in the departmental sense, no duties being attached to it, which leaves the holder of it free to discharge his most responsible, varied, and laborious task as Prime Minister. This includes the general supervision of every Department of the State, domestic, colonial, and foreign, and the direction and control of the political policy of the Government.

Of the Prime Ministers who have sat in the House of Commons, some have been not only First Lord of the Treasury, but Chancellor of the Exchequer also. Pitt was Chancellor of the Exchequer as well as First Lord of the Treasury in his long term of office from 1783 to 1801. Henry Addington, who succeeded Pitt as Prime Minister, was also Chancellor of the Exchequer and First Lord of the Treasury. Pitt, on returning to power in 1804, again filled the two offices; and the precedent was followed by Perceval and Canning when each was Prime Minister. Sir Robert Peel, in his first brief three-months’ administration of 1834-35, was also First Lord of the Treasury and Chancellor of the Exchequer. Gladstone, both in his first Administration, 1868-74, and in his second, 1880-85, was for a time Chancellor of the Exchequer as well as First Lord of the Treasury. The Prime Ministers, from Pitt to Canning, who were Chancellor of the Exchequer and First Lord of the Treasury, drew the salaries of both offices,

then amounting to £10,398; but it was decided by the Committee of 1831 that in the event of the two positions being again filled by one Minister, half the salary of the second office should be withheld. Peel and Gladstone, accordingly, were paid only at the rate of £7,500 a year—the full salary of each office being fixed at £5,000 in 1831—for the time that each was First Lord of the Treasury and Chancellor of the Exchequer. Lord Salisbury made a new departure as Prime Minister by acting as Secretary of State for Foreign Affairs in his three Administrations, 1885, 1886, and 1895, at a salary of £5,000. The labours of these Prime Ministers, who, in addition to supervising everything, administered a special Department, and particularly a Department so onerous as that of the Treasury or the Foreign Office, must indeed have been immense. It is improbable, now that the labours and responsibilities of office are ever increasing, that this herculean task will ever be undertaken again. But it shows that our Prime Ministers have never shirked work while enjoying the emoluments of office, to use the consecrated phrase.

The chief of the Treasury, in the control of the imposition of taxes and the expenditure of the national revenue, is not the First Lord of the Treasury, but the Chancellor of the Exchequer. He is a hard-worked Minister and not often is his task of making ends meet brightened by the sunshine of popular favour. “You have held for a long time the most unpopular office of the State,” Gladstone, as Prime Minister, wrote to his fallen Chancellor of the Exchequer, Robert Lowe, who had come to grief over an attempt to impose a tax upon matches in 1873. “No man can do his duty in that office and be popular while he holds it,” he went on. “I could easily name the two worst Chancellors of the Exchequer of the last forty years; against neither of them did I ever hear a word while they were in (I might almost add, nor for them after they were out): ‘Blessed are ye when men shall revile you.’ You have fought for the public tooth and nail. You have been under a storm of unpopularity; but not a fiercer one than I had to stand in 1860, when hardly anyone dared to say a word for me; but, certainly, it was one of my best years of service, even though bad be the best.” The salary attached to this arduous office before 1831 was £5,398, which was made up of fees from different sources. On the recommendation of the Committee of 1831 it was reduced to a fixed sum of £5,000. The Chancellor of the Exchequer has also an official residence, 11 Downing Street.

The Financial Secretary to the Treasury, who assists the Chancellor of the Exchequer in the administration of his department, is paid £2,000 a year. There are also three Junior Lords of the Treasury. As such they have no official duties whatever. What, then, do they do for their salary of £1,000 a year each? According to an amusing definition of their duties given by Canning, they are always to be at St. Stephen's, to keep a House and to cheer the Ministers. They are, in fact, the assistant Whips of the Party in office. The Chief Whip also fills a sinecure post of £2,000 a year, which used to be styled the Patronage Secretary to the Treasury, and has of late years been called the Parliamentary Secretary to the Treasury.^[2] The Constitution knows not the Whips. They are provided for by offices to which there are salaries, but no duties attached.

3

Very important Ministers are the six Secretaries of State. For a century before 1782 there were two joint Secretaries of State. One had the management of affairs relating to the northern States of Europe; the other dealt with matters affecting the southern countries of the Continent, and Home affairs, which included Ireland and the Colonies. In 1782 there was a redistribution of their duties, and each got a distinctive title. The former was called "Secretary of State for Foreign Affairs,"^[3] and was given control of the relations of the Kingdom with all foreign States; and the latter was styled "Secretary of State for the Home Department," which included Great Britain, Ireland, and the Colonies. There was also at this time a Minister called "Secretary at War," responsible for the land forces of the Crown, who, by a singular arrangement, was a subordinate of the Home Office. In 1794 the Secretary of State for War was created; and in 1801 the affairs of the Colonies were by another strange arrangement transferred to him from the Home Department. But in 1854, on the outbreak of the Crimean War, the War Minister was relieved of all Colonial business, which was vested in a new Secretary of State for the Colonies. In 1858, after the Indian Mutiny, when the authority and power of the East India Company were taken over by the Imperial Government, the Secretary of State for India was first appointed. The office of Secretary of State for Air which, as I have already said, was created in 1917, during the Great War, is held conjointly with the Secretaryship for War. The Air Minister, as President of the Air Council, is

responsible for the administration of the Air Force and the defence of the realm by air. The salary of a Secretary of State is £5,000 per annum. Each is assisted in the work of his department by an Under-Secretary of State, who is paid £1,500. The War Office has an additional parliamentary official known as the Financial Secretary, who also receives £1,500. In 1919 a new Under-Secretaryship was attached to the Foreign Office, called “Secretary of the Overseas Trade Department” (it has relations with the Board of Trade also), with a salary of £1,500 a year. The First Lord of the Admiralty is paid £4,500 a year for directing the affairs of the Navy. He, like the Secretary of State for War, has two subordinates in Parliament—the Parliamentary and Financial Secretary to the Admiralty, concerned chiefly with the men and the pay and conditions of service, who gets £2,000, and the Civil Lord of the Admiralty, responsible for harbour works and docks, who gets £1,000 a year.

The Administration includes three offices of high standing, having little if any departmental duties, but carrying salaries of £2,000 each, which are usually given to elderly men of long service, so that the Cabinet might have the advantage of their ripe experience and sage councils. The first in dignity is the Lord President of the Council. He presides at the meetings of the Privy Council; but practically the only occasion on which all its members are summoned is at the demise of the Crown, when it becomes the duty of that ancient body to meet for the purpose of proclaiming the accession of the new Sovereign. Formerly the Lord President was the chairman of certain committees of the Privy Council, which no longer exist. In 1837, when Lord John Russell took the first step to establish a system of national education, a Committee of the Privy Council was appointed to administer the moneys which Parliament voted for the purpose, and at its deliberations the Lord President presided. In 1855 a new office was created—that of Vice-President of the Council—which in time became vested with the control of education, and that, too, disappeared when the Board of Education, with a Minister at its head, was created in 1902. In like manner, the duties of the Privy Council in regard to trade were transferred to the Board of Trade, and its duties in regard to public health were transferred to the Local Government Board. Again, the Lord President supervised the exercise of the statutory powers of the Privy Council in connection with the prevention of cattle disease; but the creation of a Board of Agriculture took that work out of his hands and left him without any business, save that of

the nominal supervision of the administrative functions of the Privy Council. The office of Lord Privy Seal is a survival from the historic past when the Privy Council sought to restrain executive acts of the Crown by insisting that the Lord Chancellor should not affix the imprimatur of the Great Seal to any grant, or patent, or writ which the Sovereign desired to issue, without their authorization in the form of a warrant under the Privy Seal. In these days of Government by Parliament, the Lord Privy Seal has nothing to do. Another office of dignity rather than of responsibility is that of the Chancellor of the Duchy of Lancaster. His duties in relation to the revenues of the Duchy, which are vested in the Sovereign and exempt from parliamentary control are purely nominal, so that he is free to come to the assistance of any Minister when hard pressed in Parliament, or by departmental work outside. "So far from resembling an epicurean divinity," said Lord Dufferin in 1871, when some noble lords called his position a sinecure, "the Chancellor of the Duchy of Lancaster seems to me to be a kind of charwoman and maid-of-all-work to the Government."

4

One of the busiest of Ministers is the President of the Board of Trade. The work of the department is most diversified. It covers all matters affecting trade and commerce, industries and manufactures, the mercantile marine, and commercial relations with foreign countries. The salary of the President, formerly £2,000, was raised to £5,000 in 1909. Attached to the Board of Trade are a Parliamentary Secretary and a Secretary of Mines (created in 1920), both of whom are paid £1,500 a year. The Board of Trade holds a titular position that distinguishes it from the other Government departments. It was constituted in 1786 for the consideration of all matters relating to trade and foreign plantations. As a board it is a relic of olden and more leisurely times when much of the work done by the heads of the departments and chief clerks was revised by commissioners seated round a board or table. Now, however, only the name survives. The Board of Trade never meets. It had, as ex-officio members such exalted personages as the Archbishop of Canterbury, the Lord Chancellor, the Speaker of the House of Commons, and also one whose office came to an end as long ago as 1800—the Speaker of the Irish Parliament. When Mr. Lloyd George was President of the Board of Trade he was asked whether the Archbishop of

Canterbury had attended any meetings of the Board, and in an amusing equivocation replied that his Grace “had not missed a single meeting to which he had been summoned.” Sydney Buxton, another President of the Board of Trade, was asked why the place of the Speaker of the Irish House of Commons on the Board had not been filled up. “After keeping open his place for more than a century,” he replied, “I should be sorry now to close the door to his possible return to the Board.” He added, amid the renewed laughter of the House, “that he should also greatly regret losing the Archbishop of Canterbury as a colleague.”

The Minister of Health has charge of the public health and controls local authorities. The Local Government Board, which was created in 1871, was transformed into the Ministry of Health in 1918. The Minister’s salary is £5,000, and that of his Parliamentary Secretary £2,000. In 1889 the Board of Agriculture was established. The powers of the Board of Trade relating to fisheries were transferred to this department in 1903, when its title was changed to that of “The Board of Agriculture and Fisheries.” In 1919 the Board became a Ministry. It is responsible to Parliament for the Office of Woods and Forests which administers Crown lands. The Minister of Agriculture is paid £2,000, and his Parliamentary Secretary £1,200. In 1902 the Board of Education entered upon its independent existence among the Departments of the State. The President of the Board of Education has a salary of £2,000, and is assisted in administering the system of national education by a Parliamentary Secretary, who gets £1,200. The First Commissioner of Works, head of the Office of Works, which performs overseeing duties in connection with Royal palaces, State buildings and Royal parks, has £2,000 per annum. The Postmaster-General receives £500 a year more, or £2,500, in consideration of his more onerous duties and responsibilities in the control of the postal and telegraph services, and there is an Assistant Postmaster-General, who is paid £1,200.

Two new Ministries were created during the Great War to control and administer affairs which arose out of it—ways and communication, by the Ministry of Transport; and the allotment and payment of pensions to disabled soldiers and sailors, and to the relations of the killed, by the Ministry of Pensions.^[4] The Labour Ministry, for the enforcement of legal regulations in mines, factories and workshops, was brought into being in the

same period. These four Ministers are paid £2,000 each, and their Parliamentary Secretaries £1,200 each.

The Chief Secretary for Ireland has £4,425 a year. The salary was formerly £5,500. The Committee on Official Salaries, in 1850, recommended its reduction to £3,000, but it was fixed at £4,000, with an extra allowance of £425 for the special travelling and other expenses of the post. The Chief Secretary has also an official residence in the Phoenix Park, Dublin. He is paid double the salary of an Under-Secretary of State—besides his extra allowance—on account of being obliged to reside part of the year in London and part in Dublin. Formerly the Chief Secretary was subordinate to the Home Office, but he has been for many years independent of that department. His full title is “Chief Secretary to the Lord-Lieutenant of Ireland.” The relations between the Lord-Lieutenant and his Chief Secretary have, however, become inverted in recent times. The Chief Secretary is now solely responsible to Parliament for Irish affairs; and the Viceroyalty has become more and more a position of dignity rather than of power. The most highly paid office in the Administration is that of the Lord-Lieutenant of Ireland, the salary being £20,000 a year, with an allowance of £3,000 for outfit on appointment, and an official residence in the Phoenix Park, known as the Viceregal Lodge, as well as apartments in Dublin Castle. There is also a political office of Vice-President of the Irish Department of Agriculture, created in 1899, to which a salary of £1,200 a year is attached. For Scotland there is a Secretary, responsible, like the Chief Secretary for Ireland, for a large number of public departments, paid £2,000 a year, and a Parliamentary Under-Secretary for Health, paid £1,200 a year.

The salary attached to the office of Lord Chancellor of England is £10,000—£4,000 as Speaker of the House of Lords, and £6,000 as Judge. The Lord Chancellor of Ireland is paid £6,000 a year. Indeed, the best paid offices are the legal. The Attorney-General gets £7,000, and the Solicitor-General £6,000; and both receive, in addition, high fees for cases they conduct in the law courts on behalf of the Crown. During 1913-14, the financial year before the Great War, the Attorney-General was paid, in all, £18,397; and the Solicitor-General, £19,027. The fees of the Attorney-General in the year after the War, 1918-19, amounted to £8,500, and those of the Solicitor-General to £10,300. They are the confidential advisers of

the Cabinet on questions of law. Both also expound and defend in the House of Commons the legal provisions of Government measures and proposals. The Attorney-General for Ireland, as chief law officer and law adviser of the Crown in Ireland, gets £5,000 a year and fees; and the Lord Advocate of Scotland, who holds a similar position in regard to Scotland, also gets £5,000 a year, but no fees. Ireland and Scotland have each a Solicitor-General, who is paid £2,000.

There are posts in the Royal Household which are political, and therefore, like offices in the Administration, are vacated at a change of Government. The best paid of these Ministers is the Master of the Horse, who gets £2,500 a year, the use of a Royal carriage and horses, and the services of four of the King's footmen. He has authority over all matters relating to the royal stables, the King's equerries, pages, grooms, coachmen, and is responsible for arranging the details of Royal processions, such as the procession from Buckingham Palace to Westminster when the King goes in State to open Parliament. The Lord Chamberlain, who has the regulation of Courts and levees, and admission to them; and the Lord Steward, who has control of matters "below stairs," just as the Lord Chamberlain has of those "above stairs," are each paid £2,000. Then there are the Captain of the Gentlemen-at-Arms, and the Captain of the Yeomen of the Guard, who each draw salaries of £1,000 a year. The functions of these ancient bodyguards of the Sovereign are now entirely ceremonial. There are also seven Lords-in-Waiting—one for every day in the week—who are paid £600 a year each. Only peers are eligible for all the foregoing Household appointments. There are three other posts, carrying salaries of £700 each, which are always given to Members of the other House—Comptroller of the Household, who conveys messages from the Commons to the Sovereign, Treasurer of the Household, and Vice-Chamberlain. The duties of these offices are practically nominal, and the holders of them, whether Lords or Commons, act as assistant Whips in their respective Houses, or do all sorts of odd jobs for the Government. Finally, there is one unpaid Minister, and he is, strange to say, called "Paymaster-General." He is the head of the office which makes the payments required by the different departments of State out of the sums voted for the purpose by the House of Commons, and placed to his account by the Treasury. He issues the warrants which puts thousands of pounds into the pockets of his colleagues in the Ministry, but not a brass farthing into his own. What a tantalizing position! It is the office that is the

attraction. For the Paymaster-General, though he gets no salary, is proud to know that he is a Member of the Government.

CHAPTER XVI

PENSIONS FOR MINISTERS

1

It appears to be widely supposed that Ministers of the Crown receive pensions on retirement. The position is that a Minister of the Crown may obtain a pension if he has held office for four or five years. But he is not entitled to it as a right on account of his service. He must apply for it to the First Lord of the Treasury, and make a declaration that his private income or resources are inadequate to the maintenance of the social position proper to one who has been a Minister of the Crown. Only two Members of the Government receive pensions automatically on retiring from office, the Lord Chancellor of England, whose pension is £5,000, and the Lord Chancellor of Ireland, whose pension is £4,000 a year. These two pensions are payable as a matter of course, however brief may have been the period of service. Nor is there any limitation to the number of such pensions that may be paid at the same time. At the close of the World War in 1918 there were living four ex-Lord Chancellors of England—Lord Halsbury, Lord Loreburn, Lord Haldane, and Lord Buckmaster—all of whom are paid the £5,000 a year, and a fifth, Lord Finlay, who, it was understood, waived his right to the retiring allowance.

The other political pensions are, as I have said, conditional. Johnson felt it necessary to define the English use of the word “pension” as: “Pay given to a State hireling for treason to his country.” Johnson, however, afterwards did something to make this form of royal bounty respectable by himself accepting £300 a year from George III. Undoubtedly in the corrupt stage of political life during the eighteenth century there were numerous pensions and sinecure offices for Ministers who were needy, or simply greedy. A Committee of the House of Commons reported in 1802 that for twenty years previous a sum of £115,000 had been annually spent on pensions. But as political morality developed with the progress of the nineteenth century,

or as the tax-payer grew impatient of his increasing burdens, this system of growing rich or repairing broken fortunes at the public expense gradually came to an end. The granting of political pensions was for the first time regulated by an Act passed by the Reform Government of Earl Grey in 1834—the “4 and 5 William V, c. 24,” which is described as an Act, “to alter, amend, and consolidate the laws for regulating pensions, compensations, and allowances to be made to persons in respect of their having held civil offices of his Majesty’s service.”

The statute which now governs the granting of pensions to ex-Ministers is the Political Offices Pension Act, 1869. It was Gladstone, then in the first year of office as Prime Minister, who brought in the measure. The only serious opposition to it came from Henry Fawcett (afterwards Postmaster-General in Gladstone’s second Administration), who thought that no Minister should be entitled to a political pension unless he had been obliged to give up his profession or business on taking office, and found it impossible to resume it on retirement. Gladstone explained that his scheme was no more than a necessary amendment of the Act of 1834, which authorized pensions varying from £800 to £2,000, according to length of service and the emoluments received, and after a short discussion, with one division—94 to 15—the Bill was passed.

Three classes of pensions for ex-Ministers were thus created:

First-class pensions of £2,000 for four years’ service in an office of not less than £5,000 a year.

Second-class pensions of £1,200 for five years’ service in an office of less than £5,000 a year and not less than £2,000 a year.

Third-class pensions of £800 for five years’ service in an office of less than £2,000 and more than £1,000 a year.

The period of service may be continuous, or at different times, and in different offices of the same class. “No new pension shall be granted in any class while four pensions in that class are subsisting,” says that Act; “nor shall more than one pension be granted in the same year.”

The Political Offices Pensions Act, 1869, embodies the following section of the Act of 1834:

And whereas the principle of the regulations for granting allowances of this nature is and ought to be founded on a consideration not only of the services performed by the individual to the State, but of the inadequacy of his private fortune to maintain his station in life; be it therefore enacted that from and after the passing of this Act, whenever any person shall seek to obtain one of the pensions before mentioned his application for that purpose shall be made in writing to the Commissioners of his Majesty's Treasury, to which he shall subscribe his name, and which shall contain not only a statement of the services performed by him and the grounds on which such pension is claimed, but a specific declaration that the amount of his income from other sources is so limited as to bring him within the intent and meaning of this Act and the principle hereinabove declared, and without such declaration no pension as hereinbefore provided or authorized shall be granted.

2

It is not generally known that Benjamin Disraeli was a pensioner under the Act of 1834. There is but an obscure and passing reference to it in Buckle's *Life of Lord Beaconsfield*. Lord Derby granted him a first-class pension in June, 1859. Disraeli was the only Prime Minister of modern times who received a political pension. He was in receipt of it when he died as Lord Beaconsfield in April, 1881. The pension was, of course, suspended while he was in office as Chancellor of the Exchequer or First Lord of the Treasury (including his two terms as Prime Minister), but the total amount drawn by him in pensions, between 1859 and 1881, was £26,456 6s. 7d. Other distinguished pensioners under the Act of 1834 were Spencer Walpole, three times Home Secretary, who from May, 1867, until his death in May, 1898, received in the aggregate a sum of £62,032 19s. 4d.; Sir George Grey, four times Home Secretary, who from 1857 to 1882 drew £39,070 2s. 6d.; and Thomas Milner Gibson, President of the Board of Trade, who was paid £35,275 1s. 3d. between 1866 and 1884.

The first beneficiary under the Act of 1869 was Charles Pelham Villiers, the associate of Cobden and Bright in the agitation for Free Trade. He entered Parliament for Wolverhampton in 1835, and sat for the same constituency until his death in 1898 at the great age of ninety-six. For some years at the end of his long career as a member of Parliament he was Father of the House of Commons. Villiers has a place among the few public men who have had statues erected to them in their lifetime. He was so honoured by Wolverhampton ten years before his death. Villiers held office in two Liberal Administrations, having been Judge Advocate-General for six years,

and for the same period President of the Poor Law Board, an office long since merged in the Local Government Board, now the Ministry of Health.

Villiers was awarded a second-class pension of £1,200 by Gladstone on August 19, 1869, a few days after the Political Offices Pensions Act became law. Although this amount was reduced to £450 a year until January 5, 1874, as Villiers had also a pension of £750 from the Suitors' Fee Fund of the Court of Chancery—is there not quite a touch of eighteenth-century sinecure in this?—Villiers received altogether, under the Act of 1869, the large sum of £30,810 12s. 8d., and was drawing the pension at his death in 1898. It may be said that no man better earned a pension than Villiers. His record of public service is unparalleled in the annals of the House of Commons. But on the proving of his will it was found that he had been a very wealthy man. He left, in fact, a fortune of £250,000.

Gladstone, subsequently to the award of the pension to Villiers, made a rule by which every ex-Minister to whom he, as First Lord of the Treasury, granted a pension was required not only to make the statutory declaration that he was unable to maintain his social station, but was also obliged to engage to surrender the pension should he come into a private fortune, or obtain a highly paid appointment. Villiers, it seems, had an accession of fortune, but evidently he did not consider that the new engagement applied to him, as he had not signed it.

As these pensions are paid, not out of monies voted by Parliament, but directly out of the Consolidated Fund, like the salaries and retiring allowances of the Judges, they cannot be raised as a subject of debate in the House of Commons. Attention, however, was drawn by means of questions to Villiers' case, and subsequently to the case of Viscount Cross, who died in March, 1914, leaving a personal estate of the value of £72,299, after having drawn a second-class pension of £2,000 for over twenty years, which amounted in the aggregate to £40,760. It appeared that Lord Cross, like Villiers, did not sign the declaration to surrender his pension in the event of an improvement in his pecuniary circumstances. As Lord Beaconsfield left £84,000 at his death, his case differs only in one respect from those of Villiers and Cross—he had been twice Prime Minister of England.

The First Lord of the Treasury is restricted by precedent to granting these political pensions only to ex-Ministers of his own Party. In 1883 an application was made to Gladstone for a pension for a Conservative ex-Minister. It was refused on the ground “that no political pension has been granted by any Minister during the last fifty years, except to one with whom he stood on terms of general confidence and co-operation.” The Prime Minister went on to say, “the examination of private circumstances, such as I consider the Act to require, is, for its nature, difficult and invidious; but the examination of competing cases in the ex-official corps is a function that could not be discharged with the necessary combination of free responsible action and of exemption from offence and suspicion.” Gladstone therefore declined to “create a precedent of deviation from a course undeviatingly pursued by my predecessors of all Parties.” Lord Morley, who gives this letter in his *Life of Gladstone*, observes in a note: “Mr. Gladstone had suffered an unpleasant experience in another case of the relations brought about by the refusal of a political pension, after inquiry as to the accuracy of the necessary statement as to the applicant’s need of it.”

We are told also in the same work that Gladstone, in his last term of office, came to hold strongly the view that these political pensions, which he himself created, should be abolished. Lord Morley says he was only deterred from trying to carry out his views by the reminder from younger Ministers, not themselves applicants, nor ever likely to be, that it would hardly be a gracious thing to cut off benefactions at a time when the bestowal of them was passing away from him, though he had used them freely while they were within his power.

I do not think it can be maintained that the salaries of Ministers are more than fair remuneration, considering the weighty and absorbing duties and responsibilities of the offices, and also the difficulty of attaining to them and the uncertainty of their tenure.^[5] It is far from being an easy matter to become a Minister of the Crown. The posts are few, and the competition among the many aspirants to them is very keen. Most Members of Parliament never reach it, even though they may have had long and brilliant

careers in public life. Fox, who was forty years in Parliament—having entered the House of Commons when he was nineteen, and retained his seat until his death at the age of fifty-nine—held Cabinet office for only about eighteen months. In 1782 he was Secretary of State for three months in the Rockingham Administration; in 1783 he filled the same office for nine months during his coalition with Lord North, who was the joint Secretary of State, with the Duke of Portland, as Premier, nominally rather than effectually at the head of affairs. Then followed twenty-three years of Opposition during the long and brilliant ascendancy of William Pitt. In January 1806 Pitt died, and in the Grenville Government which followed Fox returned to office for the third time as Secretary of State. Once more his tenure of the office was brief. After eight months it was brought to an end by his premature death in September, 1806. Fox was a rake, and, being a younger son, naturally was always in debt. But he never mourned for the spoils of office, so that he could the more freely indulge in his tastes as a man of pleasure. He desired office that he might embody his political ideas in Acts of Parliament. He moved his famous resolution for the abolition of the slave trade in June 1806; his health had broken down, and conscious that the end was near at hand, he declared that after forty years of public life he should retire, feeling that he had done his duty, if he carried his motion. The motion was carried by a majority of 99—114 voting for it, and only 15 against. It was practically his last appearance in the House. A few days later disease compelled him to retire.

On the other hand, William Pitt, as a Minister, was the spoiled darling of fortune. In 1782, at the age of twenty-three, he was appointed Chancellor of the Exchequer, in the Shelburne Administration. He was out of office for the nine months in 1783, during which Fox and North were in power. But in December of that year, on the dismissal of the Coalition Government, he became First Lord of the Treasury, Chancellor of the Exchequer, Prime Minister, and he was not yet twenty-five. He held these offices for the unbroken term of seventeen years. As First Lord of the Treasury he had £5,000 a year, and £5,398 a year as Chancellor of the Exchequer. He had, besides, the official residence in Downing Street. The Clerkship of the Pells, a sinecure office worth £3,000 a year, fell vacant on Pitt's accession to power; and in that age of jobs it was deemed a remarkable instance of disinterestedness that, instead of taking the place himself, and thus acquiring an independence for life, he gave it to a friend. But on the death

of Lord North in 1792, George III appointed him to the sinecure office of Lord Warden of the Cinque Ports, with a salary of £4,000—reduced by payments to subordinates to £3,080—and the seaside residence of Walmer Castle. For eight years, therefore, he had £10,398 per annum, and for another nine years, £13,478 per annum, from the State. Yet on his resignation in 1801—owing to the refusal of the King to sanction the emancipation of the Catholics, without which Pitt regarded the Union with Ireland which he had just carried as incomplete—he was in debt to the amount of £45,000. As his official salaries were stopped—though, of course, he retained the £4,000 a year as Lord Warden—he was in danger of being thrown into prison as a debtor. The merchants of London offered him a free gift of £100,000, and the King tendered him £30,000 from his Privy Purse, so that he might extricate himself from his unpleasant predicament. He declined both offers. He, however, accepted from fourteen personal friends and political supporters £11,700 as a loan, by which he was enabled to discharge the most pressing of his creditors. In May 1804 he returned to power as First Lord of the Treasury, Chancellor of the Exchequer, and Prime Minister, and again drew the double salaries of £10,398 until he died, in office, on January 23, 1806. His debts were paid by Parliament. They amounted to the enormous sum of £40,000, exclusive of the £11,700 advanced to him in 1801 by his friends, who now declined repayment.

What was the explanation of Pitt's indebtedness? His private life seems to have been remarkably pure. His one dissipation was an extra bottle of port. He was a bachelor. A man of cold and shy manners, he had few friends—his nose, as Romney said, was turned up to all mankind—he mixed little in society, and he was not given to hospitality. Yet with £13,478 a year, and town and seaside houses, “free of coal, candles and taxes”—to quote the official phrase of the time—in each of which he maintained but a plain and inexpensive establishment, he died at the early age of forty-seven, owing £51,700. The only explanation of the mystery that has been advanced is that, so absorbed was Pitt in public life, and so indifferent was he to money, he neglected his private affairs and was robbed by his servants. It was an hereditary weakness, perhaps. His father, the first Earl of Chatham, of whose private life Lord Chesterfield wrote, “It was stained by no vices, nor sullied by any meanness,” died in debt to the extent of £20,000, which Parliament paid, as well as settling an annuity of £4,000 a year on his successors in the earldom.

“Dispensing for near twenty years the favours of the Crown,” says Canning in the epitaph he wrote of William Pitt, “he lived without ostentation, and he died poor.” Further than this it is now impossible to carry the story of the material result to himself of Pitt’s official career. But these happy words are of general application as a tribute to the devotion, honesty, and self-sacrifice of the Ministers of the Crown. There is no instance of a Prime Minister who grew rich in office. Spencer Perceval, who was assassinated in the Lobby of the House of Commons, on May 11, 1812, left his family so ill-provided for that Parliament had to come to their assistance. As is usual in such cases, Parliament acted handsomely. It made a grant of £50,000 to the family, and voted to the widow a pension of £2,000 a year, which on her death was to be continued to the eldest son and increased to £3,000.

5

When Lord John Russell was Prime Minister and First Lord of the Treasury he publicly declared that no man without a private fortune could hope to fill any of the high offices of the State with freedom from pecuniary worries. “For my part,” he said, “I never had a debt in my life until I was First Lord of the Treasury.” A Minister was obliged largely to increase his personal expenditure in order to meet the social calls of his office. He must live in a better style as a Member of the Government than as a Member of the Opposition. A large house, servants, and carriages were essential to the adequate fulfilling of his social obligations as a Minister. “If I recollect aright,” said Lord John Russell to the Select Committee on Official Salaries in 1850, “when Monsieur de Tercy went from France to endeavour to make peace with the Dutch Government, he was very much struck, on calling upon the Grand Pensionary, to find the door opened by a servant-maid, and he thought it showed very great republican sympathy; and no doubt it was very becoming. But I think that if Lord Palmerston had only a housemaid to open the door, and Foreign Ministers called there, everybody would say that he was very mean and unfit for his situation.” Palmerston was, at the time, Secretary of State for Foreign Affairs, and, being a wealthy man, was noted for his lavish hospitality. In fact, the £5,000 a year which the head of the Foreign Office is paid does not always cover the cost of living, and the social entertainments which he has annually to give. In addition to

maintaining a position of great dignity in a becoming manner, he is expected regularly to entertain at his own expense the members of the various foreign diplomatic missions in London. Lord Rosebery has said that when he was Foreign Secretary in 1893 he spent half of his year's salary upon two receptions at the Foreign Office.

Gladstone, like Lord John Russell, lived well in office and simply in opposition. On his appointment as Prime Minister for the first time in 1868 he took a house in that region of the rich and fashionable, Carlton House Terrace. After his defeat in the General Election of 1875 he wrote to his wife saying that they must retrench their expenditure. "The truth is," he said, "that innocently and from special causes we have on the whole been housed better than according to our circumstances. All along Carlton House Terrace, I think, you would not find anyone with less than £20,000 a year, and most of them with much more." His official salary was but £5,000, and when it was stopped he retired to Harley street. During his two other terms of office as Prime Minister he inhabited the official house in Downing Street. Gladstone had a passion for public economy. He even grudged the spending of a small sum of money to make bright with flowers the little garden at the back of No. 10 Downing Street, so eager was his desire to limit the demands on the National Exchequer. But he always considered that he had well earned his allowance as Minister. Mr. John Bright, it seems, had a compunctious visitation of shame every time that the quarterly cheque for his official salary arrived, and once he disclosed his feelings to Gladstone. "There I don't agree with you, Bright," said Gladstone. "I'd rather take my official money than anything I receive from land, for I know I have earned every penny of it."

The emoluments of office were an important consideration to some of the greatest men in political history. Burke, Pitt, Sheridan, Perceval and Canning had no hereditary fortunes, and if there were not adequate salaries attached to office they could not have given their great abilities to the services of the country in government and administration. Edmund Burke, whose movement for economic reform in the conduct of State affairs led to the abolition of many political sinecures, insisted, nevertheless, that reasonable emoluments should be paid to Ministers. He said:

I will even go so far as to affirm that if men were willing to serve in such situations without salary, they ought not to be permitted to do it. Ordinary service must be secured

by the motives to ordinary integrity. I do not hesitate to say that the State which lays its foundation in rare and heroic virtues will be sure to have its superstructure in the basest profligacy and corruption. An honourable and fair profit is the best security against avarice and rapacity, as in all things else a lawful and regulated enjoyment is the best security against debauchery and excess.

Moreover, if the salaries of office were meagre, statesmanship would become entirely an appendage of wealth. In former times most of the highest offices of the Government were filled by territorial magnates, Whig or Tory—members of aristocratic families with ample private means as well as great traditions of public service. To these men, possessed of personal fortunes of £15,000, £20,000 or £40,000 a year, the salaries of office may have been regarded as unconsidered trifles. And yet, strangely enough, in the seventeenth century, when rich noblemen, their relatives and dependants were at the head of affairs, the political seems to have been quite a lucrative profession, for a Minister often held his majority in the House of Commons together, not so much by principles, as by places and pensions.

But the old custom of confining the highest of the offices of State exclusively to men of hereditary position and wealth and leisure came to an end by the middle of the nineteenth century. The tendency to open the arena of statesmanship to all members of the Party in power of proved ability and distinction, but irrespective of birth or rank or fortune, was strikingly shown in the Administration which Sir Henry Campbell-Bannerman formed in 1905, when John Burns, a manual worker from an engineering shipyard, was made President of the Local Government Board and a Cabinet Minister; and as this tendency is bound to become wider and wider still as time progresses, the salaries of Ministers must be at least sufficient to provide a livelihood in order to attract to the service of the State men well equipped for it in intellectual ability, and experience in affairs, but without private means.

The fact, however, remains that the emoluments of office are not the allurements of the public service, and they never can be in any conceivable circumstances under the Party system, and the frequent changes of Government which it involves. Those who make politics a calling are very few in number. As a rule, men do not enter upon a political career with the object of making fortunes as statesmen, or even of securing a livelihood, in the way that men study medicine to become doctors, or law to become

barristers. The uncertainty of attaining office and, in the event of success, the precariousness and brevity of its tenure will always make statesmanship the most unreliable of callings in the eyes of those bent on having a good balance at their bankers. The emoluments of office are really not so much salaries as prizes.

If two able young men of equal mental endowment were to set out on the same day to make their way in the world, one going into commerce or the professions, and the other into politics, it is almost a certainty that when the time came for retirement the man who had selected a professional or business avocation, and was successful, would be ten times as wealthy, at the very least, as the man who gave himself to the service of the State, even though he had attained to the most renowned and exalted office of Prime Minister. Members of Parliament are, as a rule, engaged in commercial and professional occupations, and they follow politics as a concurrent career. The few who show a special aptitude for leadership and office ultimately reach the Treasury Bench, but they hold on, nevertheless, to the established and secure positions on which they continue to depend for their bread-and-butter.

6

“Spoils of Office!” The phrase was long since emptied entirely of its eighteenth-century suggestion of “grab,” and remembering the public rage for economy, which is likely to endure for ever and ever on account of national necessities, it may be accepted that “spoils,” in the sense of pecuniary rewards, will less and less attach to service of the State. The responsibility and distinction of governing the country will, happily, always be attractive, and it will always bring the chance of gaining the greatest of most alluring “spoil” of all—that of doing something to maintain the renown of the country for honour and the prosperity and happiness of its people.

“This won’t do. You have taken the Queen’s shilling.” So said Disraeli to a Member of his Administration who was absent without due cause from a division in the House of Commons. It is not often that a Minister has to be reprimanded by his chief for want of devotion either to his Party or to the State. Happy country! Men of the highest class in ability and integrity are

ever ready to take its burdens upon their shoulders. It does not, of course, follow that honest and disinterested men are always the best of politicians. Personal integrity and intellectual ability are, indeed, some assurance of wisdom in the guidance of the State. But they are not an infallible guarantee. If they were, there would never be a need for a change of Government. It has happened, now and then, that the principles of an Administration were large and lofty enough almost to bring the nation to ruin. But this much is true—that if Ministers cling to office in times of Party stress and conflict, it is not because of its emoluments. It is, in the main, because of a real concern for the welfare of the Commonwealth. They are convinced that the administration of public affairs in the light of their Party principles is essential to the salvation of the country. That and, fearing they would be beaten at the polls, the human weakness, “to keep the other fellows out.”

CHAPTER XVII

THE SPEECH FROM THE THRONE

1

The Speech from the Throne, or, as it is popularly called, “The King’s Speech,” which at the opening of every session of Parliament is read to Peers and Commons assembled in the House of Lords by the Sovereign himself, is always awaited with considerable interest, and, at times of high political excitement, with some apprehension not unmingled with vows of defiance. For in it the legislative programme of the Government is disclosed. As such it is the text on which the Opposition develop their attack.

To call the Speech the “King’s Speech” is a polite fiction—aye, though, should his Majesty be absent, the Lord Chancellor, before he reads it, is careful to say—following an ancient custom, which changes in the Constitution have long since deprived of its old significance—that it is in “his Majesty’s own words.” The Sovereign has practically little or no share in its original composition. It is really the Speech of the Cabinet. But there was a time when the King really spoke in the Speech. Parliament could not then assemble until the King thought fit personally to summon it. When it did meet, the King appointed and declared the business in his Speech, and Lords and Commons were expected to confine themselves strictly to the tasks thus prescribed. This prerogative is still theoretically vested in the Crown. Parliament can be summoned only by the Sovereign, but since the Revolution of 1688 the Sovereign in summoning it has acted on the advice of the Ministers. Parliament cannot proceed with business until the Speech from the Throne has been delivered; but since the Revolution, also, neither House—as we shall see later—is bound to confine itself to the “causes of summons” set forth in the Speech.

The first draft of the Speech is usually written by the Prime Minister. What Bills are to be submitted to Parliament is first decided by the Cabinet,

but the general contents of the Speech, and certainly its phraseology, may be ascribed to the head of the Government. The draft is submitted to a full meeting of the Cabinet, where it is discussed point by point; and probably undergoes some alteration in the way of an omission here, an addition there, or a qualification of some particular statement. Then a copy of the Speech is sent to the King for his approval. In *Selections from the Correspondence of Queen Victoria* (published 1907) there is a memorandum, written by Prince Albert and dated December 9, 1854, of an interview with Lord Aberdeen, then Prime Minister, which describes a “scene” in the Cabinet Council over the preparation of the Speech that Queen Victoria was to read at the opening of Parliament. Lord John Russell had to withdraw a scheme of parliamentary reform at the outbreak of the Crimean War, and now wanted to bring it on again, greatly to the annoyance of Lord Palmerston, for the War was not yet over. Prince Albert writes:

Later, when they came to the passage about Education, Lord John made an alteration in the draft, adding something about strengthening the institutions of the country. Lord Palmerston started up and asked: “Does that mean Reform?” Lord John answered: “It might or might not.” “Well, then,” said Lord Palmerston, with a heat of manner which struck the whole Cabinet, and was hardly justified by the occasion, “I wish it to be understood that I protest against any direct or indirect attempt to bring forward the Reform question again!” Lord John, nettled, muttered to himself, but loud enough to be heard by everybody: “Then I shall bring forward the Reform Bill at once.”

That the “King’s Speech” is the Speech of the Ministers has been admitted by reigning Sovereigns even in the eighteenth century when constitutional monarchy was not quite firmly established, and, at any rate, when Kings were disposed to act independently of their advisers. In 1756, a too enterprising and most audacious bookseller was prosecuted for publishing a spurious Speech on the eve of the opening of Parliament. “I hope,” said George II, “the fellow’s punishment will be light, for I have read both Speeches, the real and the false, and, so far as I understand them, I like the printer’s speech better than my own.” The fellow was heavily fined and sent to Newgate by the Lords and the mock Speech was burnt by the common hangman in New Palace Yard and at the Royal Exchange as a “scandalous libel and a high contempt of his Majesty.” But the King had the fine remitted and the term of imprisonment curtailed. “Well, Lord Chancellor,” said George III to Lord Eldon, as he was leaving the House of Lords after opening Parliament, “did I deliver the Speech well?” “Very well

indeed, sir,” was the reply. “I’m surprised at that,” said the King, “for there was nothing in it.” The voice was the voice of the King, but the words were the words of his Ministers. Still, the King must surely be allowed some latitude of opinion in regard to the King’s Speech beyond a formal expression of approval. The truth is that if he chooses he may suggest alterations, and insist upon them, no doubt, provided modifications of policy are not implied. He probably softens an expression now and then, or adds a gracious sentence. Did not George III insert in his first Speech the famous words, “Born and bred in this country, I glory in the name of Briton!” He was the first English-born King since the Revolution. George I could not speak a word of English. He and his Prime Minister, Walpole, discussed affairs of State in bad Latin. George II publicly proclaimed himself a foreigner every time he read the Speech to the “Gendlemen of de Houze of Gommons.” The historic phrase of George III has been ascribed to the influence of his early friend and adviser, the Scottish John Stuart, third Earl of Bute, which, it was said, explained the degradation of the proud name of “Englishman” into the commonplace “Briton.” But the King always insisted that the inspiration of the sentence, as well as its composition, was entirely his own. A story is told which lends confirmation to his claim. Notwithstanding the birth and training in which he gloried, he wrote English ungrammatically and was a bad speller; and thus “Briton” in the renowned sentence, as written by the royal hand, was actually misspelt “Britain.” “What a lustre does it cast upon the name of Briton when you, sir, are pleased to esteem it among your glories,” said the House of Lords in their Address thanking the King for his Speech.

2

That there have been many cases of dispute between the Sovereign and his Ministers, in recent years, at least, as to either the measures set out in the Speech or the phraseology of its sentences is very unlikely. Only two instances during the long reign of Queen Victoria have come to light. In 1859, Austria, struggling to maintain her position in Italy, was at war with Sardinia, and the intervention of France on the side of Sardinia was regarded in some circles in this country as a characteristic act of aggression by the Emperor, Louis Napoleon. The draft of the proposed Speech from the Throne submitted to Queen Victoria contained the following passages:

Receiving assurances of friendship from both the contending parties, I intend to maintain a strict and impartial neutrality, and hope, with God's assistance, to preserve to my people the blessing of continued peace.

I have, however, deemed it necessary, in the present state of Europe, with no object of aggression, but for the security of my dominions, and for the honour of my Crown, to increase my Naval Forces to an amount exceeding that which has been sanctioned by Parliament.

The Queen sent to the Premier, Lord Derby, the following criticism:

BUCKINGHAM PALACE,
June 1, 1859.

The Queen takes objection to the wording of the two paragraphs about the war and our armaments. As it stands, it conveys the impression of a determination on the Queen's part of maintaining a neutrality—*à tout prix*—whatever circumstances may arise which would do harm abroad, and be inconvenient at home. What the Queen may express is her wish to remain neutral, and her hope that circumstances may allow her to do so. The paragraph about the Navy, as it stands, makes our position still more humble, as it contains a public apology for arming, and yet betrays fear of our being attacked by France.

The Queen then suggested two amended forms for these passages, in which she said she had taken pains to preserve Lord Derby's words, as far as was possible, with an avoidance of the objections before stated:

I continue to receive, at the same time, assurances of friendship from both contending parties. It being my anxious desire to preserve to my people the blessing of uninterrupted peace, I trust in God's assistance to enable me to maintain a strict and impartial neutrality.

Considering, however, the present state of Europe, and the complications which a war, carried on by some of the Great Powers, may produce, I have deemed it necessary, for the security of my dominions and the honour of my Crown, to increase my Naval Forces to an amount exceeding that which has been sanctioned by Parliament.

Lord Derby, in his reply, contended that the country was unanimous in favour of a strictly neutral policy. Its sympathies were neither with France nor with Austria, but, were it not for the intervention of France, it would generally be in favour of Italy. He went on to say that the Opposition Press were insinuating that the neutrality of the Government covered wishes and designs in favour of Austria; and any words in the Speech from the Throne which should imply a doubt of strict impartiality would certainly provoke a hostile amendment in the interest of Sardinia, which might possibly be

carried, and in such circumstances her Majesty would be placed in the painful position of having to select an Administration pledged against the interests of Austria and of Germany. He thought the Queen's suggested words in regard to the Navy—"complications which a war carried on by some of the Great Powers may produce"—would inevitably lead to a demand for an explanation of the "complications" which the Government foresaw as likely to lead to war. The Prime Minister went on to say:

In humbly tendering to your Majesty his most earnest advice that your Majesty will not insist on the proposed Amendments in his draft Speech he believes that he may assure your Majesty that he is expressing the unanimous opinion of his colleagues. Of their sentiments your Majesty may judge by the fact that in the original draft he had spoken of your Majesty's "intention" to preserve peace "so long as it might be possible"; but by universal concurrence these latter words were struck out; and the "hope" was, instead of them, substituted for the "intention."

In answer to this letter, Queen Victoria wrote that there was, in fact, no difference between her and Lord Derby. She had suggested the verbal amendments merely with a view to indicate the nature of the difficulty as it presented itself to her. Whatever decision Lord Derby might on further reflection come to, she was prepared to accept. In the Speech read by the Queen from the Throne the two paragraphs were somewhat modified in the sense her Majesty desired.

Five years later, in 1864, another difference arose between Queen Victoria and her advisers in regard to statements in the Speech. Denmark and Germany were at war over the right to the Duchies of Schleswig and Holstein—obtained finally by Germany—and the draft of the Speech submitted to Queen Victoria contained a paragraph plainly, if not menacingly, expressing the sympathy of England with Denmark. To this the Queen objected. In her opinion the best policy for this country was to stand neutral, and though the stubborn Palmerston, who was then Prime Minister, was, as usual, disposed to show fight, she finally had her way. The Speech as read in the House of Lords declared that—

Her Majesty has been unremitting in her endeavours to bring about a peaceful settlement of the differences which on this matter have arisen between Germany and Denmark, and to ward off the dangers which might follow from a beginning of warfare in the North of Europe, and her Majesty will continue her efforts in the interest of peace.

It is not sufficient for the King formally to express approval of the draft of the Speech submitted to him by his advisers. He must sign the Speech in the presence of the Ministers, thus giving them a guarantee of assurance that he will deliver that particular Speech, and no other, to the two Houses of Parliament. Consequently, at a meeting of the “King in Council,” or, in other words, the Privy Council, at which, however, only Cabinet Ministers are present, the King endorses the Speech with his signature. When next his Majesty sees the Speech, a printed copy of it is presented to him on the Throne of the House of Lords by the kneeling Lord Chancellor in the presence of the Commons.

The Speech is written in a prescribed form. Each one bears the closest resemblance outwardly to its predecessors. It is divided into three sections. The first section, addressed generally to Members of both Houses, “My Lords and Gentlemen,” deals exclusively with foreign affairs; then there is a brief paragraph referring to the Estimates, which specially concerns “Gentlemen of the House of Commons,” as the sole custodians and guardians of the public purse (or “Members of the House of Commons” as the phrase became when the first female Member, Lady Astor, was elected in 1919); and the third section, which opens again with “My Lords and Gentlemen,” contains some general remarks on home affairs, and sets out the legislative programme of the Session. “I pray,” the Speech usually concludes, “that Almighty God may continue to guide you in the conduct of your deliberations, and bless them with success.”

3

These Speeches possess a double interest, as the literary compositions and the political manifestoes of the most eminent statesmen of the Nation. To me it has been a pleasant occupation dipping into them, here and there, in the volumes of *Hansard* and extracting a few notes personal to the Sovereign, or references to some of the great political issues of the latter half of the nineteenth century and the opening decades of the twentieth. There is a popular supposition that “the King’s Speeches” are the worst possible models of “the King’s English.” The condemnation is too sweeping. Unquestionably there are Speeches with sentences doubtful in grammar, as well as feeble and pointless. The writing of most of them, however, is pure and concise. It is possible to trace in them the

characteristic styles and different moods of mind of the Prime Ministers by whom they were written. Disraeli's Speeches stand put as the most ornate. He used more rhetoric than other Premiers deemed to be necessary or desirable. In one there is a picture of "the elephants of Asia carrying the artillery of Europe over the mountains of Rasselas"; in another the founding of British Columbia calls up a vision of her Majesty's dominions in North America "peopled by an unbroken chain, from the Atlantic to the Pacific, of a loyal and industrious population of subjects of the British Crown." Nothing could be more effective from an elocutionary point of view. The "Speeches" of Lord Melbourne trembled at times on the verge of puerility. Palmerston's waved the Union Jack in relation to foreign affairs, and his off-hand "Ha, ha!" was heard in references to things domestic. Gladstone and Salisbury drafted "Speeches" equally noted for freshness and strength of expression. Lloyd George composed the longest and most comprehensive and possibly the most historic "Speeches"—those that immediately followed the conclusion of the World War. They were obviously addressed not so much to Lords and Commons as to the people at large.

The early age at which I am called to the sovereignty of this Kingdom renders it a more imperative duty that under Divine Providence I should place my reliance upon your cordial co-operation, and upon the loyal affection of all my people. I ascend the Throne with a deep sense of the responsibility which is imposed upon me; but I am supported by the consciousness of my own right intentions, and by my dependence upon the protection of Almighty God.

These are the concluding words of the Speech from the Throne read by Victoria, the girl-Queen, to her first Parliament, on November 20, 1837. "Never," wrote Mrs. Kemble, "have I heard any spoken words more musical in their gentle distinctness than the 'My Lords and Gentlemen' which broke the breathless stillness of the illustrious assembly, whose gaze was riveted on that fair flower of Royalty." It was a new Parliament, fresh from the country, after the General Election which, as the law then required, followed the demise of the Crown owing to the death of William IV. The scene on that historic occasion in the old House of Lords was most brilliant. To the right of the young Queen stood her mother, the Duchess of Kent. On her left was Viscount Melbourne, the Prime Minister. At the foot of the Throne were grouped other great officers of State. The benches were crowded with peers in their robes—amongst whom Wellington, Brougham, Lyndhurst, were distinguished figures—and with peeresses in Court plumes

and diamonds. At the Bar were assembled the Commons, Mr. Speaker Abercromby at their head, and in the throng might be seen such eminent statesmen and notabilities as Lord John Russell, Sir Robert Peel, Lord Palmerston, Daniel O'Connell, Stanley (afterwards Lord Derby), and two young Members, Gladstone, who already had four years' experience of Parliament, and Disraeli, just returned at the General Election for Maidstone, who were destined to become the two greatest political protagonists of the nineteenth century. Writing to his sister on November 21, 1837, Disraeli thus comically describes how the Commons went to the House of Lords, and what they saw there:

The rush was terrific; Abercromby himself nearly thrown down and trampled upon, and his macebearer banging the Members' heads with his gorgeous weapon and cracking skulls with impunity. I was fortunate enough to escape, however, and also to ensure an entry. It was a magnificent spectacle. The Queen looked admirable; no feathers, but a diamond tiara. The peers in robes, the peeresses and the sumptuous groups of courtiers rendered the affair most glittering and imposing.

What a contrast between this splendid and joyful ceremony and the pathetic scene that was witnessed in the same Chamber, just a year earlier, when Parliament was opened by William IV for the last time! The aged King, wrapped in his ample purple robes, and his grey locks surmounted by the Imperial Crown, stood on the Throne struggling with dim eyes in the twilight of the Chamber to read the Speech prepared for him by Lord Melbourne. He stammered slowly, and almost inaudibly, through the first few sentences, pausing now and then over a difficult word, and querulously appealing to the Prime Minister "What is it, Melbourne?" loudly enough to be heard by the Assembly. At last, losing all patience, he angrily exclaimed, in the full-blooded language of the period, "Damn it, I can't see!" Candles were instantly brought in and placed beside the King. "My Lords and Gentlemen," said he, "I have hitherto not been able, for want of light, to read this Speech in a way its importance deserves; but as lights are now brought me, I will read it again from the commencement, and in a way which, I trust, will command your attention." Then in a pitiful effort to prove to Peers and Commons that his mental and physical powers were by no means failing, he commenced the Speech again and read it through in a fairly clear voice and with some emphasis.

It was at the opening of the third session of the first Parliament of Queen Victoria, on January 16, 1840, Lord Melbourne being still Premier, that her Majesty read from her Speech the announcement of her approaching marriage to Prince Albert. Writing to the Prince a few days previously, she said the reading of the Speech was always a nervous proceeding, and it would be made an “awful affair” by the announcement of her engagement. “I have never failed yet,” she added, “and this is the sixth time that I have done it, and yet I am just as frightened as if I had never done it before. They say that feeling of nervousness is never got over, and that William Pitt himself never got up to make a speech without thinking he should fail. But then I only read my speech.” The passage in the Speech from the Throne in reference to her marriage is as follows:

My Lords and Gentlemen,—Since you were last assembled I have declared my intention of allying myself in marriage with Prince Albert of Saxe-Coburg and Gotha. I humbly implore that the Divine blessing may prosper this union, and render it conducive to the interests of my people, as well as to my own domestic happiness; and it will be to me a source of the most lively satisfaction to find the resolution I have taken approved by my Parliament. The constant proofs which I have received of your attachment to my person and family persuade me that you will enable me to provide for such an establishment as may appear suitable to the rank of the Prince and the dignity of the Crown.

Mrs. Simpson, in her *Many Memories of Many People*, writes that her first recollection of the opening of Parliament was on this auspicious occasion. “I sat up in a little gallery over the Woolsack between the beautiful Lady Dufferin and Miss Pitt,” she says. “I remember well the Queen’s sweet voice and that the paper shook in her hand. By her side stood Lord Melbourne, repeating inaudibly—we could see his lips move—every word she uttered.”

On the next occasion her Majesty opened Parliament, February 3, 1842, Sir Robert Peel being Prime Minister, she announced in the Speech another joyful event in her domestic life, the birth of the Prince of Wales, which took place on November 9, 1841. The Speech said:

My Lords and Gentlemen,—I cannot meet you in Parliament assembled without making a public acknowledgment of my gratitude to Almighty God on account of the birth of the Prince, my son—an event which has completed the measure of my domestic happiness, and has been hailed with every demonstration of affectionate attachment to my person and government by my faithful and loyal people.

The Prince Consort died on December 14, 1861, at the early age of forty-two years. At the opening by Commission of the next session of Parliament, Lord Palmerston being Prime Minister, the domestic affliction of the Sovereign was thus announced in “the Queen’s Speech”:

My Lords and Gentlemen,—We are commanded by her Majesty to assure you that her Majesty is persuaded that you will deeply participate in the affliction by which her Majesty has been overwhelmed by the calamitous, untimely and irreparable loss of her beloved Consort, who has been her comfort and support. It has been, however, soothing to her Majesty, while suffering most acutely under this awful dispensation of Providence, to receive from all classes of her subjects the most cordial assurances of their sympathy with her sorrow, as well as their appreciation of the noble character of him, the greatness of whose loss to her Majesty and to the nation is so justly and so universally felt and lamented.

4

Six years elapsed before Queen Victoria was seen again at Westminster. She opened the Conservative Parliament which assembled on February 10, 1866. The ceremony, by her command, was plain and simple. She declined to wear the purple robe of State, and had it placed over the Chair of the Throne. Her attire consisted of a black dress and a widow’s white cap, the only touch of bright colour being the blue sash of the Garter across her breast. For the first time also she did not read the Speech from the Throne. She reverted to an ancient practice by deputing the Lord Chancellor, Cranworth, to read it. The Speech announced the termination of the long and bloody Civil War in America. “The abolition of slavery,” it added, “is an event calling forth the cordial sympathies and congratulations of this country, which has always been foremost in showing its abhorrence for an institution repugnant to every feeling of justice and humanity.”

Queen Victoria next opened the first session of the Liberal Parliament on February 11, 1869, in which Gladstone for the first time was Prime Minister. The great measure of that session was the Bill for the disestablishment and disendowment of the Church in Ireland. “The ecclesiastical arrangements of Ireland,” said the Queen’s Speech, “will be brought under your consideration at a very early date.” It went on to say:

I am persuaded that in the prosecution of the work you will bear careful regard to every legitimate interest which it may involve, and that you will be governed by the constant aim to promote the welfare of religion through the principles of equal justice, to

secure the action of the individual feeling and opinion of Ireland on the side of loyalty and law, to efface the memory of former contentions and to cherish the sympathies of an affectionate people.

As the time approached for the meeting of Parliament in the following year, 1870, Gladstone was most anxious that it should be opened by the Queen. The chief business was to be a Bill dealing with the Irish land question. Gladstone said to Lord Granville: "It would be almost a crime in a Minister to omit anything that might serve to mark and bring home to the minds of men the gravity of the occasion." "Moreover," he added, "I am persuaded that the Queen's own sympathies would be—not as last year—in the same current as ours." This shows how important it was for the success of the Government's legislative programme that Parliament should, in the opinion of Gladstone, be opened with the impressiveness that attends the ceremony when it is performed by the Sovereign in person. But her Majesty was unable, or disinclined, to comply with his request. The opening passage of the Speech from the Throne is significant, in the light of what happened—as we now know—behind the scenes. It runs: "We have it in command from her Majesty again to invite you to resume your arduous duties, and to express the regret of her Majesty that recent indisposition has prevented her from meeting you in person, as had been her intention, at a period of remarkable public interest."

The last time that Queen Victoria appeared at Westminster was on January 21, 1886, at the assembling of a new Parliament, with the Conservatives in office but not in power. "The Queen's Speech" which was read on that occasion was perhaps—having regard to what occurred subsequently in Parliament—the most remarkable of Victoria's long reign. The session of 1886, which was destined to be made historic by Gladstone's first attempt to carry Home Rule, was opened with a Speech from the Throne strongly reprobating any disturbance of the Legislative Union.

The events which led up to this extraordinary constitutional situation may be briefly related. In June 1885 the Gladstone Administration, defeated on an amendment to their Budget condemning the increases proposed in the beer and spirit duties, resigned, and they were succeeded by a Conservative Government, with Lord Salisbury as Prime Minister for the first time. There was a General Election in November, and the Liberals came back from the polls in triumph. The Government, although in a minority, did not resign.

They decided to meet Parliament, not to put their fortune to the test, for they knew that was hopeless, but in order to have a Speech from the Throne in which there should be an emphatic declaration against any attempt to disturb the legislative relations between Great Britain and Ireland, and the session was opened in person by Queen Victoria to show her sympathy with the maintenance of the Union. The Speech from the Throne, as in every instance of the opening of Parliament by the Queen since the death of the Prince Consort, was read by the Lord Chancellor. The principal passage, relating to the Irish situation, was as follows:

I have seen with deep sorrow the renewal, since I last addressed you, of the attempt to excite the people of Ireland to hostility against the Legislative Union between that country and Great Britain. I am resolutely opposed to any disturbance of that fundamental law, and in resisting it I am convinced that I shall be supported by my Parliament and my people.

That Gladstone was committed to Home Rule was well known at the time, and it was hoped by the Conservatives that this declaration would prove embarrassing to him. Five days later the Government were defeated on an amendment to the Address in reply to the Speech in favour of small allotments for agricultural labourers. Gladstone once again returned to office. The new Liberal Government accepted the Address in reply to the Speech from the Throne, drawn up by their Conservative predecessors, only adding to it the amendment expressing regret that there was no promise in the Speech of legislation to enable agricultural labourers to obtain allotments and small holdings. At that time the Address was an echo of the Speech itself. The Sovereign was thanked, separately and specifically, for every expression of promise, hope or regret contained in the Speech. Here is one sentence from the Address, agreed to by the Liberal Government, which, in view of the introduction of the Home Rule Bill by Gladstone as Prime Minister a few months later, is one of the curiosities of constitutional history:

We humbly thank your Majesty for informing us that your Majesty has seen with deep sorrow the renewal, since your Majesty last addressed us, of the attempt to excite the people of Ireland to hostility against the Legislative Union between that country and Great Britain; that your Majesty is resolutely opposed to any disturbance of that fundamental law; and that in resisting it your Majesty is convinced that your Majesty will be heartily supported by your Parliament and your People.

Sure enough, the Home Rule Bill brought in by the Prime Minister in June was rejected by a majority of thirty.

King Edward VII opened his first Parliament on February 14, 1901, the Unionists being in office and Lord Salisbury Prime Minister. His Majesty said:

I address you for the first time at a moment of national sorrow, when the whole country is mourning the irreparable loss which we have so recently sustained, and which has fallen with peculiar severity upon myself. My beloved Mother, during her long and glorious reign, has set an example before the world of what a monarch should be. It is my earnest desire to walk in her footsteps.

Of the Speeches of King George V, one of the most interesting was that which he read at the opening of Parliament in 1914—six months before the outbreak of the Great War—when the country was in turmoil over the question of Home Rule and seemed to be drifting into Civil War. One of its passages was said at the time to have been personally written by the King, with a view to mitigating the excesses of Party spirit. It runs:

I regret that the efforts which have been made to arrive at a solution by agreement of the problems connected with the Government of Ireland have, so far, not succeeded. In a matter in which the hopes and the fears of so many of my subjects are keenly concerned, and which, unless handled now with foresight, judgment, and in the spirit of mutual concession, threatens grave future difficulties, it is My most earnest wish that the good will and co-operation of men of all Parties and creeds may heal dissension and lay the foundations of a lasting settlement.

It was the good fortune of George V to be able to announce at the opening of the new Parliament on February 11, 1919, “the end of the struggle between German tyranny and European freedom” and “the dawn of a new era.” The Speech was of unprecedented length, as well as of historic importance. One of its most striking passages was this:

To build a better Britain we must stop at no sacrifice of interest or prejudice to stamp out unmerited poverty, to diminish unemployment and mitigate its sufferings, to provide decent homes, to improve the nation’s health, and to raise the standard of well-being throughout the community.

Never before was the question of the condition of the people enlarged upon so emphatically and boldly in the Speech from the Throne. His Majesty added the warning:

We shall not achieve this end by undue tenderness towards acknowledged abuses, and it must necessarily be retarded by violence and even by disturbance.

5

For many years the Commons went to the House of Lords in a way that was most unseemly in answer to the message of Black Rod, to hear the Speech from the Throne read by the Sovereign. So great was the rush and crush at one of the earlier openings of Parliament by Queen Victoria, that Joseph Hume, as he bitterly complained in the House of Commons, neither saw her Majesty nor heard her voice, although he was within touch of the Speaker as he stood at the Bar. "I was crushed into a corner," he said, "my head being knocked against a post, and I might have been much injured if a stout Member had not come to my assistance." Dickens, who was present at the ceremony a few years later, said the Speaker was like a schoolmaster with a mob of unmannerly boys at his heels. "He is propelled," the novelist wrote, "to the Bar of the House with the frantic fear of being knocked down and trampled upon by the rush of M.P.'s." In 1851 the Speaker was so pushed and hustled that his wig was knocked awry and his robe torn. Frank Hugh O'Donnell relates in his book on *The Irish Parliamentary Party* how at one opening of Parliament in the later 'seventies he saved Disraeli from being knocked down by squaring his shoulders and elbows to keep off the pressure of the mob of M.P.'s from the frail person of the Prime Minister. Disraeli sent his secretary, Montagu Cory, to thank O'Donnell. The last time such a scene was enacted was in 1901, at the first opening of Parliament by King Edward. Since 1902 the Strangers' Gallery of the House of Lords has been set apart for Members of the House of Commons, and they are allowed access to it before the King appears in the Chamber and Black Rod is sent to command the attendance of the Commons at the Bar. It is a spectacle well worth seeing—the King crowned and in his purple robes and standing on the Throne, surrounded by his Ministers, addressing the assembled Lords and Commons. It is the most noble and impressive sight to be seen at Westminster.

The Speech is read in both Houses—in the Lords by the Lord Chancellor, in the Commons by the Speaker—when they reassemble after the ceremony of the opening of Parliament by the King. But before this is done each House gives a first reading to a Bill, in obedience to a Standing Order in the

Lords, and in the Commons by ancient custom. The incident escapes the attention of most Lords and Commons, so unostentatiously is it done, and probably its constitutional significance is lost to most of those who may chance to notice it. In the Lords the Bill is called "Select Vestries Bill," and in the Commons the "Bill for the more effectual Preventing of Clandestine Outlawries." It may seem a matter of form, the procedure being that the Clerk in each House simply reads the title of his Bill, but it is meant to assert the right of Parliament to act as it thinks fit, without reference to any outside authority, to debate matters other than "the causes of summons" set forth in the Speech from the Throne. Neither of these Bills is ever heard of again during the session. The Outlawries Bill, which does service in the House of Commons, has been preserved in the drawers of the Table since the opening of the present Chamber in 1852. For one moment, at the opening of each session, it is produced by the Clerk, and is seen no more for another twelve months.

CHAPTER XVIII

DEBATE ON THE ADDRESS TO THE KING

1

The Commons hear the Speech from the Throne twice—by the Sovereign in the House of Lords and again at its subsequent recital in their own Chamber by the Speaker. Macaulay states in his *History* that the first Speech of James II to Parliament in 1685—notable for its extraordinary admonition to the Commons, that if they wished to meet frequently they must treat him generously in the matter of supplies—was greeted with loud cheers by the Tory Members assembled at the Bar of the House of Lords. “Such acclamations were then usual,” says the historian. “It has now been during many years the grave and decorous usage of Parliaments to hear in respectful silence all expressions, acceptable or unacceptable, which are uttered from the Throne.” The recital of the King’s Speech by Mr. Speaker to the House of Commons was unmarked by any demonstration of Party feeling for two centuries and a quarter. But at the opening of the last session of the Balfour Parliament, in February 1905, there was a breach of the traditional decorum, which, as a change in parliamentary manners, is noteworthy enough to be placed on record. The promise in the Speech of economy, “so far as the circumstances of the case admitted,” was received with derisive laughter on the Opposition benches, while the mention of the “prospect” of a promised Redistribution Bill, by which Ireland was to lose twenty-two seats, provoked loud and angry cries of defiance from the Irish Members. Since then the reading of the Speech by the Speaker in the Commons, whether at the opening of a new Parliament or a new session, is usually greeted with Ministerial shouts of approbation or Opposition cries of dissent. These Party cheers constitute a complete acknowledgment that the King’s Speech is the speech, not of the King, but of his Ministers.

2

In each House a motion for an Address to the King for his “most gracious Speech” is submitted on behalf of the Government. The proposer and seconder of the Address in each House are in uniform or full dress. This is the only occasion, be it noted, when a Member, whether of the Peerage or of the Commons, is permitted to appear in Parliament otherwise than in civilian clothes, a rule which, probably in the history of Parliament, was suspended only during the Great War, when many Members wore khaki. The uniforms of the Militia or Yeomanry are much affected, and, failing the commission to wear them, Court costume or levee dress is the rule. Another order, which prohibits Members of either House from “carrying a lethal weapon,” is also suspended for the occasion in favour of the sword of the soldier or courtier. There is, however, one instance of the Address having been seconded by a Member who wore no costume of ceremony. That was when Charles Fenwick, the Labour representative, who at the opening of the first session of the Liberal Parliament of 1893-95 discharged that function in his ordinary everyday clothes.

In March 1894 the same Liberal Administration being in office—save that Lord Rosebery had succeeded Gladstone as Premier—an amendment to the Address moved by Labouchere, Member for Northampton, hostile to the House of Lords, was carried against the Government by the narrow majority of two—147 votes to 145. It declared “that the power now enjoyed by persons not elected to Parliament by the possessors of the parliamentary franchise to prevent Bills being submitted to your Majesty for your Royal approval shall cease,” and expressed the hope that “if it be necessary your Majesty will, with and by the advice of your responsible Ministers, use the powers vested in your Majesty to secure the passing of this much-needed reform.” The method suggested by Labouchere was the creation of 500 peers who would be willing to carry through the House of Lords a Bill for the abolition of that Chamber and themselves. Sir William Harcourt, Chancellor of the Exchequer and Leader of the House of Commons, declined to treat the reverse as a vote of censure, or to add the amendment to the Address. “The Address in answer to the Speech from the Throne,” said he, “is a proceeding for which her Majesty’s Government make themselves responsible—responsible as the representatives of the majority in the House of Commons from whom that Address proceeds. I think that is a clear constitutional principle which nobody will be disposed to dispute. The Government could not present to the Sovereign in a formal manner a

document of which they are not prepared to accept the entire and immediate responsibility.” He concluded by inviting the House to negative the amended Address, and to adopt a new Address, which simply assured her Majesty “that the measures recommended to our consideration shall receive our most careful attention.” This motion was seconded by John Morley.

The fact that neither of these Ministers wore Court dress or uniform led that humourist, Colonel Saunderson, Member for North Armagh, to indulge in a characteristic joke. Rising to a point of order, he asked the Speaker whether it was not contrary to the immemorial practice of the House for the mover of the Address to appear without the uniform befitting his rank? If, he continued, the Speaker should answer that question in the affirmative, he would move the adjournment of the House for twenty minutes, so as to give the Chancellor of the Exchequer an opportunity of arraying himself in garments suitable to the occasion. The Speaker took no notice of the question, for, of course, it was not seriously intended. What Colonel Saunderson wanted was a laugh, and that he got in the fullest measure. The incident, unprecedented in parliamentary history, ended with the unanimous adoption of the new Address.

Another strange thing happened in relation to the Speech from the Throne at the opening of a new session on February 12, 1918. I was in the Reporters’ Gallery of the House of Lords when the Lord Chancellor read the Speech at the reassembling of the House after the opening ceremony by the King. As he was reading the document, Lord Curzon, Leader of the House, handed him a slip of paper. The Lord Chancellor then said that the following passage had been accidentally omitted from the printed copy of the King’s Speech, which was supplied to him and distributed to their lordships:

I have summoned representatives of my Dominions and of my Indian Empire to a further session of the Imperial War Cabinet in order that I may again receive their advice on questions of moment affecting the common interests of the Empire.

It had also been omitted, by some oversight, from the copy of the Speech given by the Lord Chancellor to the King to read from the Throne. Attention was called to the matter in the House of Commons. The Member for Carlisle, Mr. Denman, pointed out that this paragraph was to be found in the Lords’ record of the King’s Speech, but not in the record of the King’s

Speech printed in the Votes and Proceedings of the Commons. He thought it desirable that the records of both Houses as to what was actually contained in the King's Speech should be identical. The Speaker, Mr. Lowther, said the hon. Member seemed to want him to put into the mouth of the King words which his Majesty did not use—a remark that was received with laughter. He explained that the copy of the Speech which he had read to the Commons had been supplied to him by the Home Secretary, and he assumed it to be accurate. It was brought to his notice afterwards that the copy of the Speech which he had read did not correspond with the copy which had been read by the King, and therefore he caused the official record to be amended so as to correspond exactly with the actual Speech which his Majesty had read from the Throne.

3

It is a compliment to be invited to move or second the motion for the Address in reply to the Speech. Young Ministerialists of promise in the House of Commons are generally selected for the distinction. As a rule, one represents an urban and the other a rural constituency; one is associated with agriculture and the other with trade. The debate which follows is always of interest, and usually is a good test of the debating quality of the House. The Opposition give battle to the Ministerialists. The policy of the Government is attacked along the whole line in a series of amendments to the Address.

In former times the Address—as I have already mentioned—used to be an elaborate answer to the Speech, paragraph by paragraph, expressing approval of its every declaration, and thanking the Sovereign in each instance for the great condescension and wisdom of his words. This practice was abandoned owing to the waste of time it involved, and for many years the Address has assumed a more simple and rational form. From the Commons it consists of a simple resolution in the following terms:

That a humble Address be presented to his Majesty, as followeth:

Most Gracious Sovereign,—We, your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, beg leave to thank your Majesty for the most gracious Speech which your Majesty has addressed to both Houses of Parliament.

The Addresses from the Lords and Commons, in reply to the Speech, were at one time presented to the Sovereign at Buckingham Palace, nominally by “the whole House” in each case, but really by the Lord Chancellor for the Lords and by the Speaker for the Commons, each being attended by the proposer and seconder and a few of the Ministers in either House. All the Members of each House, however, were supposed to have the privilege of “free access” to the Throne on these occasions; and, moreover, they might, if they so pleased, enter the presence of the Sovereign in ordinary attire, instead of in the regulation gold-braided coat and knee-breeches. The ceremony of presenting the Address by the whole House is now obsolete. The course which has been followed in recent years is that the Addresses are presented by two Ministers who are members of the Royal Household. These Ministers also bring back to both Houses the King’s acknowledgment of the Addresses.

A message from the Crown, or, as it is styled officially, “a message under the Royal sign-manual,” is presented to both Houses with some ceremony. In the Lords, the Lord Steward of the Household, wearing his official uniform, holding a white wand in one hand and a roll of parchment in the other, rises in his place at an opportune moment and announces that he has a message from the King. He then hands his roll of parchment to the Lord Chancellor, who reads it to the House. In the Commons the incident is perhaps a little more picturesque. The Comptroller of the Household appears at the Bar unannounced. Unlike the incursions of “Black Rod” from the House of Lords, who is always heralded by the loud cry of the door-keeper, and must knock at the door to obtain admittance, the Royal Messenger who brings the King’s acknowledgment of the Address has free entry to the House. He comes in, without fuss or noise, and, his duty discharged, is allowed to depart silently and in peace. Standing at the Bar, in his dark uniform relieved by a liberal display of gold braid and gilt buttons, and carrying his long white wand, he announces to the House—the Speaker standing and the Members uncovering while the Message from the King is being delivered—that he brings his Majesty’s most grateful thanks for the Address from his faithful Commons. Then advancing to the Table, he hands the document to the Clerk, and it is passed on to the Speaker, by whom it is read to the House. The Comptroller of the Royal Household retires, stepping backwards, bowing to the Chair, until the Bar is reached, when, turning round, he disappears through the swing-doors. But this

happens a week or more after the Address has been adopted, and the work of Parliament has begun in real earnest.

CHAPTER XIX

THE SERJEANT-AT-ARMS

1

“Order, order!” These are the words that are most frequently heard in the House of Commons. They run like a refrain, appealing, warning, and, at times, even menacing, through the babble and confusion of the Party conflict. “Order, order!” Members shout at each other with bitterness and defiance across the floor. “Order, order!” cries Mr. Speaker, when he observes any breach of decorum or rises to intervene in an altercation.

A conspicuous object in the House of Commons is a large armchair of heavy oak, upholstered in dark green leather, at the Bar, raised a few feet above the level of the floor, just inside the swing-doors of the main entrance to the Chamber. It is the Serjeant-at-Arms’ chair. The Serjeant-at-Arms is the chief executive officer of the House of Commons. He it is who is charged with the duty of preserving decorum in the Chamber and its precincts, of executing the warrants of the House against persons it has adjudged guilty of breaches of its privileges or contempt of its dignity; and it is he who backs with force, when force is necessary, the “Order, order!” of Mr. Speaker. He sits in his chair, facing the Speaker, picturesquely clad in a black cutaway coat, open at the breast to show the daintiest of ruffles in the whitest of cambric (of which fops in the times of the Georges were so fond), knee-breeches, black silk stockings, and shoes with silver buckles; and, as the symbol of the power and authority of his office, a rapier in its scabbard is girt to his side. His voice is very rarely heard in the House. It is seldom necessary for the Speaker to give him an order in words, and a reply or explanation from him is scarcely ever needed.

The Serjeant-at-Arms is appointed by the King personally. An officer of his Majesty’s Forces—alternately soldier and sailor—usually gets the position. He is styled “Serjeant-at-Arms in Ordinary to his Majesty,” and his duty is, as described in the patent of his appointment, “to attend upon

his Majesty when there is no Parliament, and for the time of every Parliament to attend upon the Speaker of the House of Commons.” He has a salary of £1,200 and an official residence in the Palace of Westminster. The Deputy Serjeant-at-Arms, who, wearing the same official dress as the Serjeant-at-Arms, takes turns at sitting on guard in the big chair at the Bar, has a salary of £800 a year, and also lives in the Palace rent free. There is also an assistant Serjeant-at-Arms, who usually attends to the administrative work of the office outside the Chamber. He has £500 a year and £150 as an allowance for a house. The department of the Serjeant-at-Arms costs about £14,000 a year, for, in addition to his deputy and assistant, there are also two door-keepers and eighteen messengers (recognized by their brass chains and badges of Mercury), who are his first reserves in the maintenance of order in the House.

It is not alone to “strangers” who have offended the dignity and majesty of the House of Commons that the Serjeant-at-Arms is an awe-inspiring personage. Even the representatives of the people may have occasion to shiver at the dread touch of his hand on their shoulder. Of the large number of new Members returned at a General Election few are probably aware of the fact (which, indeed, is not generally known even to old Members) that the Clock Tower contains a suite of rooms for the confinement of representatives who may be pronounced guilty by the House of some serious breach of its privileges or some outrage on its decorum. A Member of Parliament arrested on the warrant of the Speaker was formerly sent, like strangers guilty of breaches of privilege, to Newgate or to the Tower. But in the building of the Palace of Westminster prison accommodation was specially provided for Members and strangers committed by the House to the custody of the Serjeant-at-Arms.

The prison of the House of Commons is not, however, a dungeon vile, deep down below the vaults of the Palace, a dark and slimy place into which the light of day never enters. It is situated about half-way up the Clock Tower, and under the home of that popular London celebrity, Big Ben, probably the best known clock in the whole world. There are two suites of apartments, each consisting of two bedrooms—one for the prisoner and the other for one of the Serjeant-at-Arms’ messengers, who acts as gaoler—and a sitting-room. There is, therefore, accommodation for two

prisoners and two gaolers in the Clock Tower, which so far has been found more than sufficient.

Access to these rooms is obtained only through the residence of the Serjeant-at-Arms, who is responsible for the safe keeping of a prisoner of Parliament. Their windows command a view of the Thames and Westminster Bridge on one side and of Palace Yard on the other. Imprisonment under any conditions is, perhaps, an undesirable position, but it must be said that in the Clock Tower it is deprived of all its terrors and most of its inconveniences. The prisoner may rise when he pleases; his meals are supplied from the catering department of the House of Commons, and he can have what he likes—at his own expense. After breakfast he is allowed an hour's recreation on the terrace, accompanied by his gaoler and a police-officer in plain clothes, and he may take the air also in the evening. Should his term of imprisonment extend over Sunday, he may attend service in St. John's Church, close to the Palace of Westminster, to which he is accompanied by his guards.

The practice of the House of Commons, in recent times, was to commit a person guilty of any violation of its privileges to the custody of the Serjeant-at-Arms, to be detained during its pleasure. The imprisonment generally continued until the prisoner expressed contrition for his offence, or the House in its mercy resolved that he be discharged. But before he was free to go he had to pay a substantial fee to the Serjeant-at-Arms for locking him up and seeing that he did not escape. The House, however, has no power to keep a person in custody during its recess. If, therefore, the confinement should last until the prorogation of Parliament, he may not only claim his release but decline to make good the Serjeant-at-Arms' bill of costs. The last occupant of the prison was Charles Bradlaugh, the Member for Northampton. His confinement for twenty-four hours, in 1880, was an episode in his long contest with the House of Commons over his claim to be allowed, as an atheist, to take his seat without having to use, in the oath of allegiance, the expression, "So help me, God!" Bradlaugh, in a conversation about his prison experiences, stated that while the rooms were comfortable, and the confinement by no means irksome, the noisy passage of time as recorded by Big Ben in booming the quarters and the hours at night allowed him but little sleep.

Contumacy on the part of a Member nowadays would hardly be visited by imprisonment. Among the expressions which are considered out of order are treasonable or seditious words, the use of the Sovereign's name offensively, or, with a view to influence debate, disparaging references to the character and proceedings of Parliament, personal attacks on Members, allusions to matters pending judicial decision in the courts of law, and insulting reflections on Judges or other persons in high authority. The Speaker, or the Chairman of Committees, has also the power, after having called attention three times to the conduct of a Member who persists in irrelevance, or in tedious repetition, to direct him to discontinue his speech. If a Member's conduct is grossly disorderly, or if he refuses to apologize for an unparliamentary expression, the Speaker or Chairman orders him to withdraw immediately from the House and its precincts for the remainder of the sitting, and should he refuse to leave he may be forcibly removed by the Serjeant-at-Arms and his messengers. If suspension for the remainder of the sitting be deemed by the Speaker an inadequate punishment for the breach of order, the offending member may be named. The Speaker simply says, "I name you, James Thomas Millwright." The motion of suspension which follows the naming of a Member is moved by the Leader of the House or, in his absence, by another Minister. It is simply and briefly worded, to this effect: "I beg to move that James Thomas Millwright, Member for Little Peddlington, be suspended from the service of the House." It is put to the House immediately, no amendment or debate, or even an explanation by the offending Member, being allowed. If the offence has been committed in Committee, the proceedings are at once suspended, the Speaker is sent for, the House resumes, and the Chairman reports the circumstances. The motion of suspension is then moved by the Minister and put by the Speaker. The Member thus suspended must forthwith quit the precincts of the House, a term officially interpreted as "the area within the walls of the Palace of Westminster." It will be noticed that the period of suspension is not mentioned in the motion. Formerly, the Standing Orders provided that for the first offence it was to be one week, for the second a fortnight, and for each further offence one month. But by amendments to the Orders made in February 1902 the suspension continues in force till the end of the session, unless previously rescinded. Suspension involves the forfeiture of the right of entry to the lobby, the smoking-room and dining-room, the library, the

terrace, and indeed to any portion of the Palace; but it does not exempt the Member from serving on any committee for the consideration of a Private Bill to which he has been appointed, and that is considered an additional hardship.

If too large a number of Members to be coped with effectively by the force at the command of the Serjeant-at-Arms should disregard the authority of the Chair, the Speaker, by powers vested in him in February 1902, may forthwith adjourn the House. The new Standing Order was designed to cope with such a scene of disorder as that which occurred a short time previously, when a force of police was brought into the Chamber by Mr. Speaker Gully to remove some Irish Members who, as a protest against being closed in debate, refused to take part in the division that was challenged on the question under discussion. "In the case of grave disorder arising in the House," it runs, "the Speaker may, if he thinks it necessary to do so, adjourn the House without question put, or suspend any sitting for a time to be named by him." In other words, the Speaker can turn out the lights and the reporters, leaving the disorderly Members to cool their anger in privacy and in darkness.

The House has also the power of expulsion. This punishment is resorted to only in the case of a Member guilty of a gross criminal offence. Strangely enough, it does not disqualify for re-election, if the expelled Member could persuade a constituency to accept him. But to name a Member is the highest coercive authority vested in the Speaker for dealing with disorderly conduct in the House. It should be a very grave breach of the privileges of the House, or very indecorous conduct within its walls, that nowadays would land a Member in the prison of the Clock Tower.

But to see the Serjeant-at-Arms in all his glory one must have the good fortune to be present on one of those rare occasions when some outside violator of the privileges of the House is brought to the Bar for judgment. Parliament can itself redress its wrongs and vindicate its privileges. It acknowledges no higher authority. It has the power summarily to punish disobedience of its orders and mandates, indignities offered to its proceedings, assaults upon the persons or reflections upon the characters of its Members, or interference with its officers in the discharge of their duties. The Serjeant-at-Arms can arrest, under the warrant of the Speaker issued by order of the House, any person anywhere within the limits of the kingdom.

In the execution of the warrant he can call on the aid of the civil power. If he thinks it necessary, he can even summon the military to his assistance. He can break into a private residence between sunrise and sunset, if he has reason to suspect that the person he is in search of is inside.

The most famous case of house-breaking in execution of a warrant of the Commons was the forcible entrance into the residence of Sir Francis Burdett, in Piccadilly, by the Serjeant-at-Arms, supported by police and military, and the arrest of the Radical Member for Westminster and his commitment to the Tower. Burdett was pronounced guilty of a breach of privilege in April 1810 by declaring in a letter to his constituents that the Commons had exceeded their powers in sending to prison John Gale Jones, the revolutionary orator, and an order for his commitment to the Tower was carried by a Majority of 38—190 against 152. Burdett barricaded his house against the Serjeant-at-Arms. An entrance was effected by climbing the area railings and breaking open the area door. The Serjeant-at-Arms found Burdett in the drawing-room upstairs. “Sir,” said Burdett, “do you demand me in the name of the King? In that case I am prepared to obey.” “No, sir,” replied the Serjeant-at-Arms, “I demand you in the name and by the authority of the Commons of England.” Burdett protested that the law of the land was being violated, but he was carried off and lodged in the Tower. An action which he afterwards brought against the Speaker for false imprisonment failed on the ground that the Commons are the supreme guardian of its own privileges and upholder of its authority. Neither does any suit lie against the Serjeant-at-Arms. Arising out of proceedings brought in 1884 by Charles Bradlaugh for assault against the Serjeant-at-Arms in having him removed by force from the House of Commons, Lord Chief Justice Coleridge laid it down that the Serjeant-at-Arms was not liable for damages in the execution of his duty, and that the court had no jurisdiction over him.

3

The Serjeant-at-Arms brings his prisoner to the House of Commons. A brass rod is pulled out from the receptacle in which it is telescoped at the Bar, and stretched across the line which marks the technical boundary of the Chamber. The fixing of that glittering rod is almost as fearfully thrilling as the putting on of the black cap by the Judge to impose the sentence of

death, and I have seen both spectacles. Behind the rod stands the prisoner. To his right is the Serjeant-at-Arms, carrying the glittering Mace on his shoulder. At the other end of the Chamber, standing on the dais of the Chair, is Mr. Speaker in his flowing silk gown, his face sternly set under his huge wig—an awful figure indeed—delivering in the weightiest words he can command, amid the dramatic hush of the crowded Chamber, the sentence or reprimand of the House on the scorner or violator of its ancient privileges. On such occasions, the Mace being off the table, no Member can address the House. It would be out of order for a Member to put a question direct to the prisoner at the Bar. If therefore a Member desires to put such a question he must write it down and submit it to the Speaker, who alone has then the right of speech.

In former times the prisoner at the Bar was compelled to kneel down while the Speaker delivered the sentence or censure of the House. In February 1751 a Scottish gentleman named Alexander Murray (brother of the Master of Elibank), having, in the course of a contested election at Westminster, under the very shadow of the House, spoken disrespectfully of the authority of that august assembly, was brought to the Bar in custody. But so unimpressed was he by the crowded benches, by Mr. Speaker Onslow in wig and gown, by the Serjeant-at-Arms with the Mace on his shoulder, that he flatly declined to kneel, though the Speaker sternly roared at him, “Your obeisance, sir! You forget yourself! On your knees, sir!” “Sir,” said Murray, “I beg to be excused; I never kneel but to God.” “On your knees, sir!” again cried the Speaker. “Your obeisance—you must kneel.” But down on his knees Murray stoutly declined to go. “That,” said he, “is an attitude of humbleness which I adopt only when I confess my sins to the Almighty.” The House declared that this obstinacy aggravated his original offence. “Having in a most insolent, audacious manner, at the Bar of the House, absolutely refused to go upon his knees,” so ran the resolution of the House, “he is guilty of a high and most dangerous contempt of the authority and privileges of this House.” Murray was committed to Newgate, and so close was his confinement that he was denied the visits of friends and the use of pen, ink and paper. Committal to prison by Parliament lapses, as I have said, at the end of the session. That being so, when Parliament was prorogued the doors of Murray’s prison had to be flung open. The House of Commons, however, was not satisfied that three or four months’ incarceration had adequately purged the Scotsman of his impudent offence.

It has power to re-arrest when Parliament meets again. Accordingly, in the new session a fresh warrant for Murray's committal was made out, and the Serjeant-at-Arms went to his house to arrest him; but he had fled, and though a reward of £500 was offered for his discovery, he was never captured.

Twenty years afterwards the custom requiring prisoners to kneel at the Bar was abolished. The last prisoner to suffer this indignity was a journalist—Mr. Baldwin, the publisher of *The St. James's Chronicle*. On March 14, 1771, he was arrested for publishing a report of the proceedings of the House, and was compelled to prostrate himself abjectly at the Bar while the Speaker scolded him for having dared to inform the electors of the doings of their representatives in Parliament. In 1772 a Standing Order was passed—inspired, as John Hatsell, the Clerk of the House, ingenuously suggests, by “the humanity of the House”—by which it was ordered that in future delinquents should receive the Speaker's judgment standing. Perhaps the House was moved to take this action by the cutting irony of a remark made by Baldwin. On rising from his knees, after being censured, he said, as he brushed the dust from his clothes, “What a damned dirty House!” Perhaps the House preferred to allow culprits to stand at the Bar rather than run the risk, by making them kneel, of exposing its majestic self any longer to such ridicule.

The peers, however, have never formally renounced this custom by Standing Order. Warren Hastings was obliged to kneel at the Bar of the House of Lords on being admitted to bail, in 1787, on his impeachment; and again, at the opening of his trial in the following year, he remained on his knees until directed to rise by the Lord Chancellor. “I can,” he afterwards wrote, half pathetically and half indignantly, “with truth affirm that I have borne with indifference all the base treatment I have had dealt to me—all except the ignominious ceremonial of kneeling before the House.” Even on being called to the Bar to hear his acquittal announced by the Lord Chancellor, eight years subsequently, he had to undergo the same humiliating ordeal. But the Lords have not for many years now required a prisoner at the Bar to kneel.

Persons of all sorts and descriptions, as the Journals of the House show, have stood at the Bar of the Commons not only for disobedience of the orders of the House, for indignities offered to it, for insults to Members, for reflections on their character and conduct in Parliament, for interference with the officers of the House in the discharge of their duties, but also to give evidence in inquiries instituted by the House, to plead some cause, or to receive the thanks of the House for services to the State. In each case the Serjeant-at-Arms, with the Mace on his shoulder, was a prominent figure in the scene. Samuel Pepys stood at the Bar to defend himself against charges of dereliction of duty as registrar of the Navy Board. To fortify himself for the ordeal he drank at home a half-pint of mulled sack, and just before being called to the Bar he added a dram of brandy. So completely did he answer the accusations that he and his fellow-officials were acquitted of all blame. Titus Oates, the perjurer, stood there to relate the particulars of his Popish Plot. Dr. Sacheverell, the Jacobite divine, stood there in 1709 to answer the charge of preaching “a scurrilous and seditious libel” in St. Paul’s Cathedral—that famous sermon in which he asserted that it was sinful for subjects to resist the authority of the King. Wellington sat on a chair, set for him within the Bar, in 1814, to receive the thanks of the House of Commons for his services in the Peninsular campaign. Mrs. Clarke, the discarded mistress of the Duke of York, appeared there in 1809, to give evidence in support of the charge brought against his Royal Highness of having, as Commander-in-Chief, corruptly bartered in the sale of Army Commissions, an accusation that was declared not proven, though it led to the Duke’s resignation. Warren Hastings stood there as a witness, close on thirty years after his impeachment. Members cheered him on his appearance, and when he retired they rose and uncovered. Daniel O’Connell, the first Roman Catholic elected to Parliament since the Revolution, stood there in 1828 to plead, and plead in vain, that he should be allowed to take his seat without having to subscribe to the oath which declared his faith to be idolatrous and blasphemous, an abjuration, however, that was abolished by the Catholic Emancipation Act which was passed in the following year.

Persons not so distinguished or notorious have also stood at the Bar, in the custody of the Serjeant-at-Arms, charged with whimsical breaches of privilege. A man named Hyde, who tried to obtain admission to Westminster Hall at the impeachment of Warren Hastings, was rudely

jostled into Palace Yard by a policeman. Hyde had the constable served with a summons for assault. For this Hyde was arrested by the Serjeant-at-Arms, on the order of the House, brought to the Bar, and actually committed to prison for a breach of privilege in having attempted to bring an officer of the House before the ordinary legal tribunals of the land. But perhaps the most amusing instance remains to be told. Dick Martin, a well-known Irish Member in the early years of the nineteenth century (founder of the excellent Society for the Prevention of Cruelty to Animals), was greatly perturbed to find in a London newspaper some passages of his speech in the House, the previous night, printed in italics. He complained to the House of having been misrepresented, and the reporter (who happened to be a fellow-countryman of Mr. Martin) was brought to the Bar for a breach of privilege. The journalist pleaded that the report was absolutely correct. "It may be," replied the indignant Irish representative, "but I defy the gentleman to prove that I spoke in italics!" In this case the culprit was dismissed amid the laughter of the House.

CHAPTER XX

A NIGHT IN THE HOUSE OF COMMONS

1

The House of Commons is the supreme authority in this land. It should, therefore, be a consoling thought to the people that every sitting of the House is opened with a prayer for Divine light and guidance in the exercise of its unlimited powers of legislation. Both Houses of Parliament have used the prayer since the Restoration of Charles II in 1660. Besides the spiritual benefit that a Member derives from attendance at the service, he also gets the material advantage of a seat during the sitting, which, as the Chamber provides places only for about half its membership, is an additional inducement to be present at prayers.

Mr. Speaker stands at the head of the Table. By his side is the Chaplain in gown and bands. Standing in files along the benches are the Members—the two great political Parties facing each other across the floor. The service opens with the 67th Psalm, with its aspirations for the enlargement of God's Kingdom, to the joy of the people and the increase of God's blessings. "O let the nations be glad and sing for joy, for Thou shalt judge the people righteously and govern the nations upon earth." The sublime maxims of the Lord's Prayer are recited. For social policy: "Thy will be done on earth as it is in heaven. Give us this day our daily bread;" and for foreign affairs, "And forgive us our trespasses as we forgive them that trespass against us. And lead us not into temptation." There are prayers for the King and Queen. Then follows the invocation to God on behalf of the House of Commons, at which the Members turn to the walls with bowed heads.

The Chaplain prays:

Send down the Heavenly Wisdom from above to direct and guide us in all our consultations; and grant that we, having Thy fear always before our eyes, and laying aside all private interests, prejudices, and partial affections, the result of all our counsels may be to the Glory of Thy blessed Name, the maintenance of true religion and justice,

the safety, honour and happiness of the King, the public welfare, peace and tranquillity of the realm, and the uniting and knitting together of the hearts of all persons and estates within the same in true Christian love and charity one towards another, through Jesus Christ our Lord and Saviour. Amen.

Strangers are not admitted to the galleries until prayers are over. If they were present they could not fail to notice a strange thing. That is, that the Treasury Bench is always empty during the service. Ministers may be really more in need of prayers than private Members, but then their seats in the Chamber are secured to them by prescriptive right.

The first sight of the plain architectural features of the House of Commons must be disappointing to anyone swayed by the great and stirring historical associations of the place. If there be any secular institution to which something of religious solemnity should attach, it surely is the free Legislature of a Nation, where the habits, customs and institutions of the people are largely moulded, where, at any rate, the morality or ethics of the country find expression in laws. The Chamber is unadorned. The prevailing colour is dull brown, conveyed by the oak framework of galleries and panelled walls plainly carved. In the daylight a warm dimness prevails. At night the Chamber looks more impressive, when a mellow radiance streaming from the lights through its glass ceiling falls upon the crowded benches. But to the uninstructed stranger accidentally straying into it on an off-day, its stiff arrangement of tiers of benches, upholstered in dark green, on each side, and the absence of any pictorial background, would suggest an assembly-room or debating-hall, with a certain air of distinction, it is true, but lacking character and soul. Is it really in this simple Chamber of modest dimensions and severe aspect that the elected and principal House of the Imperial Parliament is content to meet? Is it here that since 1852—the year the Chamber was first occupied—so many exciting and momentous battles over political principles have been fought? Is it from this narrow hall that influences radiate which are felt to the farthest confines of the world, in the wigwams of savage tribes as well as in the Chancelleries of the Great Powers? You would do well, indeed, when you visit the House of Commons and desire to fall under its spell, to come with your historical memories refreshed, for you will there see nothing in the way of portraits of its immortal Members, or pictures from its storied past, to tell of its greatness and renown.

What emotions have there found vent! These walls, sheathed in oak, have echoed to the voices of the great Parliamentarians of three reigns—Victoria, Edward and George—Palmerston, Lord John Russell, Cobden, Disraeli, Bright, Parnell, Randolph Churchill, Gladstone, Chamberlain, Balfour, Asquith, John Redmond, Lloyd George, Winston Churchill, Lord Hugh Cecil—laying down beneficent truths or pernicious fallacies. Think of the groans of despair and the shouts of exultation these forcible and vibrating personages have aroused! With what volumes of sound, rising from the hearts of men and expressive of every phase of human feeling—joy and grief, pathos and humour, pity and contempt, exasperation and rage—has the Chamber reverberated. Fine things have been said here, and mean things. Great ideas have been expressed by great men who worthily served them. The storms of passion, evoked by the clash between opposing reason and thought in the political controversies that have been fought out there at close quarters, have made the atmosphere of the House of Commons humid and warm with emotion, and one with a mind at all sympathetically attuned to the spirit of places cannot be there very long before the effluence that emanates from these panelled walls is thrilling him through and through.

Yet there are objects within the Chamber, made sacred almost by history and tradition, which at once catch the eye. The visitor will notice with becoming awe the high-canopied Chair, surmounted by an oak carving of the Royal Arms, and will look with fitting reverence on Mr. Speaker in his big grey wig and black silk gown. At the head of the Table, beneath the Speaker, sits the Clerk of the House and the two assistant clerks, all in the gowns and short wigs of barristers-at-law, busily discharging their multifarious duties, such as sub-editing papers handed in by Members containing questions to be addressed to Ministers, amendments to be moved to Bills, and notices of motions to be proposed should opportunity offer, and also taking minutes of the proceedings for the Journals of the House. The Table is indeed a “substantial piece of furniture,” as Disraeli once described it when he spoke of his satisfaction that it lay between him and Gladstone, who had just concluded a fierce declamatory attack. It contains pens, ink and stationery for the use of Members, volumes of the Standing Orders and other works of reference. At the end of the Table, on either side, are two brass-bound oaken boxes. These are the famous “dispatch-boxes” on which Ministers and ex-Ministers lay their notes when addressing the House, and following the traditional example of great statesmen in the past,

thump to give emphasis to an argument or, metaphorically, to bash the head of an opponent.

The Table is also made to serve a part in parliamentary procedure. Important documents, such as the reports of Committees, and Foreign Office papers have to be “laid on the Table,” or, in other words, presented to the House, before they can properly be made public; and Orders of Departments have likewise to be “laid” for specified periods preliminary to their coming into operation. Even the floor-covering of the Chamber is a chapter from history. See the red border-lines on the matting right down the floor, about two feet from the front benches below the gangways. The opposing parties must not step beyond that line while in the act of speaking. And why? Because centuries ago Members were as ready to enforce an argument with the sword as with the tongue, and, to hedge them in, these lines of demarcation were drawn down the centre of the House. But of all the objects in the House calculated to awaken historic memories the Mace, perhaps, is the most potent. Made of silver and gilt with gold, its large globular head surmounted by a cross and ball, its staff artistically embellished, it lies a prominent and luminous object, when the Speaker is in the Chair, on raised supports at the end of the Table.

2

Business begins the moment the Speaker takes the Chair. It is noted for its miscellaneous character. Private Bills—or Bills introduced on behalf of the promoters of commercial or municipal undertakings which interfere with rights of property—are first considered. But the proceedings are formal, and devoid of interest. Petitions are also presented to the House at this stage of the sitting. A Member rises in his place and, stating that he has a petition to present, reads a brief summary of its purport. It invariably ends with the phrase, “And your petitioners will ever pray, etc.” No one has ever seen the sentence completed. What, then, can “etc.” imply? It seems a slovenly and irreverent way of saying one’s prayers, reminiscent of the backwoodsman who chalked up his pious wishes at the head of his bed, and, when tumbling in at night, jerked his thumb over his shoulder saying, “Lord, them’s my sentiments.” “Will the honourable Member bring it up?” says the Speaker, referring, of course, to the petition. The Member walks up the floor and drops the roll into the yawning mouth of a big black bag,

hanging at the back of the Chair. More often than not there is no public mention whatever of the petition in the House. The Member to whom it is sent contents himself with privately stowing it away into the bag, without anyone being made a bit the wiser as to its nature or signatures. Through the yawning mouth of this big black bag petitions may be said to drop out of sight and out of mind into the limbo of waste and forgotten things. Their presentation is recorded in the Journals of the House. But they make no impression whatever on the minds of Members as to the grievances they are intended to expose, and they are heard of no more, except the Committee on Petitions, before whom, in due course, they come for scrutiny, find some of the regulations have been violated—that, for instance, the prayer of a petition, instead of being in writing, is printed, or lithographed, or typewritten, or that several of the signatures are in the same handwriting, or denote persons manifestly fictitious, such as “Charles Piccadilly,” “John Trafalgar Square”—put down by jokers—when the petition is either returned for correction to the Member who presented it or its rejection is recommended. Two municipal bodies have the privilege of presenting petitions ceremoniously at the Bar of the House of Commons—the Corporation of the City of London and the Corporation of Dublin. In the early decades of the nineteenth century petitions were read in full by Members who presented them, and there were great debates arising out of them on such questions as Negro slavery within the Empire, the political emancipation of Catholic or Jew, and parliamentary reform. I have seen, in the later years of the same century, huge petitions with hundreds of thousands of signatures trundled up the floor of the House like enormous cartwheels or big drums. They related usually to proposed changes in primary education or the liquor laws—the two chief subjects of controversy in the dull and happy time I speak of. But the sending of petitions is almost a thing of the past. The House has become indifferent to any form of persuasion save that of elections.

The Chamber has now rapidly filled up for “question time,” which is often the most interesting part of a sitting. One of the most precious and highly cherished privileges of a Member is the right to question Ministers—before the House proceeds to business—in relation to public affairs, matters of administration, policy or legislation. Moreover, these interrogations and replies are an unfailing source of interest and also of entertainment. The House then invariably wears an alert and animated aspect. The benches on

both sides are thronged. Every Member is supplied with a copy of the official programme called the “Orders of the Day”—a white folio paper of many pages, in which the questions are printed, with other matter relating to the business arranged for the sitting—and one of the most characteristic sights which the House affords is the flutter of these papers on the crowded benches, as the questions are put and answered. The proceedings are followed with the closest attention, with, in fact, an absorbed interest which during a debate is evoked only by a really great speech on a subject of the first importance. The questions deal with all sorts of topics, illustrating at once the freedom of inquiry within the House and the jurisdiction of Parliament within the far-spreading Empire.

Questions are given in writing to the Clerks at the Table. “A question,” according to the Standing Orders, “must not contain any argument, inference, imputation, epithet or ironical expression.” The judge of the regularity of a question is the Speaker. He disallows it if in his opinion it is an abuse of the right of questioning, the sole object of which is to obtain information from the Government. Questions are sometimes altered by the Clerks on the ground of impropriety of expression. Members occasionally complain of this censorship. The Irish Party once resented the insertion at the Table of the word “Roman” before “Catholic” in a question handed in by one of their Members. Mr. Speaker Lowther was greatly surprised that they should have regarded the word as offensive, but promised, in deference to their feelings, it would not be used again. On the other hand, they rejoiced over their success in having the term “land-grabbers”—one of ill-omen, in Irish agrarian agitation—passed in a question and thus appearing for the first time on the official records of Parliament. I can also recall instances of Members who refused to put questions as they appeared in print. They were so different from the form in which they had been given in manuscript to the Clerks that their authors absolutely disowned them. But however questions may be sub-edited, it is rarely that one is rejected altogether by the Speaker. A question addressed to a Minister must, of course, relate to some public affair with which he is officially concerned, or to a matter of policy or administration for which he is responsible. Subject to these limitations a Member may put down four questions daily interrogating Ministers on any subject, no matter how local or trivial, for there are little things as well as great things in regard to which the House daily exercises supervision or requires to be informed. The Minister,

however, may decline to answer a question on the ground that it is against the public interest. This stops the irresponsible interference of Members in the most delicate functions of the Executive, which, if allowed, especially in foreign affairs, might be productive of embarrassing and perhaps hazardous consequences.

Questions of an urgent character, or of exceptional importance, may be asked without being printed in the “Orders of the Day,” provided private notice—or notice, by letter—has been given to the particular Minister and the consent of the Speaker has been previously obtained. These special interrogations are always put when the printed questions are disposed of. But the usual custom is for two or three days’ notice to be given, in order to afford time for the preparation of the replies. It is not the Ministers who discharge the task of obtaining the information that is asked for. The questions are sent to the different departments, to whose parliamentary chiefs they are addressed, and the answers are drafted by the permanent staff. In most cases all the Minister has to do with the replies is to read them in the House of Commons. The day’s questions are printed, as I have said, in the “Orders of the Day.” They are prefixed with the names of the Members responsible for them and are also numbered. The way in which they are put is direct and simple. Each Member rises in his place when called on, in succession, by the Speaker, and says: “I beg to ask the Secretary of State for the Home Department question No. 1,” or, “I beg to ask the First Lord of the Admiralty question No. 40.” The Treasury Bench, be it understood, is crowded with Ministers, each of them in possession of a bundle of typewritten answers supplied to him by the clerks of his department. Accordingly, the Home Secretary looks up question No. 1, or the First Lord of the Admiralty question No. 40, from his bundle and reads it to the House.

The growth of this practice of questioning Ministers has been very remarkable. It was not until the middle of the nineteenth century that it became an established feature of the proceedings of the House of Commons. In 1849 a special place was assigned to questions in the “Orders of the Day.” Before that year they were few in number; they referred mainly to the arrangement and progress of business, and were rarely printed. The first time a question appeared in the “Orders of the Day” was in 1835. But after 1849 questions were printed regularly in the “Orders of the Day,” and

the subjects inquired about—confined, previously, to pending legislation—extended gradually to public affairs and matters of administration. Still, it was rare to see more than twelve, or at the most twenty, questions on the paper for thirty years subsequently. In the session of 1860 the number of questions asked was 699; in 1870, 1,203; in 1880, 1,546; in 1890, 4,407, and in 1920 over 5,000. The questions occasionally exceed 200 per day. The average number is about 150. All this shows how interpellation, like other functions of the House of Commons, came almost haphazardly into operation, and now rests immovably on the foundation of privilege. And the Committee on National Expenditure reported during the Great War that each question costs the country thirty shillings.

Until 1880 it was the practice of Members to read every question when putting it to the Minister, although it was printed in the “Orders of the Day.” On July 8, 1880, after question time, Joseph Cowen called attention to the fact that two hours had been occupied in asking and answering questions. Yet the number of questions put that day was only thirty. He added that, having taken the time on his watch, he had found the mere reading of the questions occupied an hour; and he asked the Speaker whether, as the questions were printed in the “Orders of the Day,” it was necessary they should be read. Mr. Speaker Brand, in reply, said: “It has been the general practice for many years for hon. Members, in putting questions, to read these questions, and it has been generally found to be a convenient course. There is, however, no absolute rule on the subject.” From that day, however, the reading of questions was gradually discontinued; and questions were put simply by a reference to the numbers as they appeared in the “Orders of the Day.” It was only a month later that an Irish Member, named Finigan, on reading a question, was received with loud cries of “Order!” The Speaker was asked whether it was not “a great abuse of the rules of the House” for the hon. Member to have read his question. “The matter is not so much one of order as of propriety,” replied Mr. Speaker Brand. “I consider that the hon. Member in reading the question of which he has given notice was, strictly speaking, not out of order. With regard to the propriety of his doing so, I give no opinion.” This was the last occasion a question appearing in the “Orders of the Day” was read on being put to the Minister.

Often the real interest of a question and answer only develops when the Minister has read his typewritten reply. This arises from the custom of

putting what are known as supplementary questions. “Arising out of the right hon. gentleman’s answer, may I ask ——?” the Member begins. His purpose is to extract further information from the reluctant Minister. If the subject is controversial, the Minister is made the target of inquisitorial arrows, which he meets or parries as best he can. Mr. Speaker Peel never attempted to set up any limit to the liberty of a Member—dissatisfied with the answer to the question he had placed on the paper or, as often happened, anxious to show off his humour—to cross-examine, as it were, the Minister by means of supplementary questions.

I remember many instances of Arthur Balfour, when Chief Secretary for Ireland, being subjected for a quarter of an hour to a harassing fusillade of supplementary questions arising out of the question on one paper, and Mr. Speaker Peel saw no occasion for interference. But a totally different line was taken by Mr. Speaker Gully. When a Member rose to put a supplementary question, Mr. Speaker Gully interposed with a cry of “Order, order!” and informed the hon. gentleman that his question did not arise out of the question on the paper. The rule regulating supplementary questions previously was that they must arise out of the answer of the Minister. Some Members, notably the most pertinacious hecklers of the Government, chafed under this unwonted restraint, and occasionally showed signs of a disposition to revolt against the Chair, but Gully had might on his side, at least, and could not be trifled with. Mr. Speaker Lowther was disposed to follow the precedent set by Gully. “If,” he said on one occasion, “questions are at all important they should be put on the notice-paper, and if they are not important, they should not be asked.” Under Peel there was no limit to the duration of question time. It was limited to an hour under Lowther, and a point he repeatedly urged was that supplementary questions were unfair to Members who had questions on the notice-paper because they lessened the chance of these questions being reached within the time allowed. The answer to such questions as are not reached within the hour, and therefore are not read by the Ministers, are printed with those orally given by the Ministers in the official report of the proceedings of the House. Of questions generally it may be said that while great principles are frequently raised or indirectly suggested by them, many of them are concerned with what appears to be small details of administration interesting only to the individuals whom they affect.

New Members are introduced after questions. Quaint indeed are the contradictions of parliamentary procedure. Rules that are entirely different regulate the taking of the oath of allegiance and their seats in the House of Commons by M.P.'s returned at the General Election, and M.P.'s who come in at by-elections. We have seen on the opening days of Parliament hundreds of men appear at Westminster and being permitted to take the oath and their seats without any examination of credentials or any evidence of identification. It was quite possible, on the occasion of a large influx of new representatives, unknown by appearance to the officials, for a "stranger," impudent enough and sufficiently strong of nerve, to pass in with the crowd, and snatch the fearful joy of sitting on the sacred Treasury Bench or Opposition Bench—in front even of the brass-bound box associated with leadership and quite close to the Mace—without anyone saying him nay. On the other hand, there is an elaborate ceremony of introduction prescribed for those returned at by-elections. The new Member has to be escorted to the Table, to take the oath of allegiance and sign the Test Roll, by two full-blown Members of the House. This custom has survived from a remote past when, in order to prevent personation, two Members of the House were required to identify the claimant of a seat after a by-election as the person named by the returning officer in the return to the writ. This precaution has been unnecessary for many a year. But such is the reluctance of the House of Commons to part with any of its historic ceremonies, such is its scrupulous regard for ancient precedents—no matter how incongruous they may appear owing to the changes effected by time—that this formality is still retained; and though a representative may appear at the Bar of the House as the unanimous choice of a constituency of 20,000 electors, and produce the certificate of the official return of his election, he will not be sworn in and permitted to take his seat unless two Members act as his sponsors, and so declare that, as the conjurers say, there is positively no deception.

There is the famous case of Dr. Kenealy, counsel for "The Claimant," in the Tichborne Trial, who was disbarred by the Benchers of Grey's Inn, and afterwards returned for Stoke-upon-Trent at a by-election in February 1875. He came to the Table alone. It is not clearly established whether he failed to find two Members who would accompany him as sponsors, or whether he

wanted to put to the test a custom which, in his opinion, was no part of constitutional law. At any rate, the Speaker informed him that as he had not been introduced by two Members, in accordance with the ancient usage of the House—founded on a Standing Order dating from 1688—he could not be sworn in or take his seat. Kenealy was, therefore, obliged to withdraw from the House. No objection could be raised to Dr. Kenealy's election. He produced the certificate of his return as Member for Stoke-upon-Trent. Everyone in the House knew that he was the person named in the official document. He laboured under no legal disability. Had he been returned at the General Election he could have taken, without question, the oath and his seat. But coming in at a by-election he was not allowed to do so solely because of his inability to comply with what, after all, in this age is but a mere ceremonial function. The position was, indeed, absurd. It was impossible that a duly elected representative of the people could be excluded from Parliament for so unsubstantial a cause. Accordingly, a special resolution, moved by Disraeli, who was then Prime Minister, was carried dispensing with the ancient introductory ceremony in the particular case of Dr. Kenealy. In the course of the discussion John Bright and another Member named Whalley intimated that they were willing to walk up the floor with Kenealy "out of deference," as Bright put it, "to the will of a large constituency." The Member for Stoke-upon-Trent once more came to the Table unaccompanied; the oath was administered to him and he signed the Roll—the sole instance of a departure from a custom observed since 1688. Kenealy then disappeared in the mass of Members among whom he could not count two friends. "He was in the House, but not of it," said Joseph Cowen, speaking in 1881. He was effectually and completely boycotted.

Sometimes the new M.P., returned at a by-election, forgets to bring to the Table the certificate of the return to the writ. This document, which is sent by the Clerk of the Crown to the Clerk of the House, is given to the new Member on application at the Vote Office, in the Lobby, just before the ceremony of initiation, and must be presented to the Clerk of the House at the Table as evidence that he is the person named in the return to the writ as having been duly elected, before the oath can be administered to him. As a rule, therefore, the new Member takes care that he has this indispensable official paper in his possession before he starts to walk, between his two sponsors, from the Bar to the Table. But Hardinge Giffard, afterwards Earl

Halsbury and Lord Chancellor, when elected at a by-election in 1877, found on reaching the Table that the little blue document was missing. In his consternation he hurriedly turned out all the contents of his pockets, piling them upon the Table—letters, a purse, some loose coppers and silver, a bunch of keys, a briar-wood pipe—all sorts of things but the essential certificate. In this case the Speaker refused to accept any evidence—not even the testimony of identification by the two sponsors—but the Clerk of the Crown’s certificate that the man at the Table was the man that had been duly returned at the recent election for Launceston. The House, of course, was amused at the spectacle. Happily, one of the Whips who went in search of the missing return found it in the hat of the new Member, under the cross-bench below the Bar, where Hardinge Giffard had sat with his sponsors awaiting the time for the Speaker to make the customary announcement—“New Members desirous of taking their places will, please, come to the Table.”

Yet it would seem, after all, as if the production of the certificate of the return to the writ were not absolutely necessary before a new Member, coming in at a by-election, can take his seat. On March 11, 1848, Mr. Hames was elected for the Irish borough of Kinsale; on the 15th he took the oath and his seat, but it was not until the 18th that the return to the writ was received by the Clerk of the Crown. The Clerk of the House of Commons had neglected to ask for the certificate on the appearance of the new Member at the Table, thinking that the formality might be dispensed with as the return to the writ had not arrived. When the mistake was discovered there was great wagging of official heads. But none of the authorities could suggest a way out of the difficulty. It was unprecedented. The Clerk went about haunted by visions of the deepest dungeon under the moat of the Tower of London. At last a committee of the House was appointed to make inquiries; and after due investigation they reported that the Clerk had done a perfectly sensible thing, however unwittingly. They said it was true that the return to the writ had always been required by the House as “the best evidence of a Member’s title to be sworn.” “Nevertheless,” continued they, “the absence of that proof cannot affect the validity of the election, nor the right of a person duly elected to be held a Member of the House.” Truly, a most proper decision! Still, the committee recommended a strict adherence to the practice of requiring the production of the document. This much, at

least, can be said for it, that it is a picturesque detail in the initiation of a new Member of the House of Commons.

The House then comes to the real business of the sitting. At this stage of the proceedings leave may be asked for to move the adjournment of the House, but, even if it be granted, action is not immediately taken. The object of such a motion is to obtain from the Government an explanation of some act of commission or omission on their part; of something which, in the opinion of the Opposition or any other section of the House, they have wrongly done or left undone. The matter complained of must be—as the Standing Order says—“a definite matter of urgent public importance” in the opinion of the Speaker, and the motion must also have the concurrence of at least forty members. Therefore, when a Member rises after questions and asks leave to move the adjournment of the House, stating at the same time the object he has in view, the Speaker, should he consider the subject definite and urgent, asks whether the hon. Member is supported by forty Members. Immediately the Members in favour of the motion rise in their places, and if they muster forty, leave is granted, but the debate stands over until a quarter past eight o’clock. Forty members make a quorum, without which no business can be done. If leave is not given because it lacks the necessary support, the Member who asks for it may challenge a division in the hope of winning in the lobbies, or for the purpose of getting a record of those for and against his motion. I remember in the session of 1912 when George Lansbury the Socialist startled everyone by claiming that a division should be taken on a motion for the adjournment, in support of which only 38 Members had risen. The Speaker, Mr. Lowther, had recourse to the little book containing the rules of the House which he always has by him on the arm of the Chair, for this was probably the first time that such a request had been made, and satisfied himself that Lansbury was within his rights. The motion was lost by 115 against 86.

This being disposed of, the Speaker rises and says: “The Clerk will now proceed to read the Orders of the Day,” and the Clerk, with a copy of the Order Paper in his hand, reads the title of the first of the list of Bills down for consideration. It may be the second reading or the third reading stage, at which, on all great Bills, there is usually a big debate. Disraeli is said to

have described the House of Commons as a dull place, with some great moments. In my opinion, it would be difficult for the House of Commons ever to be downright dull. Its great moments are, indeed, many. The variety and vitality of the questions at issue there and its personalities secure it against tediousness. For Disraeli—as for most of those who have once breathed its intoxicating atmosphere—it always had an absorbing charm. Joseph Gilles Biggar, one of the best known of the Irish Party, lived in the House and for the House. Outside it he had no interest or amusement. I happened to be talking to him in the Lobby during a sitting that was supposed to be dull, when a colleague asked him whether he might go to a theatre for the evening. Biggar was then the Chief Whip of the Nationalist Party, and a stern martinet. “Theatre!” he exclaimed contemptuously. “This is better than a play, Mister. It is all real here.” Yet he was the man who, by the invention of obstruction, and its use, did most violence to its time-honoured and dearly cherished customs. The House of Commons is, indeed, a most alluring place. It has an interest of the highest dramatic intensity on the occasion of a big debate relating to the predominant political question of the day, which deeply stirs Party passions and prejudices, and brings down into the arena of the floor the great chiefs to fight for principle with the keen and subtle weapon of the tongue.

“Mr. Speaker.” So begins each Member who rises to address the House. Of all the speakers in the Chamber, Mr. Speaker speaks seldomest, and in the fewest words. The Speaker sits in his high-canopied Chair, not to talk but to listen to talkers. Hours may pass, and “Order, order,” may be the only words spoken by Mr. Speaker. He guides the deliberations of the House. He names the Member who is to continue the debate. This is not a matter simply of “catching the Speaker’s eye,” as it is popularly called. The Speaker does not always name the Member upon whom his eye may first rest. On both sides of the House Members jump to their feet, eager to join in the debate, each straining forward, or shaking his notes to attract the attention of Mr. Speaker. The Speaker’s selection of one from among these competitors to fix his wandering eye is careful and deliberate. If an opponent of the Bill has just spoken, it is almost certain that a supporter will be selected to follow. The aim of the Speaker is to secure that, as far as possible, every phase of opinion shall find expression. In this he is assisted by lists given to him beforehand by the Whips of the different Parties, containing the names of their chief spokesmen in the debate. Therefore it is

that Members on opposite sides follow each other alternately, the only exception to the rule being that should a Minister, or one of the leading occupants of the Front Opposition Bench, intervene at any moment, he has the right, more or less prescriptive, to be called on by the Speaker.

The Speaker follows the flow of discursive talk with what appears to be the most absorbing interest. Indeed, it is into his ears that the Member “in possession of the House”—to use the traditional phrase—pours all his views and prognostications, all his fears and expectations. It is, “Now, Mr. Speaker, let me say,” or “With great respect, Mr. Speaker, I submit.” Accordingly, the Speaker may not betake himself, even for a little while, to his own select and profitable thoughts. He must always be seized of the drift of the argument of the Member who is addressing him. At any moment he may be called upon to rule a point of order. His faculties must always be wide awake. At any moment some emergency may arise, without the least forewarning, when all his authority, tact, and common sense will be needed.

It is said there are Judges of the High Court who can sleep during the speeches of counsel, and wake up at the moment that the slumberous presentation of argument is concluded. The atmosphere of the House of Commons is often drowsy. Members may be seen asleep on the benches at all hours. Yet it is a remarkable fact that there is only one instance on record of a Speaker—impassive figure though he be, in a big wig and a flowing gown, reclining in a large Chair under a spreading canopy—having been caught nodding or napping. It was to Shaw-Lefevre, the only Speaker over whom tired Nature asserted itself, and whose weighted lids, despite his desperate resistance, were finally closed in slumber, that Mackworth Praed addressed these lines:

Sleep, Mr. Speaker; it's only fair,
If you don't in your bed, you should in your Chair,
Longer and longer still they grow,
Tory and Radical, Aye and No.
Talking by night and talking by day;
Sleep, Mr. Speaker, sleep while you may.

END VOL. I.

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FOOTNOTES:

[1] This statutory provision was temporarily suspended during the Great War. It was provided by an Act passed in December 1916, making certain new Ministerial appointments, and additional Secretaries or Under-Secretaries, that during the continuance of the War, and for six months afterwards, the limitation on the number of Principal Secretaries and Under-Secretaries who may sit and vote in the House of Commons, shall not have effect.

[2] In the Coalition Government during the Great War there were two Chief Whips, one Liberal, the other Unionist, each styled “Joint Parliamentary Secretary to the Treasury,” and paid £2,000.

[3] Sir Edward Grey, speaking at a public meeting in 1911, when he was Secretary of State for Foreign Affairs, humorously objected to being referred to as the “Foreign Secretary.” “I am told,” said he, “it gives the impression that, if I am not in the service of foreigners, I am at least an alien.”

[4] Three other Ministries were temporarily created for the purposes of the War—Munitions and Shipping and Food. They were brought to an end in 1921.

[5] A Committee of the House of Commons appointed to consider the salaries of Ministers, owing to the great rise in the cost of living, following the World War, recommended, in 1921, that the salary of the Prime Minister be raised to £8,000, that the salary of all Ministers of Cabinet rank be £5,000; that the salary of second class Ministers be £3,000, third class Ministers, £2,000, and that Under-Secretaries and Parliamentary Secretaries be paid £1,500.

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Obvious typographical errors and punctuation errors have been corrected after careful comparison with other occurrences within the text and consultation of external sources.

Some hyphens in words have been silently removed, some added, when a predominant preference was found in the original book.

Except for those changes noted below, all misspellings in the text, and inconsistent or archaic usage, have been retained.

[Pg 21](#): 'emanate from the' replaced by 'emanate from the'.

[Pg 25](#): 'by a votor' replaced by 'by a voter'.

[Pg 29](#): 'petitions impunging' replaced by 'petitions impugning'.

[Pg 37](#): 'in order to forestal' replaced by 'in order to forestall'.

[Pg 38](#): 'in still in vogue' replaced by 'is still in vogue'.

[Pg 41](#): 'the custon for' replaced by 'the custom for'.

[Pg 82](#): 'seemed eminent' replaced by 'seemed imminent'.

[Pg 92](#): 'appropriating portion' replaced by 'appropriating a portion'.

[Pg 95](#): 'It weights' replaced by 'It weighs'.

[Pg 98](#): 'not tongue to' replaced by 'nor tongue to'.

[Pg 163](#): 'George Cornewell' replaced by 'George Cornwall'.

[Pg 174](#): 'red dispatch box' replaced by 'red despatch box'.

[Pg 198](#): 'or the prefessions' replaced by 'or the professions'.

[Pg 228](#): 'the House wi hout' replaced by 'the House without'.

[Pg 247](#): 'said Joseph Cowan' replaced by 'said Joseph Cowen'.

*** END OF THE PROJECT GUTENBERG EBOOK THE PAGEANT OF
PARLIAMENT, VOL. 1 OF 2 ***

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